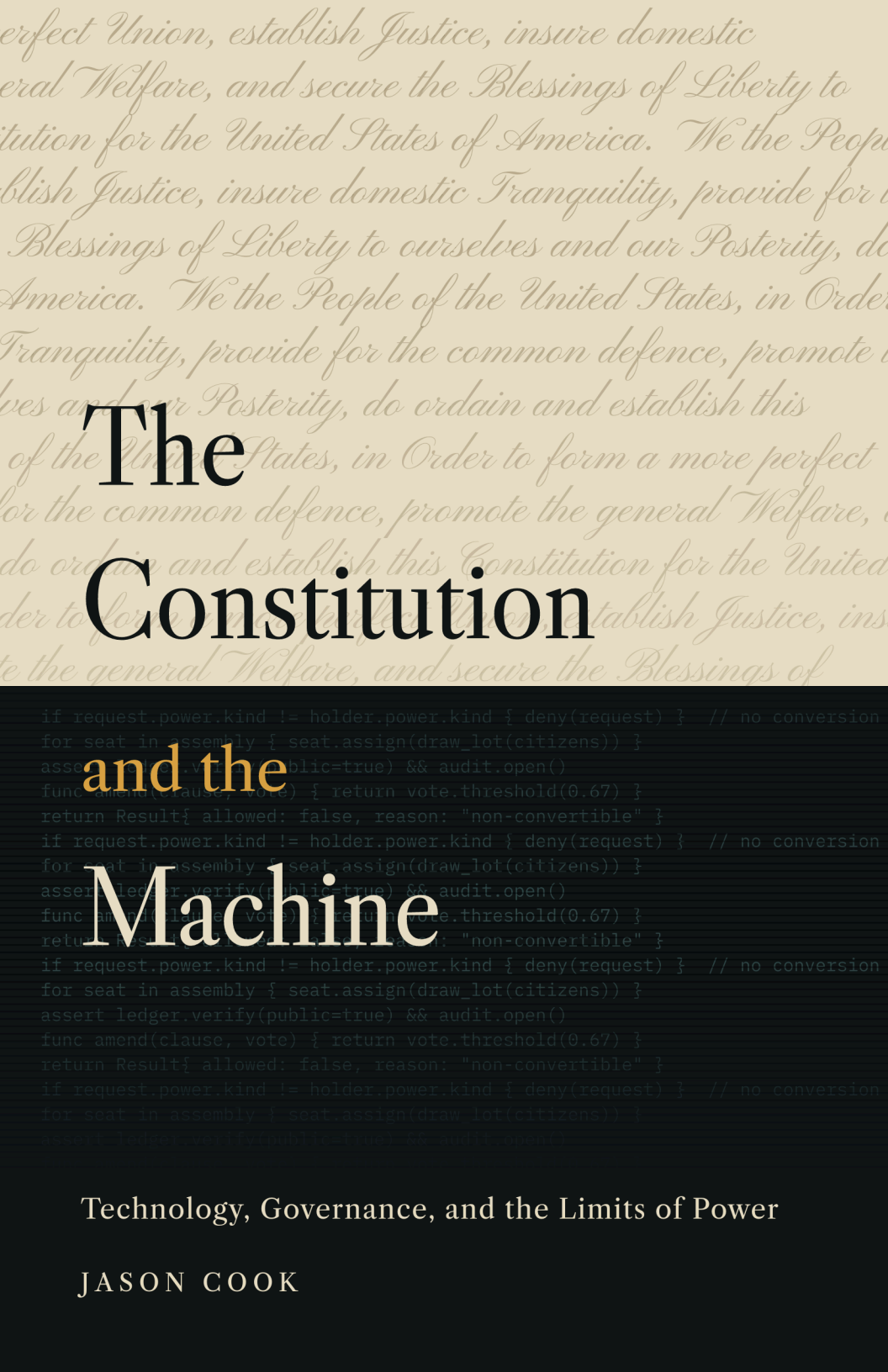

The
Constitution
and the
Machine
Technology, Governance, and the Limits of Power
JASON COOK

The Constitution and the Machine

Technology, Governance, and the Limits of Power

JASON COOK

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Foreword

On an ordinary Tuesday, Nora has three things she needs to take care of before noon, none of them remarkable.

Her first order of business is school placement. Five months ago, her daughter applied to the district's specialized arts program — an audition in February, a portfolio submission in March, a long wait since then — and their decision came through overnight. Nora reads it before her coffee finishes: waitlisted, fourth position. She scrolls past the result because there's more below it, an expandable section she might have missed. It lists the selection criteria and their weights: grade history, audition score, portfolio review, a lottery factor adjusted for district demographic goals. It notes a date six weeks away for the next board meeting, when parents can address the members directly if they want the weighting reconsidered. She records the date, thinking she probably won't go, but it's an option.

The second is a building permit. She submitted an application two weeks ago to replace the fence along her back property line,

and the city's permitting system informs her today that the proposed design exceeds the standard rear setback by four inches. She must either revise the application or file for a variance hearing; the ruling cites the relevant section of the municipal code and names three commissioners who would hear her case if she contests. She doesn't need the extra four inches, so she opens the design file and moves the fence line.

The third arrives as a notification while she adjusts the design: a rezoning proposal two blocks away. A nearby surface parking lot is slated for conversion to a six-story residential development, and because her address falls within the public comment zone, the notice found her automatically. She has twenty-eight days to submit a response. She reads the first page of the environmental review summary, bookmarks the rest for this weekend, and closes her laptop.

Her mother's home-care hours are still under review. Nora submitted additional documentation last month, and she's waiting for a human reviewer's decision. She has a number to try again.

On the subway, going to work, she has a board date in her calendar, an environmental review bookmarked for the weekend, and a number she can still call about her mother. Each of those things has somewhere to go. It's Tuesday.

— ◆ —

A second Tuesday — different world, the same city, the same technology running beneath it — feels very different.

The arts program sent its decision overnight: waitlisted, fourth position. Nora reads it before her coffee finishes and scrolls past the result, looking for more — the criteria, how they were weighted. The letter says the district's compatibility assessment reached the decision, weighing her daughter's profile against program capacity and demographic fit. She reads that again and

looks for a meeting date, a number to call, a next step. The letter doesn't offer one. She sets down her phone.

Three days ago, the fence permit came back approved. Nora had filed the application and then more or less forgotten about it — she'd submitted the plans two weeks earlier, and when nothing came back immediately, the application had receded, the way administrative things do. She saw the notification this morning, noted it was approved, and forwarded it to the contractor.

No rezoning notice arrived this Tuesday. Two blocks away, the comment period for the proposed development is open and will close in three weeks, but the notification system assessed Nora's civic engagement history — she hasn't submitted a public comment on any land-use matter in the four years she has lived in the neighborhood — and redirected the notice to residents with a more active participation profile. The development will proceed on whatever schedule the developer has planned.

Her mother's home-care hours are settled. A review was completed last month, and a letter arrived afterward explaining that the updated needs assessment indicated a change was appropriate; the aide now comes four days a week instead of five. The letter thanked her for her patience during the review period.

On the subway, going to work, she has a waitlist result from a process she can't look behind and a care schedule that was already set when the letter arrived. Neither of those things has somewhere to go. It's Tuesday.

— ◆ —

The two versions of Nora with those two Tuesdays are the same woman, in the same city, enrolled in the same systems. The technology is identical: the same digital identity, the same school placement algorithm, the same building permit processor, the same notification-routing engine, the same benefits-review platform. The difference between the two mornings is not a difference in the machinery's sophistication.

It's a constitutional difference. In the first Tuesday, the visible, contestable systems made decisions about Nora's daughter, her fence, her mother's care hours, and her neighborhood. She could see why a decision was made, which rule applied, who wrote the rule, and where to bring a dispute. In the second Tuesday, she could do none of those things; the decisions were made without her knowledge or input. Where she did notice, noticing gave her nowhere to go. The daughter was waitlisted by an assessment she couldn't examine. The permit came back approved without her ever being asked anything. The development she hadn't known to comment on was absent from her notifications. The decision about her mother had been made, and the paperwork had arrived after the fact, describing a change that had already happened. In the first Tuesday, Nora was informed about the systems deciding things in her life. In the second, she had to trust them.

The same identity system, the same notification-routing engine, and the same compatibility assessment that handled her Tuesday are already being extended to benefits eligibility, safety permitting near floodplains, and emergency evacuation alerting. Nothing about the architecture changes when the decision does. Only the cost of getting it wrong does.

This book is about the constitutional difference between those two worlds.

The technology enabling both worlds is already being built, and it's not slowing. The premise of this book is not that one future is fated and the other a fantasy. The premise is that both futures are being assembled, on identical technical foundations, and that the question of which one a person inhabits depends entirely on the constitution governing the systems that mediate her life. That is the oldest question in governance: not which machines are in use, but what governed people can do about the machines that matter to their lives.

— ◆ —

A reasonable reader, meeting those two Tuesdays, will reach for the historical objection. Every genuine expansion of political power has come at a price measured in violence. The barricades were built, the Bastille was stormed, the tyrants were driven out. The argument that constitutional structure changes through institutional mechanisms — a variance appeal, a comment period, a reform act — is, on this view, a comfortable story that ignores how power actually moves.

That objection draws on a reading of history that is wrong in instructive ways.

Begin with Athens, where democratic governance is conventionally traced to its origin. The last ruler of Athens who preceded the democratic reforms was not a king. He was a tyrant — in Greek, *tyrannos* — a term with a precise and distinct meaning: a ruler who seized power rather than inherited it through dynastic succession. Herodotus refers to the Peisistratid family throughout his account as *tyrannoi*, never as *basileis* — kings. When Hippias, the last of the Peisistratid tyrants, was expelled from Athens around 510 BCE, a Spartan army carried out the expulsion. Democratic reform came from a separate event entirely: the people of Athens surrounding and besieging the Acropolis for two days, driving out a Spartan-backed faction that had attempted to install its own man in power, and forcing the return of Cleisthenes, who then reorganized the tribes of Attica and extended civic participation across the common population more broadly than had been done before. Athens was not a bloodless moment. What it establishes, precisely and only, is that democracy was not born by overthrowing a king. The assumed link between democratic governance and regicide is not history. It is myth.

France, on the other hand, is the case the objection thinks it is — and for that reason is this book's cautionary example rather than its inspiration. The Revolution of 1789 removed a king and dismantled the existing order. The result was not democracy. The

Committee of Public Safety, from 1793 through 1794, carried out systematic killing on a scale that historians call "the Terror". The Directory that came after was chronically unstable. In November 1799, Napoleon Bonaparte overthrew the Directory; within three years he was Consul for Life; within five he had declared himself Emperor of the French. France reached stable republican governance only with the Third Republic, established after 1870 — more than eighty years after the Revolution began. Violent rupture does not produce stable constitutional outcomes. It forfeits the constitutional moment, surrendering the question of legitimate governance to the dynamics of the rupture itself, which rewards those best at organized force rather than those with the most durable claim to govern.

The constructive evidence is in a different part of the record. The British Parliament enacted three Reform Acts across the nineteenth century (1832, 1867, and 1884) that progressively expanded the electoral franchise. All three were enacted by legislation: a vote in the House of Commons, a vote in the House of Lords, royal assent, and a new law. None required overthrowing a government. Two of them were accompanied by significant social upheaval. The Bristol Riots of October 1831, in which the Lords' rejection of an earlier reform bill produced several days of rioting, preceded the 1832 Act; the Hyde Park Riots of July 1866, when reform demonstrators broke into a closed public park and a police officer was killed, preceded the 1867 Act. In each case, social pressure and the parliamentary process operated simultaneously, and the parliamentary process changed the law. The mechanism survived the pressure surrounding it.

In the United States, the Thirteenth, Fourteenth, and Fifteenth Amendments — the most consequential constitutional expansion of the franchise — were ratified through constitutional process. They also followed the Civil War, the most destructive conflict in the nation's history. This isn't a refutation of the case for peaceful constitutional change. It is the case. The most important expansion of democratic participation in American constitutional

history required a war because the constitutional mechanism for resolving the underlying question had been blocked for decades. The catastrophic exception is not the method. It is what it costs when the method has been unavailable for too long.

The more recent record extends the pattern. Between 1974 and 1990, roughly thirty countries transitioned from authoritarian governance toward more broadly distributed political power. The dominant mechanism across those transitions was not armed uprising. It was negotiation, plebiscite, constitutional amendment, and managed transfer of authority — in Spain, in Poland, in Czechoslovakia, in Hungary, in Chile, where Pinochet lost the plebiscite written into his own constitution and accepted the result. These transitions occurred within environments that were often not peaceful; Lithuania's independence campaign endured a Soviet military assault that killed fourteen civilians; South Africa's negotiated constitutional settlement ran alongside years of mass political violence. The mechanism of transition was nonetheless constitutional in each case, and the pattern across those cases is consistent: even where the surrounding environment was violent, the mechanism of transition itself ran through negotiation and constitutional process, not the armed overthrow of the government in power.

The record shows peaceful constitutional change is normal, and the exception is what it costs when you wait.

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What follows is an argument about the design problem those two Tuesdays name. The preceding century of political theory asked mostly who should govern and how to check that authority. The question before a civilization whose governance infrastructure is increasingly computational is more specific: what can constitutionally be traded for what, across a new and longer menu of power types that the framers of existing constitutions couldn't have anticipated, and what principles of design prevent the

systems that mediate ordinary life from becoming systems that are accountable to no one.

Nora's second Tuesday is not a forecast. It is, in rough outline, a description of what some people's Tuesdays already look like and what more people's Tuesdays are becoming. The machinery is not the question. The constitution governing it is.

PART I

The Machine That Was Built

CHAPTER 1

The Jury Summons and the Kleroterion

THE ENVELOPE IS THE ORDINARY kind, windowed, with the county seal in the corner, and it sits in the mail between a utility bill and a catalog. A single sheet is inside, with a date, a time, a badge number, an address for a building most people have only driven past, and a paragraph about what happens if the recipient doesn't show up. There's a number to call the night before, because the case may settle and the whole thing may be canceled. There's a line about employers. There's a box to check for a hardship excuse, and a warning that hardship is narrowly defined.

Most people who receive it feel a small, specific dread. The day is lost, or the week. The parking will be difficult. The chairs will be hard. Then most of them go and sit in a room with strangers, and answer questions from lawyers about their jobs and their opinions and whether they know anyone involved, and a certain number of them are chosen.

Consider what the sheet of paper is asserting, and how remarkable it is to make without any argument at all: a person was selected from a list by chance. Not for expertise, not for character, not for having read anything, and not for having voted for anyone. That person will be seated in a room, shown evidence, made to listen to two trained advocates arguing opposite conclusions from the same facts, given as much time as the process takes, and asked, with the others chosen the same way, to decide whether someone goes to prison. Sometimes for life.

And the recipient, holding the envelope, considers that legitimate. More than legitimate: ask almost anyone whether they'd rather have their own fate decided by a roomful of strangers picked at random or by an appointed official, and most people's instinct is to choose the strangers. The intuition is strong, strong enough that the Constitution guarantees it,[1] and strong enough that a proposal to abolish the jury and let judges decide everything would strike most Americans as a step toward something they have a name for and don't want.

So most people already believe something they may or may not have ever said aloud, but it's worth articulating here: a stranger, chosen at random, given evidence, argument, and time, can be trusted with a decision that matters enormously, and that there's something about the randomness that makes the trust possible rather than undermining it. Nobody bought that seat. Nobody campaigned for it. Nobody owes anyone for it. The stranger will go back to their life when it's over.

That intuition is the subject of this chapter, and of a good deal of this book. Because for most of the history of the idea of democracy, that mechanism, more than the ballot, was the characteristically democratic one.

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Ask an American what democracy is and the answer comes fast: it's when people vote. Elections are the thing. A country with

elections is a democracy and a country without them isn't, and the argument about any particular country is an argument about whether its elections are real. That equation is so complete that it's hard to see it as an equation at all. It reads as a definition.

It isn't. It's a fairly recent settlement, and the people who invented the word would have found our equivalence strange.

The Athenians of the fifth and fourth centuries BCE, who gave the idea its name, ran their central administrative body by lottery. The Council of Five Hundred prepared the agenda for the Assembly, handled the day-to-day business of the city, received ambassadors, and supervised the magistrates, and its members were chosen annually by lot from candidates nominated in their home demes (the local districts of Attica), fifty from each of the ten tribes into which Cleisthenes had reorganized the population.[2] A man served for a year. He could serve a second year later, but not two in a row. For one tenth of the year his tribe's fifty members formed the standing committee that ran the city day to day, and then another tribe's fifty took over.[3] The reader should notice the shape of that arrangement: short terms, no consecutive terms, rotation by chance, a permanent churn of ordinary people through the machinery of government.

Most of the city's other offices worked the same way: the vast majority of the annual magistracies were filled by lot.[4] The exceptions are instructive. Generals and the other military officers were elected, as were a few specialist officials. It isn't hard to see why: a general has to know how to command an army, and nobody wanted a potter's name pulled from a jar to do that. Socrates made the case against the lot in just these terms, asking why anyone would choose a helmsman or an architect that way. The lot filled posts that mostly called for routine administration, and for those the assumption ran the other way: any citizen could do this, so any citizen might be asked to.

They built a machine for it. The *kleroterion* was a marble slab, about the height of a man, with five columns of narrow slots cut

into its face, each sized for a citizen's bronze plaque. Jurors who had turned up dropped their plaques into lettered chests at their tribe's gate, an archon drew ten of them, and each of the ten filled a column with the plaques from his chest. Beside the slab ran a tube. Black and white balls went into the top, and as each ball dropped out the bottom it decided the fate of one row across the slab: white and every man in that row was chosen, black and none of them was.[5] The white balls were exactly a fifth of the jurors needed, so the draw ran until the last one dropped. The machine, not a person, decided each row, at the tribe's own gate among the men who had come to be chosen.

That is why they built a machine. A lottery conducted by an official is a lottery you have to trust the official about. A lottery conducted by a visible mechanism is one you can watch. The Athenians understood the difference, and they spent the effort to make it clear.

A book that praises Athenian democracy cannot hide who that democracy excluded without forfeiting credibility, and an earnest account costs this argument nothing: full citizenship belonged to free adult men of Athenian parentage. After a mid-fifth-century law, both parents had to be citizens.[6] Women had no political voice. Enslaved people, who did much of the city's labor, had none. Resident foreigners, the *metics*, who ran much of its trade, had none. Children had none. The citizens who could vote in the Assembly were a minority of the people living in Attica: some thirty thousand adult men in the fourth century, no more than a tenth of the whole population.[7] Put another way, roughly nine people in ten had no say at all.

The argument here isn't that Athens was admirable. The argument is about mechanism. Inside the boundary of who counted, the Athenians answered the question "who should hold office" with "anyone, chosen by chance," and they built the institutions and the hardware to make that answer work. The boundary for

inclusion in government was indefensible, but the mechanism inside survives examination.

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Aristotle, with the Athenian example in front of him, recorded the standard Greek view of what made a constitution democratic and what made it something else. In the fourth book of the *Politics* he lays it out:

> the appointment of magistrates by lot is thought to be democratical, and the election of them oligarchical; democratical again when there is no property qualification, oligarchical when there is[8]

The word to watch is oligarchical. Not aristocratic, which is the word modern retellings tend to substitute, and which Aristotle uses elsewhere in the same passage for a different combination. Oligarchical: rule by the few. In the typology Aristotle reports, choosing officials by election meant a constitution that put power in few hands, and choosing them by lot meant one that spread it across the many.

Two cautions are worth noting here, and Aristotle calls out the first. He writes "is thought to be democratical", not "is democratical". He's describing what Greeks generally believed, and his own preferred constitution used elections, so he's not condemning them.[9] The claim isn't that Aristotle proved elections are oligarchic. The claim is that the people who invented democracy understood elections as the other mechanism, the one that tended toward the few, and understood the lot as their own.

The second caution is about why. This isn't a metaphysical claim about the essence of voting. It's an observation about tendency, and the tendency has a mechanism. An election chooses the people voters can recognize. Recognition costs something: money to be seen, connections to be introduced, a name that already means something, the leisure to spend a season making

a case. Those costs fall unevenly, so elections, run long enough, tend to return people who could afford to be recognized. The lot doesn't ask to be recognized. It gives every eligible name the same chance regardless of wealth or fame, and it can't be bought, because there's nothing to buy.[10] The Athenians understood this in practice as well as theory, which is why they let the generals be elected and drew everyone else from the slab.

The envelope has already made this argument. The reason nobody objects that a juror wasn't chosen on merit is that not being chosen on merit is the point. A juror who had campaigned for the seat would be a juror with something to repay.

— ◆ —

The English word for choosing by lot is *sortition*, a word few Americans ever encounter, which itself is small evidence of how thoroughly one mechanism has crowded out the other in the modern vocabulary. Americans practice sortition every weekday in courthouses across the country, and have no ordinary word for it.

The jury is where a version of that mechanism still operates in American government: ordinary citizens, drawn at random from the community, deciding cases that matter. The founding generation regarded it as important enough to write into the Constitution and then, unsatisfied, to write in again in the amendments.[11] They had many reasons, and most of them come down to the same thing the Athenians built the *kleroterion* for: a decision made by people who couldn't be picked in advance is harder to buy.

Some who have actually served on a jury in the US may object here that modern jury selection isn't purely random. The names come from voter rolls and license records, which leave some people out. There are exemptions and excuses. And after the random draw comes the process the lawyers call *voir dire*, in which each side questions the candidates and removes the ones

it doesn't like, some for cause and some for no stated reason at all. All true. The mechanism has been filtered, and the filter is where a good deal of the contemporary argument about juries actually lives. But the argument doesn't need a pure lottery. It needs only what nearly everyone already concedes: that random selection is a legitimate way to fill a seat that decides something enormous, and that the randomness contributes to the legitimacy rather than subtracting from it. That concession stands whether or not the lawyers get their strikes.

So most Americans are in an unusual position. They hold, in the envelope, a working example of the mechanism the inventors of democracy considered its signature. They regard it as sacred, more or less, and would resist its abolition. And they've almost certainly never thought of it as having anything to do with democracy, because democracy is elections, and this is something else.

It's the same thing, but the older mechanism. The jury summons is a *kleroterion* with a postage stamp.

This book won't argue that elections should be abolished, or that juries should run the government. What it will do, across the chapters that follow, is treat how a decision gets made as open rather than settled, and it can only do that if the reader first accepts that the ballot is one answer among several. The Athenians had at least two. The Framers, as the next chapters show, had a specific reason for choosing the one they chose, and the reason had an expiration date.

For now, one thing is enough. Elections and democracy are not synonyms. The envelope was democracy the whole time.

NOTES

1. National Archives, "The Constitution of the United States: A Transcription," archives.gov, n.d., https://www.archives.gov/founding-docs/constitution-transcript (U.S. Const. art. III, § 2, cl. 3); U.S. Const. amend. VI; U.S. Const. amend. VII. Accessed 5 Oct. 2026.

2. Aristotle. *The Athenian Constitution* (*Athenaion Politeia*). Trans. F.G. Kenyon. London: G. Bell and Sons, 1891. Ch. 21. Project Gutenberg,

https://www.gutenberg.org/files/26095/26095-h/26095-h.htm. Accessed 11 Sept. 2026. Aristotle records that Cleisthenes "made the Council to consist of five hundred members instead of four hundred, each tribe now contributing fifty."

3. Aristotle. *The Athenian Constitution*. Trans. Kenyon. Ch. 43, confirms the prytany system: each tribe's fifty councillors served in rotation as the city's standing committee. Aristotle, *Athenaion Politeia*, ch. 62, Perseus Digital Library, Tufts University, http://www.perseus.tufts.edu/hopper/text?doc=Perseus:text:1999.01.0046:chapter=62, accessed 2026-10-04, confirms a councillor could serve a second term ("a man may become a member of the Council twice"). Hansen confirms the rest: a citizen could be a councillor twice, though not in successive years, and the first chance to serve came just past thirty (p. 249), and each tribe's contingent of fifty served as the Council's executive committee for a tenth of the year, the order settled by lot (p. 250). Hansen, Mogens Herman. *The Athenian Democracy in the Age of Demosthenes: Structure, Principles, and Ideology*. Translated by J. A. Crook, U of Oklahoma P, 1999, pp. 249–250. Originally published by Blackwell, 1991. Hansen adds that some small demes could not find enough candidates and infers that the Council was recruited from "a mixture of volunteers and – more or less – conscripts" (p. 249).

4. Aristotle. *The Athenian Constitution*. Trans. Kenyon. Ch. 43: "All the magistrates that are concerned with the ordinary routine of administration are elected by lot, except the Military Treasurer, the Commissioners of the Theoric fund, and the Superintendent of Springs… All military officers are also elected by vote." Aristotle, *Athenaion Politeia*, ch. 61, Perseus Digital Library, Tufts University, http://www.perseus.tufts.edu/hopper/text?doc=Perseus:text:1999.01.0046:chapter=61, accessed 2026-10-04, confirms generals, taxiarchs, and cavalry commanders were elected "by show of hands" rather than by lot. Hansen, *Athenian Democracy*, p. 230, puts "the vast majority" of Athenian magistrates by lot. For the aggregate, he estimates some 600 magistrates besides the 500 councillors chosen by lot and about 100 by election, up to 700 in all, against the 350 or so usually posited (pp. 230, 240). Hansen also reports Socrates' objection that no one would choose a helmsman or architect by lot (p. 230), and says the lot-filled posts mostly called for administrative tasks not requiring a high level of special skill (p. 239).

5. Hansen, *Athenian Democracy*, pp. 197–199 (the daily allotment of jurors) and 231 (the bronze plaques), and the Glossary, p. 397, s.v. "Kleroterion." Hansen dates the daily lot to the 370s (pp. 197–198). His source for the procedure is Aristotle, *Athenaion Politeia*, chs. 63–66, which Kenyon's translation renders with tickets, dice, and acorns; see Perseus Digital Library, Tufts University, http://www.perseus.tufts.edu/hopper/text?doc=Perseus:text:1999.01.0046:chapter=63, accessed 2026-10-04.

6. Aristotle. *The Athenian Constitution*. Trans. Kenyon. Ch. 26: "no one should be admitted to the franchise who was not of citizen birth by both parents."

This is Pericles' citizenship law of 451 BCE, not part of Cleisthenes' original reforms.

7. Hansen, *Athenian Democracy*, pp. 88–94, 328. Hansen puts the adult male citizen body of fourth-century Attica at some 30,000, at least, against the 20,000 or so that some historians have suggested (pp. 92–94, 328), and says that figure was no more than a tenth of the whole population of Attica and a fifth of the adult population (p. 94). He records a lower estimate of about 21,000 by Ruschenbusch (p. 328, n. 36).
8. Aristotle. *Politics*. Trans. Benjamin Jowett. Oxford: Clarendon Press, 1885. Bk. 4, pt. 9 (1294b). The Internet Classics Archive, Massachusetts Institute of Technology, http://classics.mit.edu/Aristotle/politics.4.four.html. Accessed 22 Oct. 2026.
9. The Greek is *dokei*, "it is thought." In the same passage Aristotle describes as "aristocratical or constitutional" the combination of elected offices with no property qualification, so his own usage connects election to aristocracy as well as to oligarchy; the primary term at 1294b is nonetheless *oligarchical*. He restates the typology at *Politics* 4.1298b. The edition is Benjamin Jowett's translation of the *Politics*.
10. The mechanism, rather than any essential property of elections, is the point. This book states the tendency and its cause and does not state the conclusion as a categorical truth.
11. National Archives, "The Constitution of the United States: A Transcription" (U.S. Const. amend. VI; U.S. Const. amend. VII).

CHAPTER 2

A Brilliant Machine for 1787

THE POCKET EDITION OF THE US Constitution fits in a shirt pocket, which is the point. Civic organizations hand them out at naturalization ceremonies and county fairs; members of Congress keep them on the desk to wave during speeches; a certain kind of grandparent gives one to a certain kind of grandchild. The paper is thin. The type is small. The entire original document, from "We the People" through the last signature, runs about four and a half thousand words.[1] A reader who sits down with it after dinner will be finished before the coffee is cold.

Most people who own one have never done that. The document is venerated more than it's read, and the veneration has a particular shape: it's about freedom, in the abstract, as if the thing in the shirt pocket were a declaration rather than a design. But the Declaration is a different document, written earlier, by a different body, for a different purpose. The Constitution isn't a statement of ideals. It's a set of instructions for building a machine, and meant to be read the way an engineer reads a

blueprint: what problem was this built to solve, and does the design solve it.

Read that way, the pocket edition turns out to address three problems, each of them concrete, each of them a matter of life and death in the eighteenth century, and none of them specifically about "freedom" the way we think of it today.

— ◆ —

The first problem was how to replace a ruler without killing him.

For people who grew up in the twentieth and twenty-first centuries, it can be hard to imagine that was an unsolved problem in 1787, because the solution has become so routine that Americans hold it every four years without thinking of it as a solution to anything. But the founding generation grew up under a monarchy, read their history, and knew the standard menu. A king ruled until he died. If he ruled badly, the alternatives were to wait, petition, or rise up, and rising meant war. Across most of recorded history, the transfer of supreme power from one person to the next was the single most dangerous moment a state could pass through. Successions started wars and ended dynasties. The question "what happens when this ruler is gone" had, in most places and most centuries, no peaceful answer.

The machine's first design decision was a fixed term. The executive would hold office for four years, then face election again. The legislature would turn over on its own clock; and no one would hold anything for life except the judges, who held no army. Read as engineering, that's a removal mechanism that doesn't require a corpse. The country would replace its rulers the way a clock replaces its hours, on schedule, without ceremony, and the question of what to do about a bad one would have a date attached rather than a body count.

That's the entire first problem, and it has little to do with freedom in the grand sense. It's a plumbing solution, routing the pressure that used to build up under a lifetime ruler into a

regular, bounded release. The Framers weren't primarily trying to make people free. They were trying to make sure that the ordinary business of changing who governs stopped being an occasion for bloodshed.

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The second problem was faction. This is where the historical observer can watch the machine's chief designer think.

In November 1787, during the campaign to persuade New York to ratify the Constitution[2], James Madison wrote the tenth Federalist essay. It's the most famous of the series because Madison states a problem he doesn't think can be fixed, unusual for a political writer, then designs around it anyway.

The problem is faction. People form groups, the groups want things, and what they want is often at other people's expense. Madison defines it as "a number of citizens, whether amounting to a majority or a minority of the whole, who are united and actuated by some common impulse of passion, or of interest, adversed to the rights of other citizens".[3] He locates the deepest cause of this in "the various and unequal distribution of property", which in turn arises from "the diversity in the faculties of men": people differ, they acquire differently, and they organize to protect what they've acquired.[3]

A lesser designer would have tried to remove the cause. Madison considers that and rejects it in a sentence, because removing the cause means removing liberty, which is worse than the disease. So the design must control the effects. "The CAUSES of faction cannot be removed," he writes, and "relief is only to be sought in the means of controlling its EFFECTS."[4] The capitals are his.

The mechanism he proposes is size. A small democracy, where citizens govern directly, is helpless against a majority faction, because a majority in a room can do what it likes to the minority in the room and there's nowhere for the minority to go. A large

republic behaves differently. "Extend the sphere, and you take in a greater variety of parties and interests; you make it less probable that a majority of the whole will have a common motive to invade the rights of other citizens."[3] The more interests you pack into a single political system, the harder it becomes for any one of them to assemble a durable majority against the rest. Scale, which the conventional wisdom of the day considered fatal to a republic, becomes its protection.

And representation does a second job that Madison names carefully. Elected representatives, chosen across many districts with many interests, will tend to "refine and enlarge the public views", filtering the passions of the moment through people who have to answer to a broad constituency rather than to a crowd.[3] Hold onto that sentence, because chapter 7 will expand on it: Madison gave two reasons for representation, and only one of them was about distance.

He closes with a line engineers will recognize: "In the extent and proper structure of the Union, therefore, we behold a republican remedy for the diseases most incident to republican government."[3] The disease is native to the form, so the remedy is built into the structure.

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The third problem was scale itself, and it's one that's easy to overlook, because the country's size has become invisible the way the four-year term has.

In 1787, the conventional view came from the Greek and Roman examples that every educated man had read: a republic could only work small. A republic was a city and its surrounding fields. Anything larger became an empire, and empires had emperors. The territory the Framers were trying to govern ran over a thousand miles along the Atlantic coast and an unknown distance inland, with a population of a few million,[5] scattered thinly, most

of them on farms, reachable only by roads that were mud for half the year. No republic in history had governed anything like it.

Size, Madison's answer to faction, is also the beginning of an answer to scale, but the machine needed more than an argument. It needed a structure that could actually operate across that distance. That component of the design has two parts. The first is representation: rather than gathering citizens, gather a small number of people they choose, and let those few do the work in one place. The second is federalism: leave most of governing where it already was, in the states, and give the center only what the states couldn't do alone. Both are ways of making a large population across a vast area governable by not trying to govern all of it from one point.

Chapter 4 will take up the first of these in detail, because representation was a solution to a technical constraint as much as a political one, and the constraint has since disappeared. For now it's enough to see that the Framers faced a scale problem no one had solved, and solved it, and that the solution was structural rather than inspirational.

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Beneath all three problems runs a single engineering principle, and Madison states it in the fifty-first essay.

The essay is about keeping the parts of the machine from merging. Separate powers on paper mean nothing if the people holding them can quietly combine, so the design has to give each part a reason to resist the others. "The great security against a gradual concentration of the several powers in the same department," Madison writes, "consists in giving to those who administer each department the necessary constitutional means and personal motives to resist encroachments of the others." Then the sentence you may have seen on a poster: "Ambition must be made to counteract ambition."[6]

It's usually read as a statement about checks and balances, three branches watching each other, but it's more specific than that. Madison isn't counting branches. He's describing a conversion problem and blocking it. The danger he names is "gradual concentration": power that starts in one place and drifts, quietly, into another, until the separation exists only on paper. His fix is to tie each officeholder's personal interest to the boundaries of their own office, so a senator gains nothing by letting the executive absorb the Senate's role and loses something by allowing it. Madison continued, "The interest of the man must be connected with the constitutional rights of the place." Power in one seat is made structurally unwilling to become power in another.

That's a design pattern. The rest of this book is about that design pattern. The next chapter shows that the Framers applied it explicitly, in named clauses, to the specific kinds of power they knew. This chapter only needs to plant it: the machine wasn't built merely to divide power. It was built to keep divided power from recombining.

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Then the last thing — why this chapter exists.

The machine worked. It's easy to say that in the tone of a eulogy, and this book doesn't mean it that way. It means it as an engineering assessment. The succession problem was solved: for more than two centuries the country has replaced its rulers on schedule, and the transfers have been, with one catastrophic exception the foreword has already named, peaceful. The faction problem was managed rather than solved, which was all Madison ever claimed: no single interest has held the whole system for long, and the sphere kept extending, and the extension kept doing what he said it would. The scale problem was solved so completely that the country grew far past anything the Framers had mapped, in territory and in population alike, and the structure held.

None of that happened by luck. It happened because a group of people identified three specific failure modes of self-government, designed a mechanism to address each, and wrote the design down in language plain enough to fit in a shirt pocket. A reader who feels the founding document being sneered at is right to close the book, and this book won't give them cause. The Constitution isn't the problem the following chapters describe. It's the standard they're held to.

But a machine built for a purpose is built for a particular purpose, and its designers, however brilliant, could only design against the failures they could see. The next chapter looks closely at what they could see. Chapter 5 looks at what they couldn't, because it hadn't been invented yet.

NOTES

1. National Archives and Records Administration, "Constitution Questions and Answers," archives.gov, n.d., https://www.archives.gov/founding-docs/constitution-q-and-a. Accessed 5 Oct. 2026.
2. Madison, James. "Federalist No. 10." *New York Packet*, 23 Nov. 1787 (first published Nov. 22–23, 1787; dates vary by printing). Repr. in *The Federalist*. Ed. George W. Carey and James McClellan. Indianapolis: Liberty Fund, 2001 (the Gideon Edition). Avalon Project, Yale Law School, https://avalon.law.yale.edu/18th_century/fed10.asp. Accessed 19 Sept. 2026. Authorship is uncontested. The text quoted here is the Avalon transcription.
3. Madison, "Federalist No. 10."
4. Madison, "Federalist No. 10." Capitalization as in the original.
5. U.S. Census Bureau, "1790 Census," census.gov, https://www.census.gov/programs-surveys/decennial-census/decade.1790.html. Accessed 5 Oct. 2026.
6. Madison, James. "Federalist No. 51." 6 Feb. 1788. Avalon Project, Yale Law School, https://avalon.law.yale.edu/18th_century/fed51.asp. Accessed 19 Sept. 2026. The Avalon Project prints the essay as "Hamilton or Madison," reflecting a longstanding historical dispute over attribution; scholarly consensus assigns it to Madison, and this book follows that consensus. It is not attributed to Hamilton.

CHAPTER 3

The Menu of Power in 1787

No American can be made a duke.

It's a small oddity, and most people have never thought about it, because it never comes up. There's no office to apply to. There's no ceremony, no register, no form. A person can become extraordinarily rich in the United States, can hold high office, can found a dynasty of the informal kind, with the family name on hospitals and the grandchildren on boards, and at no point in any of that does the law offer a way to convert what they have into a title that their descendants would inherit by right. It's not that nobody has wanted it. It's that the document in the shirt pocket forbids it. In fact, it forbids it twice: once for the federal government, and again, separately, for the states.

Ask why, and the answer opens onto the subject of this book.

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The previous chapter ended with Madison's design principle: ambition made to counteract ambition, the interest of the man connected to the rights of the place, so that power in one seat can't quietly become power in another. That was the principle in the abstract. This chapter is about the places where the Framers applied it concretely, in named clauses, to the specific kinds of power they knew about.

Keep the word *conversion* in mind while reading these provisions. Each one targets a particular kind of exchange: a way one form of power might be traded for another. The Framers weren't only dividing authority among branches. They were identifying the currencies in which authority could be bought, and closing the exchange windows they could see.

Start with the sentence that forbids the duke. It sits in Article I, the article about Congress, in the section listing things Congress may not do:

> No Title of Nobility shall be granted by the United States: And no Person holding any Office of Profit or Trust under them, shall, without the Consent of the Congress, accept of any present, Emolument, Office, or Title, of any kind whatever, from any King, Prince, or foreign State.[1]

Read it slowly, because it's doing two jobs, and the fact that it does both in one sentence is genuinely elegant.

The first half stops *status* from becoming *heritable authority*. A title of nobility is a device for turning what a person has now into a claim their children hold later, backed by the state. The Framers had grown up inside a system built on that device, and they removed it. Whatever an American accumulates, they accumulate for one lifetime, and the law won't sign a paper saying their grandson is a lord.

The second half stops *money* from becoming *political loyalty*. An officer of the United States may not accept a gift, payment, position, or title from a foreign ruler or state without Congress's

consent. The word *emolument* is obscure today. In the eighteenth century it meant, roughly, a payment or benefit attached to a position, the profit of an office. The clause says an American official's loyalty isn't for sale to a foreign government, and that it doesn't matter whether the price is paid in cash, a knighthood, or an office, because the clause names all three.

Those two prohibitions could have been two clauses, but they're one. The Framers put "no title of nobility" and "no foreign emoluments" in the same breath because they saw them as the same problem: converting one kind of advantage into another that the constitutional design was supposed to keep out of reach. Status into inheritance, money into allegiance. The shared sentence is itself the argument. They weren't thinking about nobility as a quaint European custom and foreign bribery as a separate matter of corruption. They were thinking about power changing form, and they wrote a single sentence against it.

The states got the same instruction, in the next section, in the middle of a longer list of things no state may do: "No State shall … grant any Title of Nobility."[2] The federal ban alone would have left a gap; a state legislature could have created its own aristocratic peerage. The Framers closed that too.

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The second exchange window is in Article II, the article about the President, and it's aimed at the same currency from the other direction:

> The President shall, at stated Times, receive for his Services, a Compensation, which shall neither be encreased nor diminished during the Period for which he shall have been elected, and he shall not receive within that Period any other Emolument from the United States, or any of them.[3]

The Foreign Emoluments Clause stops other countries from buying the loyalty of American officials. This one stops the American

government itself, or any state, from buying the President's loyalty. The pay is fixed for the term. Congress can't raise it as a reward or cut it as a punishment, and no state can slip the President a benefit on the side. The design intent is plain: the executive should have no financial reason to favor the legislature, or Virginia, or anyone with a treasury. Money is again being stopped from becoming influence over a specific office.

The clause is narrower than a modern reader might expect: it binds only the President, not other officers, and it addresses what the President receives *from governments*, federal or state. It says nothing about a President's private business income, a question the text simply doesn't reach.[4] The Framers closed the window they could see, which was a government paying its own chief executive on the side. They didn't write against arrangements they hadn't imagined.

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The third window is back in Article I, in the section about the members of Congress, and it's the one most directly about *office* as a form of power:

> No Senator or Representative shall, during the Time for which he was elected, be appointed to any civil Office under the Authority of the United States, which shall have been created, or the Emoluments whereof shall have been encreased during such time; and no Person holding any Office under the United States, shall be a Member of either House during his Continuance in Office.[5]

Again — two prohibitions in one clause, worth separating to unpack.

The second sentence is the one usually called the Incompatibility Clause: nobody may hold a federal office and a seat in Congress *at the same time*. A person who is an officer of the executive or the judiciary can't also be a legislator, and a legislator who takes such an office gives up the seat. The point is to prevent

one person from holding both legislative and executive power. It's the smallest, most literal form of separation of powers: not just different branches, but different people.

The first sentence, sometimes called the Ineligibility Clause, is subtler and aimed at a particular maneuver. A member of Congress may not, during the term they were elected to, be appointed to a federal office that was *created*, or whose pay was *increased*, during that term. The maneuver it forecloses is the legislator who votes to establish a well-paid post, or to raise the salary of an existing one, and then resigns to take it. Legislative power over the creation and funding of offices is being stopped from becoming personal profit from those offices.

This book has been describing this clause, in shorthand, as stopping legislative power from converting into executive office, and the shorthand needs a correction the Ineligibility Clause demands — it doesn't prevent a member of Congress from leaving to join the executive; that happens routinely and always has. It prevents holding both at once, and it prevents a member from being appointed to an office they enriched or invented while sitting. The conversion it blocks is precise: not *from legislator to officer*, but *from legislator to officer of one's own making, or while remaining a legislator*.[6] The Framers were precise with where they drew the bounds of that wall — not arbitrarily between the branches, but blocking specific paths by which a person might carry power from one to the other.

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Now step back and look at the list as a whole.

A title of nobility. A gift from a foreign prince. A raise voted for oneself. A side payment to the President. A seat in two branches at once. These are the exchanges the Framers wrote against by name. Lay them out and something becomes visible that isn't visible clause by clause: they are all conversions, and they are all conversions between items on a particular menu.

The menu of power types in 1787 was short, and every educated person of the period could have recited it. There was *land*, which was wealth and also, through the property franchise, a claim on the vote. There was *office*, appointed or elected, with its emoluments. There was *arms*: the militia, the army, the ability to compel. There were *votes*, the new currency the Constitution itself was minting. And there was *the pulpit*, whose hold on conscience was itself a form of authority. Land, office, arms, votes, and the pulpit. That was the whole board.

Each clause in this chapter closes an exchange between two squares on that board. Nobility converts wealth or office into heritable status; closed. Foreign emoluments convert a foreign treasury into an American officer's loyalty; closed. The Ineligibility Clause converts a legislative vote into a personal salary; closed. The Domestic Emoluments Clause converts a government's purse into the President's gratitude; closed. Incompatibility converts one branch's office into a foothold in another; closed. You can draw the rest of the lines yourself. The Framers did.

Before this chapter closes, two honest accounts about what the clauses don't do are in order.

First, they don't stop private accumulation. The nobility clauses prevent the *government* from conferring heritable titles. They say nothing about a family becoming very rich and staying very rich for generations, or about the informal deference that attaches to a name. The Framers closed the state's hand; they didn't reach into the private economy, and they didn't try to.[7]

Second, they don't reach everything even on their own menu. The emoluments clauses catch payments from governments and from foreign courts. They don't catch, and never were meant to catch, the ordinary ways that wealth and influence found each other in a commercial republic. The Framers weren't naive about that. They were writing a government's constitution, not a professional code of ethics, and they aimed at the exchanges that could subvert the structure itself: a bought officer, a bought President, a

hereditary caste, a legislator on the make. The structural threats got clauses.

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The point of this chapter is not that the Framers were ahead of their time. It's the opposite, and it's more instructive — they were exactly *of* their time. They looked at the kinds of power that existed in 1787, they asked which conversions between those kinds would break the machine, and they wrote sentences against each one. Anti-conversion is not a modern idea imposed on the document by people who want it to say something it doesn't. It's in the text, in the Framers' own words, in the section listing what Congress may not do and the section listing what the President may not receive. The design principle of the fifty-first *Federalist*, ambition set against ambition so that power stays where it was put, was applied in the constitutional text to money, status, and office, item by item.

What the Framers had was a shorter menu of power types, not a shallower insight.

This book hinges on that sentence. Everything before it is about a machine built for the purpose and serving it. Everything after it is about what happened to the menu. Because the board the Framers drew their lines on had five squares, the board has since acquired several more, and the sentences they wrote against conversion still reach only the squares that existed when they wrote them.

NOTES

1. U.S. Constitution, Art. I, § 9, cl. 8. National Archives, "The Constitution of the United States: A Transcription," https://www.archives.gov/founding-docs/constitution-transcript. Accessed 2026-10-04. The Foreign Emoluments prohibition and the No Title of Nobility prohibition are one clause, not two.

2. U.S. Constitution, Art. I, § 10, cl. 1 (excerpt). The full clause lists several state prohibitions; the nobility prohibition is one item in the list. National Archives, "The Constitution of the United States: A Transcription," https://

www.archives.gov/founding-docs/constitution-transcript. Accessed 2026-10-04.

3. U.S. Constitution, Art. II, § 1, cl. 7. National Archives, "The Constitution of the United States: A Transcription," https://www.archives.gov/founding-docs/constitution-transcript. Accessed 2026-10-04.
4. The Domestic Emoluments Clause addresses what the President receives from the federal government and the states; the constitutional text does not reach private business income. That question has generated legal controversy in recent administrations and is not settled by the text; this book does not discuss it.
5. U.S. Constitution, Art. I, § 6, cl. 2. National Archives, "The Constitution of the United States: A Transcription," https://www.archives.gov/founding-docs/constitution-transcript. Accessed 2026-10-04.
6. The Incompatibility Clause prevents simultaneous holding of legislative and executive or judicial office; the Ineligibility Clause separately prevents appointment to an office created or enriched during a member's term. Members of Congress may leave Congress to accept executive appointments.
7. The No Title of Nobility clauses (Art. I, § 9, cl. 8, cited in note 1, and Art. I, § 10, cl. 1, cited in note 2) bind only the federal and state governments: they prevent those governments from conferring heritable titles. They say nothing about private accumulation of wealth across generations or about the informal social influence that attaches to a prominent name.

CHAPTER 4

Compression

A LETTER IN 1787 WAS a folded sheet of paper, sealed with wax, and it moved at the speed of a horse. If the news was urgent, the sender dispatched a rider directly. Otherwise it went on the stagecoach — which was, by the standards of the day, fast, and still ran at the pace of the horses pulling it. A letter heading south from Boston to Philadelphia added another leg. In winter, on roads that turned to mud between one state and the next, it took longer.

The summer of 1775 offers a documented measurement of the same corridor, traveled in the other direction. On June 23, George Washington left Philadelphia heading north. His appointment as Commander-in-Chief of the Continental Army was eight days old, and the army was waiting for him at Cambridge, Massachusetts. He didn't travel alone or in haste. The Continental Congress sent him north with an escort: General Charles Lee, General Philip Schuyler, aide Thomas Mifflin, and the rest of an official party, making formal stops in New York and at towns

along the route to receive ceremonial welcomes. They arrived at Cambridge on July 2 — nine or ten days out from Philadelphia, on summer roads in good conditions, with the resources of a nation paying for the trip.[1]

Nine or ten days. That's the speed of something important, traveling on the continent's best-connected corridor in the most favorable season. It's also approximately the speed of a letter covering the same distance going the other way.

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In 1790, the country those roads connected was a long, thin strip of land.

The first federal census, conducted that year as the Constitution required, counted 3,929,214 residents.[2] The number needs an honest annotation — it includes nearly seven hundred thousand enslaved people, counted as three-fifths of a free person for the purpose of apportioning seats in the House of Representatives — that formula is in the text of Article I, Section 2, Clause 3.[3] Enslaved people couldn't vote, held no citizenship the law recognized, and had no representatives who spoke for them in any direct sense. Any accounting of how many citizens the first Congress represented has to start from a total that, on its face, overstates the free population by roughly a fifth.

Nearly ninety-five percent of the people the census counted lived in places the Census Bureau's historical classification called rural, a definition the Bureau applied consistently back to this first count.[4] Only two cities in the country held more than 25,000 people, and Boston, the third-largest, had just over 18,000.

Put those figures on a map and what you get isn't a nation so much as a coastline: a thin, discontinuous scatter of settlements, almost all of them agricultural, strung along more than a thousand miles of Atlantic shore. The bulk of the population lived where they'd been born, on farms they rarely left, receiving news when it arrived by rider or coach from somewhere else.

The stagecoach schedule was the fastest available information network, and it took more than a week to carry information along the best-connected corridor in the country.

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The Framers faced a design problem: the new government had to make decisions that applied to people in Georgia and people in New Hampshire, separated by more than a thousand miles of the same roads Washington had just spent nine or ten days crossing a portion of. Governing them meant consulting them, at least in principle — knowing what they wanted, what they'd accept, what they needed the government to do. There was no shortcut. The information had to move.

You can't ask nearly four million people a question and get a useful answer when moving the question from Boston to Philadelphia takes more than a week, and moving the answer back takes as long again. You can't hold a national vote across a territory that requires nine or ten days to cross at official speed. The obstacle isn't willingness, literacy, or political theory. It's geography and physics. Nine days is nine days.

The engineering answer to that constraint is *compression*.

Citizens, spread along a thousand miles of coast, choose a small number of people to act for them. Those people travel to one place. Those few make the decisions. Information moves in a narrow band — from district to representative, from representative to capital, from capital back to district — rather than between every citizen and every other. Parties, districts, campaigns, and the four-year cycle are the architecture of that compression: the mechanisms for selecting which nodes carry which signals, and for adjusting the assignment over time.

The Constitution designed the first House of Representatives with sixty-five seats. The apportionment is written into the constitutional text: New Hampshire was entitled to three members, Massachusetts to eight, and on through the list to Georgia's three,

arithmetic that sums to sixty-five.[5] When the First Congress convened in 1789, only fifty-nine of those seats were filled. North Carolina and Rhode Island hadn't yet ratified the Constitution, so their combined six seats sat empty until each state joined, later that year and the next.[6] Fifty-nine people, meeting in New York's Federal Hall, making decisions for nearly four million.

The sixty-thousand-people-per-representative ratio of the first House wasn't fixed. The Constitution set only a ceiling of one representative for every thirty thousand people, and the House grew to 105 seats after the 1790 census. The principle behind the ratio was fixed. Representation was the design. The physical world couldn't sustain any other answer. That isn't the whole reason the Framers chose it, as the next paragraphs show, but it is the part that has changed.

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Bandwidth was a binding constraint, but it wasn't the only reason the Framers chose representation. In the tenth Federalist essay — the text is quoted in Chapter 2 — Madison gave a second argument that has nothing to do with travel times or census geography. Elected representatives, chosen from broad constituencies, would, he wrote, "refine and enlarge the public views": they'd filter the passions of the moment through people who had to think, hear the other side, and answer to a district rather than a crowd.[7] That argument is about the quality of deliberation. Remove the mud roads, speed up the mail, and it still stands. A poll of millions that resolves in four seconds and records uninformed immediate reactions isn't a better legislature; Madison's second reason for representation outlasts the disappearance of stagecoaches.

The two arguments point to the same design, but they're distinct, and only one depends on geography and physics. Chapter 7 takes up which one changes when the physics changes, and which doesn't.

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Historians have studied how information moved through that early network. Pred's 1973 study of the US urban system from 1790 to 1840 examines the time lags in news between American cities.[8] John's 1995 history of the American postal system covers the same period from the institutional side: how Congress shaped the postal network through the Post Office Act of 1792, and what that network meant for American public life.[9] Neither author was writing about constitutional design. Both were writing about information infrastructure, and they were building on the floor the Framers had built.

That floor was a stagecoach schedule. The sixty-five seats of the first House of Representatives were the structure built on it. The design fit the floor. That isn't a criticism of the design; it's a description of it, and an accurate description of a brilliant piece of engineering is the only useful kind.

The floor has since been replaced. The bandwidth constraint that made compression the only available architecture is gone — not eased, not improved, but removed. Chapter 7 takes up what went with it. What didn't go with it is equally worth following, because not every reason to compress depends on horses. Delegation solved a constraint, and constraints change.

NOTES

1. Journal of the American Revolution (allthingsliberty.com). "Summer 1775: Washington Takes Command of the Continental Army." Aug. 2025. https://allthingsliberty.com/2025/08/summer-1775-washington-takes-command-of-the-army/. Accessed 19 Sept. 2026. Departure June 23, arrival July 2, confirmed independently by New England Historical Society, "George Washington Arrives in Cambridge to Take Command," https://newenglandhistoricalsociety.com/george-washington-arrives-cambridge-take-command/, and U.S. Army, "Washington Takes Command of Continental Army in 1775," https://www.army.mil/article/40819/washington_takes_command_of_continental_army_in_1775. All accessed 19 Sept. 2026. Washington was appointed Commander-in-Chief on June 15, 1775, and formally assumed command on July 3. The destination was Cambridge, Massachusetts — the Continental Army's encampment at

Cambridge Common — not Boston proper; the two cities are adjacent but distinct.

2. U.S. Census Bureau. "Decennial Census: 1790." United States Census Bureau. https://www.census.gov/programs-surveys/decennial-census/decade.1790.html. Accessed 19 Sept. 2026. New York had 33,131 residents, Philadelphia 28,522, and Boston 18,320.

3. U.S. Constitution, Art. I, § 2, cl. 3. National Archives, https://www.archives.gov/founding-docs/constitution-transcript. Accessed 19 Sept. 2026. The clause counts "three fifths of all other Persons" (i.e., enslaved people) for the apportionment of representatives and direct taxes. The 697,681 figure is from the 1790 census enumeration as recorded in Census Bureau historical tables.

4. U.S. Census Bureau, "Decennial Census: 1790". The 94.9% rural / 5.1% urban figures are from the Census Bureau's historical urban-rural series, which applies a consistent threshold of 2,500 or more residents for "urban" across all censuses back to 1790. This classification was developed in the 1930s and was not part of the original 1790 enumeration design.

5. U.S. Constitution, Art. I, § 2, cl. 3. The text reads: "New Hampshire shall be entitled to chuse three, Massachusetts eight, Rhode-Island and Providence Plantations one, Connecticut five, New-York six, New Jersey four, Pennsylvania eight, Delaware one, Maryland six, Virginia ten, North Carolina five, South Carolina five, and Georgia three." Arithmetic: 3 + 8 + 1 + 5 + 6 + 4 + 8 + 1 + 6 + 10 + 5 + 5 + 3 = 65.

6. North Carolina ratified the Constitution November 21, 1789; Rhode Island ratified May 29, 1790. Wikipedia, "1st United States Congress," https://en.wikipedia.org/wiki/1st_United_States_Congress. Accessed 19 Sept. 2026. After the 1790 census, apportionment was recalculated and the House expanded to 105 members. The First Congress convened on March 4, 1789.

7. Madison, James. "Federalist No. 10." *New York Packet*, 23 Nov. 1787. Avalon Project, Yale Law School, https://avalon.law.yale.edu/18th_century/fed10.asp. Accessed 19 Sept. 2026.

8. Pred, Allan R. *Urban Growth and the Circulation of Information: The United States System of Cities, 1790–1840*. Harvard Studies in Urban History, vol. 5. Cambridge, MA: Harvard University Press, 1973. xiv + 348 pp.

9. John, Richard R. *Spreading the News: The American Postal System from Franklin to Morse*. Cambridge, MA: Harvard University Press, 1995. xiii + 369 pp.

PART II

What Changed

CHAPTER 5

The Menu Got Longer

THE ADVERTISEMENT ARRIVES BEFORE THE decision does.

Everyone has a version of the story, and most are small. A pair of boots looked at once, on one site, that then appears in the margin of every other site for a week. A conversation about a trip, and then hotel prices. A product for a condition nobody has mentioned to anyone, and the uncomfortable sense that something has been inferred. You've been on the receiving end of it, and the reaction is usually a shrug, because it's only shopping and the boots were nice.

But stay with the moment for a second, because something happened in it that has no eighteenth-century equivalent at all. Somewhere, a system holds a record of what you looked at, for how long, at what hour, from where, alongside the same record for a very large number of other people, and it has learned, from the combination, what you're likely to want next. It didn't ask. It didn't need to. And it's usually right, which is why it's worth money, which is why it exists.

That's the object of this chapter: not any particular company or product, but your own experience of being predicted. Chapter 3 laid out the menu of power the Framers knew and the clauses they wrote against converting one item into another. This chapter is about the items added to the menu since, and the clauses that haven't.

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First, a brief recap of chapter 4's central point, because this chapter builds on it.

The Framers chose representation for two reasons, and only one was that they had no choice. The other was Madison's argument about refining public views. The only mechanism available in the eighteenth century to consult a few million people scattered along a thousand miles of coast would take weeks of effort each time a question was posed to them. So the machine compressed: citizens chose a small number of representatives, the representatives went to one place, and the representatives decided. Representation was, among other things, an answer to a bandwidth problem. Mind that word, *compression*, because this chapter is about what happened when the bandwidth problem went away and took several other constraints with it.

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Three kinds of power exist now that didn't exist in 1787. None of them feel exotic. You touch all three every day.

The first is *computation*: the ability to perform, cheaply and at scale, calculations that no number of clerks could have performed at any price. This sounds like a description of a tool rather than of a power, and for a long time it was one. It stopped being one when the calculations started producing decisions. A system that can score every application, rank every candidate, route every notice, and price every risk, in the time it takes to

read this sentence, isn't a faster clerk. It's a new kind of actor in the machinery of governing, and the power it confers belongs to whoever runs it.

The second is *population-scale behavioral data*: not records about people, which have always existed in ledgers and censuses, but continuous observation of what people *do*, aggregated across most of a society and retained. The eighteenth century could count you. It couldn't watch you, and it certainly couldn't watch everyone at once and compare. That's what the boots in the margin mean. The system that placed them there knows something about you that you didn't tell it, and it knows the same about a very large fraction of the people in the country.[1]

The third has no simple name yet, so it needs explaining before it gets one. It's the set of systems that decide what a person sees: which items appear, in what order, with what prominence, and which never appear at all. Every search result is an instance of it. Every feed is. Every recommendation, every "you might also like," every notification that arrives and every one that doesn't. For most of human history the question of what a population knew was answered by geography, by pulpits, and later by presses and broadcasters, each of them visible and arguable with. The systems that answer it now are neither. They're calibrated to each person, they change constantly, and their operators may not fully understand why a given item rose or fell. Sometimes this is called a *filter bubble*, but that term doesn't quite capture the nuance. This book will call it *epistemic infrastructure*: the plumbing of what people know. It's a mouthful, chosen because ordinary terms — the media and the press — describe the old thing, not this one, and filter bubble suggests only the result, not the infrastructure that causes it.

Computation, behavioral data, epistemic infrastructure. Three items on the menu of power that the board in 1787 didn't have.

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Now return to Chapter 3's list of clauses and look for the one that addresses any of these.

A sentence forbids a foreign prince from paying a federal officer. Another sentence fixes the President's salary so no state can slip the President a benefit. Another stops a legislator from voting themself a job. There's a sentence, twice, saying nobody can be made a duke. Each one is a precise instrument aimed at a precise conversion between two of the five kinds of power the Framers could see.

No sentence describes an entity that holds a behavioral profile of nearly every adult in the country. Nothing says who may own the systems that decide what a citizen is shown, what those systems may be used to do, or whether the people they act on may see why. There's nothing about computation as an instrument of government at all, for the same reason there's nothing about aircraft: it didn't exist, and constitutions are written against the failures their authors can imagine.

This isn't a criticism of the document. The point of chapter 3 was that the Framers were exactly of their time, and that the anti-conversion principle in the text is real and deliberate. This chapter's point is narrower and, in a way, harder to answer than a criticism would be. The machine has no part for these things. Not a broken part, not an inadequate part. No part. The Framers' clauses still work perfectly on the exchanges they name, and the exchanges that matter most now aren't among them.

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You may feel, at this point, that the argument has drifted into speculation. It hasn't. This is why.

The apparatus described above isn't a suspicion. It's a product category, and it advertises itself. The prediction of what people will do next, from what they've done before, is sold openly as a service, described in plain language on the websites of the companies that provide it, and bought by other companies as a

routine cost of doing business. You don't have to take this book's word for what it can do. The people selling it explain it on their own websites and in their marketing materials.[2]

That's why this book leads with the commercial apparatus rather than with governments. A book that opened with state surveillance would invite you to file it under a familiar heading and decide, according to your prior loyalties, whether to be alarmed. The commercial version has no such heading. It's just shopping. And it establishes, without any appeal to fear, that the three new kinds of power are not hypothetical: they're deployed, at population scale, in your own life, by organizations that describe what they do in their own marketing language.

State capability is then the confirmation rather than the premise. The same tooling that places the boots in the margin can, in other hands, detect a gathering before it forms, personalize a message to each person who might join it, and decide which of them sees what. Freedom House, which has assessed internet freedom in dozens of countries every year for more than a decade, reported in its most recent edition a fifteenth consecutive year of global decline, with people arrested or imprisoned for online expression in most of the countries it assessed, and identified the indicator tracking manipulation of online information by the government or other powerful actors as the one that has "undergone the most consistent global decline over the past 15 years".[3] This book returns to that report in Part III. Here it's cited for one thing only: the tooling is in government hands too, in many countries, and it's being put to use.

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One more piece of evidence carries unusual weight because it comes from an institution with no stake in this book's argument.

The Venice Commission is the Council of Europe's advisory body on constitutional matters; its full name is the European Commission for Democracy through Law. In 2016, it adopted

a document called the Rule of Law Checklist, which has since become a standard diagnostic instrument: a structured set of questions a country can be measured against to assess whether the rule of law is in working order. The 2016 Checklist organized itself around five benchmarks: legality, legal certainty, prevention of abuse of power, equality before the law, and access to justice. It was, in the way of such documents, about the *state*. It asked whether governments made law properly, applied it predictably, and could be held to it. It mentioned the privatization of public functions. It didn't address private entities that accumulate power comparable to a state's, and it didn't address digital platforms or automated systems at all.[4]

In December 2025, the Commission adopted an updated Checklist, and the update lands directly in the center of this book's argument.[5] For the first time, the document extends rule-of-law obligations past the state. It requires that private entities performing public tasks be subject to rule-of-law requirements, with effective judicial review of their decisions. It calls for online platforms with major social impact to establish frameworks to ensure rule-of-law compliance. It addresses the governance of AI systems so that they don't undermine rule-of-law principles, and it draws a line between automated systems that *assist* judicial administration and automated systems that *make* judicial decisions, prohibiting the latter outright. It added two new benchmarks to the original five: checks and balances, and constitutional review.

Those two documents are nine years apart. The Commission named platforms. It named AI. It named private actors performing public functions. None of those appeared in the 2016 Checklist; all three appear in the 2025 one.

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So the board has more squares than it had. Land, office, arms, votes, and the pulpit are all still there, and the clauses written against converting one into another still work. Beside them now

sit computation, behavioral data at population scale, and the infrastructure of what people see. The Framers wrote no clauses about these, and couldn't have. The institutions that inherited their tradition are, as of the most recent revisions, beginning to write some.

The next chapter explores what those new squares make possible, and the specific way one of them converts into another. That's the chapter where this book's argument finally appears. For now the claim is only descriptive, and it's the takeaway of this one: new kinds of power arrived, and no one wrote the clauses for them.

NOTES

1. Federal Trade Commission. *Data Brokers: A Call for Transparency and Accountability*. FTC, May 2014. https://www.ftc.gov/system/files/documents/reports/data-brokers-call-transparency-accountability-report-federal-trade-commission-may-2014/140527databrokerreport.pdf. Accessed 5 Oct. 2026. The report studied nine data brokers (Acxiom, CoreLogic, Datalogix, eBureau, ID Analytics, Intelius, PeekYou, Rapleaf, and Recorded Future) and found that one broker maintained information on more than 1.4 billion consumer transactions and 700 billion data elements, while another added more than 3 billion new data points to its database each month.
2. Acxiom. "Data agent." https://www.acxiom.com/data-agent/. Accessed 22 Oct. 2026. Lists Audience Propensities under "Predict" as "Likelihood to respond, convert and remain loyal." Data Axle. "Predictive Consumer Intelligence: AI for Behavior, Purchase & Propensity." AWS Marketplace listing, https://aws.amazon.com/marketplace/pp/prodview-2nj2naocycuec. Accessed 22 Oct. 2026. Offers "AI-modeled audience segments and individual-level propensity scores." AccuData. *Propensity Data*. Product sheet, n.d., https://www.accudata.com/wp-content/uploads/2020/06/AccuData-Product_Sheet-Propensity-Data.pdf. Accessed 22 Oct. 2026. Says its data informs "What they are likely to purchase and what motivates them to buy." These are the vendors' own descriptions and may change; the FTC report in note 1 documents the industry's scale and data handling.
3. Freedom House. *Freedom on the Net 2025: An Uncertain Future for the Global Internet*. Washington, DC: Freedom House, 2025. https://freedomhouse.org/report/freedom-net/2025/uncertain-future-global-internet. Accessed 19 Sept. 2026. Seventy-two countries assessed, representing approximately 89 percent of global internet users; fifteenth consecutive year of decline; arrests for online expression in at least 57 of

72 countries; the information-manipulation indicator quoted as in the report.

4. Council of Europe, European Commission for Democracy through Law (Venice Commission). *Rule of Law Checklist*. CDL-AD(2016)007. Strasbourg, 18 March 2016. Confirms the five benchmarks stated here (legality, legal certainty, prevention of abuse of power, equality before the law, access to justice) and the document's treatment of the privatization of public functions, with examples limited to prison management and healthcare; it does not name digital platforms, AI, or automated systems anywhere in the document.
5. Council of Europe, European Commission for Democracy through Law (Venice Commission). *Rule of Law Checklist*, updated. CDL-AD(2025)002-e. Adopted 12–13 December 2025. https://www.venice.coe.int/webforms/documents/default.aspx?pdffile=CDL-AD(2025)002-e. Accessed 11 Sept. 2026. See also Council of Europe, "Venice Commission Adopts Its Updated Rule of Law Checklist," https://www.coe.int/en/web/venice-commission/-/venice-commission-adopts-its-updated-rule-of-law-checklist.

CHAPTER 6

Conversion, Named Plainly

SOMEWHERE IN THE COUNTRY THIS week, someone is sitting in a municipal hearing room waiting to ask permission to build something.

The request is called a variance: a formal exception to a local zoning rule. Maybe the lot sits on a corner, and the setback requirements mean any addition would come too close to the road. Maybe the structure is already non-conforming, and any change at all requires board approval. Maybe the neighborhood has height limits, and the conversion the owner has in mind would put the roofline two feet too high. Whatever the specific problem, the local code offers a procedure for addressing it. To get a variance, you appear before the zoning board of appeals or adjustment — a quasi-judicial body, typically made up of ordinary residents appointed from the community — and you make a legal case. You don't just ask; you argue. The standard usually requires showing hardship specific to your property, that the problem isn't of your own making, that granting the exception

won't damage the neighborhood's character, and that the relief you're asking for is consistent with what the code was designed to protect. You prepare an evidentiary submission. You appear at a public hearing. You argue a legal standard before a panel that may not be deeply familiar with the applicable doctrine, and whose decision is subject to appeal.

As with most formal legal proceedings, how well you navigate this depends significantly on whether you walk in knowing what the standard actually requires and how the particular board tends to apply it. The evidence on outcomes is less obvious than that suggests. A 2024 master's thesis on variance applications in Columbus, Ohio, found that 98% were approved, and that applicants with an attorney were not significantly more likely to win than applicants without one.[1] The evidence on who applies is stronger. A peer-reviewed study published in 2024 examined variance application patterns across Pittsburgh using demographic and socioeconomic data and found statistically significant correlations between neighborhood income and educational attainment and the patterns of how variances are applied for. The Columbus thesis also describes a process that is hard to enter: hearings on weekday mornings in public buildings it calls intimidating, and little clear communication about how the process works.[2]

The structural point, which holds without requiring a precise statistic, is this: two neighbors with identical parcels and identical projects can appear before the same board under the same published rules, and the person who knows the process exists, can take a weekday morning off, and can afford to understand it is better positioned to apply at all than the person who cannot. The board doesn't have to be corrupt. The rules don't have to have been written to favor those with resources. That the process is formally the same for everyone is not the same as the process being equally accessible to everyone.

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That is one hearing, in one type of case, in one branch of local government. But it makes visible a shape — the shape this chapter is here to name. Call it a loop.

Wealth buys *information*. An entity with enough at stake to make expertise worth paying for — whether that's a landowner with a variance problem, an industry with regulations to influence, or an incumbent with a market position to defend — can hire the attorney, retain the specialist, fund the analysis, and track the regulatory docket. The diffuse public has formal access to the same information and rarely acquires it, because the per-member payoff rarely justifies the effort. Mancur Olson laid out the underlying logic more than sixty years ago: small groups with large shared stakes organize more effectively than large groups with small individual stakes, because the cost of organizing is spread over fewer members and the temptation to free-ride is smaller.[3] A few actors with a great deal to gain from a specific rule can sustain focused attention to it; the far larger number of people affected at lower individual stakes mostly don't.

Information buys *attention*. Policymakers and administrators have more domains to oversee than they have time to understand each one deeply. Organized interests with technical expertise solve a real problem for them. The information they provide is genuine: legal analysis, projections of how a proposed rule would work, comparisons to what other jurisdictions have done. It shapes what questions the decision-maker asks and which problems feel most pressing. The political scientist David Austen-Smith modeled lobbying as strategic information transmission in a 1993 paper that is a prominent contribution to the formal literature on informational lobbying: interest groups pass private information to legislators who are uncertain about what a policy will do, and that information can shape both what a committee proposes and how the floor votes. He treated access separately: in a 1995 paper he modeled campaign contributions as a way of buying the access through which groups pass policy information to legislators.[4] The mechanism doesn't require anyone to behave

badly. It runs on scarcity of expertise and the routine cost of knowing less than the people in the room who have the most to gain from your decision.

Attention buys *authority*. The empirical documentation for this link is extensive, comes from researchers across the political spectrum, and spans more than half a century. A 2006 study of public comments on federal agency rulemakings from the 1990s found that organized business interests showed consistent independent influence over the final content of rules — nonbusiness commenters did not.[5] A notice-and-comment rulemaking is, by design, open to any member of the public. In practice the well-resourced shape the outcome; the rest file comments that the final rule rarely reflects. The foundational text in economics on why this happens was written in 1971 by a Chicago School economist named George Stigler, whose work on the causes and effects of regulation was part of the basis for his Nobel Prize: as a rule, he argued, regulation is acquired by the industry and is designed and operated primarily for its benefit.[6] The finding wasn't a left-wing critique of business or a right-wing critique of government — it was a structural observation about how concentrated incentives work inside any regulatory process, regardless of what sector or political moment it operates in.

A study published in 2014 tested these mechanisms empirically against the historical record, using two decades of policy outcomes — a span that crossed multiple elections and extended periods of power held by both major parties.[7] The question was which group's preferences most reliably predicted which policies got enacted: economic elites, organized business interests, mass-based interest groups, or average citizens. Economic elites and organized business interests showed substantial independent impact on policy outcomes. Average citizens, as a group, showed little or no independent influence on their own. The variable that predicted outcomes was economic position, not party affiliation; the pattern held regardless of which party governed. The chapter uses only the more modest version of this finding —

that resource-organized interests have substantial independent policy impact — not the stronger claim, which generated genuine methodological debate.[8]

Authority protects *wealth*. Once concentrated interests have shaped a rule, they remain the most organized constituency with respect to changing it, for the same asymmetric reason that made them effective in the first place. Regulatory authority, once obtained, raises entry costs for challengers — not necessarily by intent, but as a structural consequence of who is most present when the costs are set. The political economist Charles Lindblom identified a version of this dynamic that operates upstream of any specific lobbying effort: in an economy where private enterprise controls investment, employment, and production, governments aren't indifferent to what major economic actors decide to do.[9] That structural dependency shapes which options get seriously considered before any particular decision arrives, because some kinds of decisions are never made in the first place. The authority that emerges from the regulatory process tends to be authority that its most organized participants can live with.

Wealth to information. Information to attention. Attention to authority. Authority back to wealth. That is the loop.

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One more example, from a different corner of American law — because the point is that this shape is structural, not domain-specific, and seeing it run in two places at once helps fix it in view.

Around 1950, roughly 5% of American workers needed a government license to practice their occupation: doctors, lawyers, engineers, a handful of others. By 2015 that figure had risen to somewhere between 22% and 25%. The expansion covered florists, interior designers, tour guides, and dozens of other occupations where the connection to any clear consumer-safety

rationale is hard to draw. A 2015 White House report studied what the expansion had produced.[10]

The finding wasn't that the new requirements protected consumers; the evidence for that was weak and inconsistent across states. The finding was that many requirements functioned as barriers to entry, set and maintained by the licensed incumbents who made up the licensing boards empowered to set them. The loop is running in plain view: incumbents hold authority over the bodies that define qualification standards; those standards define what information a new entrant must demonstrate; raising them restricts who can enter the field; restricting entry protects the incumbents' economic position.

What makes this example useful here is who agrees about it. The 2015 White House report was prepared under a Democratic administration. Libertarian and conservative economists had been making the same structural critique for decades, reading in occupational licensing boards a textbook instance of regulated incumbents capturing the regulatory process — Stigler's argument, running at the state administrative level. Progressive critics reached the same diagnosis from a different angle: licensing requirements create barriers that fall more heavily on workers without the time and money they demand, concentrating the occupation among those who can afford entry. The rhetoric differed; the structural complaint was the same. Concentrated authority, operating the loop, protecting those already inside it. Neither party owns the critique; neither party is its target.

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Here is what that shape means, and why it's this book's central problem.

The Framers identified conversion as the core threat and responded by writing sentences against it — specific clauses, aimed at the specific exchanges between specific kinds of power that they could see threatening the machine they'd built. Status into

heritable authority: closed. Money into political loyalty: closed. Legislative power into personal office: closed. The principle behind each clause was the one Madison stated in *Federalist* 51: ambition must be made to counteract ambition, which means the exchange windows between kinds of power must be visible and, where possible, locked.

What the clauses don't address — because the Framers couldn't have written against what they couldn't imagine — is a loop running on the currencies they didn't place on their original menu. Chapter 5's three new power types don't sit beside the loop; they accelerate it. Computation lowers the cost of gathering and processing information, steepening the advantage of the organized interest over the diffuse public at exactly the "wealth buys information" link. Population-scale behavioral data makes the targeting of political attention more precise and more effective. Epistemic infrastructure — the systems that determine what a population sees and doesn't see — is a direct instrument for shaping what issues feel urgent and which alternatives seem available. Each new square on the board adds leverage to a loop that was already turning.

The key design implication isn't that any one form of power needs to be abolished or that any particular group of actors is the problem. It's that the exchange windows between forms of power are what need to be seen, named, and — the later parts of this book will argue — constitutionally addressed. A constitution built for five squares on the board wrote clauses for those squares. A constitution that now has to address eight or nine squares has to go back to the same question the Framers asked and extend it: what conversions, between which kinds of power, threaten the machine?

The problem isn't any one form of power. It is the exchange rate between them.

NOTES

1. Farinazzo, Naomi Diniz. "Zoning Policies and Social Equity: Building Cities through Zoning Variances." Master's thesis, Ohio State University, 2024, pp. 36–38, 55–56. OhioLINK ETD, https://etd.ohiolink.edu/acprod/odb_etd/ws/send_file/send?accession=osu1720742918783058&disposition=inline. Accessed 20 Oct. 2026. The thesis analyzes 417 variance applications decided in Columbus, Ohio, from 2021 to 2023: 98% were approved; 268 of 273 applications with an attorney (98.2%) and 139 of 144 without one (96.5%), a difference the author finds not statistically significant ($p = 0.48$); applicant type also showed no significant effect. It notes that meetings are held on weekdays during business hours in public buildings "that can be quite intimidating," and that communication about how the process works is often unclear. Lenze, V., Hinojos, S., and Grady, C. "Combining Socioeconomic, Demographic, and Zoning Data to Explore Urban Inequality in Pittsburgh." *Journal of Urban Planning and Development*, vol. 150, no. 1, 2024, article 05023045. DOI: 10.1061/JUPDDM.UPENG-4474. Accessed 20 Oct. 2026. The abstract reports statistically significant relationships between variance application patterns and, for example, average resident income and the share of residents over 25 who are college-educated; it does not state their direction or address approvals.

2. Farinazzo, "Zoning Policies and Social Equity," pp. 36–38, 55–56. The thesis notes that meetings are held on weekdays during business hours in public buildings "that can be quite intimidating," and that communication about how the process works is often unclear.

3. Olson, Mancur. *The Logic of Collective Action: Public Goods and the Theory of Groups*. Harvard University Press, 1965. The argument summarized — concentrated interests organize more effectively than diffuse publics because per-member organizational cost is lower and the free-rider problem more tractable — is foundational in public choice theory.

4. Austen-Smith, David. "Information and Influence: Lobbying for Agendas and Votes." *American Journal of Political Science*, vol. 37, no. 3, Aug. 1993, pp. 799–833. The paper models lobbying as a game of strategic information transmission to legislators who are uncertain about policy consequences, at the agenda-setting stage and at the vote stage (described here from the working-paper abstract). On access: Austen-Smith, David. "Campaign Contributions and Access." *American Political Science Review*, vol. 89, no. 3, 1995, pp. 566–81. DOI: 10.2307/2082974. On the 1993 paper's standing: Bertrand, Marianne, Matilde Bombardini, and Francesco Trebbi. "Is It Whom You Know or What You Know? An Empirical Assessment of the Lobbying Process." NBER Working Paper 16765, 2011, list it among the most prominent contributions to the informational-lobbying literature.

5. Yackee, Jason Webb, and Susan Webb Yackee. "A Bias Towards Business? Assessing Interest Group Influence on the U.S. Bureaucracy." *Journal of Politics*, vol. 68, no. 1, Feb. 2006, pp. 128–139. DOI: 10.1111/

j.1468-2508.2006.00375.x. Accessed 19 Sept. 2026. The study analyzed 1,693 comments across more than thirty federal agency rules promulgated 1994–2001; the finding that business commenters hold independent influence over final rule content while nonbusiness commenters do not is from the abstract.

6. Stigler, George J. "The Theory of Economic Regulation." *Bell Journal of Economics and Management Science*, vol. 2, no. 1, Spring 1971, pp. 3–21. DOI: 10.2307/3003160. On p. 3 Stigler states the paper's central thesis: "as a rule, regulation is acquired by the industry and is designed and operated primarily for its benefit." The 1982 Nobel Memorial Prize in Economic Sciences was awarded for his studies of industrial structures, the functioning of markets, and the causes and effects of public regulation; the announcement does not name this article.

7. Gilens, Martin, and Benjamin I. Page. "Testing Theories of American Politics: Elites, Interest Groups, and Average Citizens." *Perspectives on Politics*, vol. 12, no. 3, 2014, pp. 564–581. DOI: 10.1017/S1537592714001595. Accessed 19 Sept. 2026. Dataset: 1,779 policy issues, 1981–2002, spanning multiple elections and both parties' extended periods of unified government control. This book uses only the modest formulation — economic elites and organized business groups have substantial independent policy impact — not the stronger claim that average citizens have zero influence, which is methodologically contested. Omar Bashir ("Testing Inferences about American Politics: A Re-Analysis of Data from 'Testing Theories of American Politics,'" *Research & Politics*, 2015) found that Gilens and Page's model underestimates median-citizen influence, and that in cases of elite-citizen disagreement, average citizens received their preferred outcome roughly as often as elites. The variable emphasized here is economic position, not party affiliation; the pattern in the dataset covers periods of control by both major parties.

8. Gilens and Page, "Testing Theories of American Politics," pp. 564–581.

9. Lindblom, Charles E. *Politics and Markets: The World's Political-Economic Systems*. Basic Books, 1977. The "privileged position of business in polyarchy" — the structural dependency of democratic governments on private investment and employment decisions, which shapes the range of policy options considered upstream of any specific political process — is Lindblom's argument, reported from secondary accounts.

10. Council of Economic Advisers, Department of the Treasury, and Department of Labor. *Occupational Licensing: A Framework for Policymakers*. Executive Office of the President, July 2015. https://obamawhitehouse.archives.gov/sites/default/files/docs/licensing_report_final_nonembargo.pdf. Accessed 19 Sept. 2026. The figures cited (roughly 5% in 1950, roughly 22–25% by 2015) measure the share of the workforce subject to a licensing requirement. The finding that many licensing requirements function as entry barriers rather than consumer protections, and the identification of incumbent interests in setting licensing board requirements, are from this report.

CHAPTER 7

Decompression

THE QUESTION APPEARS ON THE screen at the bottom of the broadcast, and the answer appears four seconds later.

You may have seen it during a game, or a talent show, or the kind of televised debate that invites the audience to weigh in. A presenter reads a question aloud. A number flashes on the phone of everyone tuned in. People tap. And before the presenter has finished saying "let's see what you think," a bar chart resolves on the screen with tens of thousands of answers already in it, percentages to one decimal place, still ticking upward as the late tappers arrive. Nobody finds this remarkable in the twenty-first century. It's just a data visualization graphic. It's over before the commercial.

Considered as a piece of machinery, it's also the exact inverse of the letter that took weeks to reach Philadelphia.

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Chapter 4 made the case that the Framers chose representation partly because they had no alternative. A few million people spread along a thousand miles of coast couldn't be asked anything and answer in less than weeks. The information couldn't move. So the machine compressed: citizens chose representatives, the representatives traveled to one place, and the representatives decided, and the whole structure of parties, campaigns, districts, and periodic elections grew up around compression as the way to make it work. Madison gave a second reason for representation, and it's coming. But the first reason was bandwidth, and it was binding.

The four-second poll is possible because that constraint is gone. Not weakened, not eased. Gone. Every person watching can be asked anything, at once, and answer at once, and the answers can be counted, sorted, cross-referenced by region and age and prior answers, and displayed, in less time than it took a rider in 1790 to saddle a horse. The technical reason for compression, the one that had nothing to do with political theory and everything to do with mud roads, has simply ceased to exist.

You've probably already guessed where this is going, so it's better to say at once where it isn't.

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This doesn't mean direct democracy.

It doesn't mean it because the four-second poll, examined closely, can't decide anything that matters, and the reasons are the same as those Madison gave in 1787. The bar chart on the screen measures what tens of thousands of people felt in the four seconds after being asked a question they hadn't considered, phrased by someone else, with no evidence in front of them, no argument from either side, and no time. It's an instant snapshot of an uninformed mood. That can choose a song. It can't set a tax rate or decide whether a neighbor goes to prison, which is why the jury in chapter 1 isn't a poll.

An app that asks everyone about everything would produce two things, and it's easy to predict both. First, it would produce bad governance, because most public decisions are hard, technical, and interlocking, and an unconsidered majority on each of them, taken separately, adds up to something no one would have chosen. And second, it would produce exhausted citizens, because there's no upper bound on the number of questions a government could ask, and a population asked six hundred things a week would stop answering, or answer at random, or hand the phone to someone they trust that offers to answer for them, which returns the problem to where it started.

Madison's second reason for representation was never about distance. Representatives, he wrote, could "refine and enlarge the public views" by passing them through people who had to think, hear the other side, and answer for the result.[1] Remove the mud roads, and that argument still stands. The filter was doing a job the bandwidth constraint only happened to require.

So the claim of this chapter is narrower than "the people can now decide everything directly". Much narrower — the claim is that the *design space reopened*. For two centuries, the question "how should a society make its decisions" had much of its answer dictated by what was physically possible, and the answer was: choose a few people, send them somewhere, let them decide. That's no longer dictated. It might still be right. It might be right for some decisions and wrong for others. But now that's a *choice*, and it hasn't been treated as one, because very few people have sat down and asked what belongs in this space that just opened.

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Some people have, quietly, at small scale, and what they've done looks familiar.

In 2020 the Organisation for Economic Co-operation and Development (OECD), the intergovernmental body best known for publishing economic statistics, released a study of a phenom-

enon its authors called a "deliberative wave."[2] The study gathered every case its researchers could document, from 1986 to October 2019, of a public authority convening a group of *randomly selected* citizens, giving them time, evidence, and access to experts and to each other, and asking them for informed recommendations on a specific public problem. Citizens' assemblies, citizens' juries, citizens' panels, planning cells: the names vary by country. The mechanism doesn't.

The count was 289.[3] Two hundred and eighty-nine occasions, across the OECD's member countries and a few outside them, on which a government of some kind had chosen not to poll, and not to leave the matter to elected representatives alone, but to draw a lottery, seat the winners in a room, and ask them to think. The study found the wave had been building since the 1980s and had gathered momentum from around 2010.

Two features of the count are worth your attention.

The first is where the cases were. Just over half were local: a city, a town, a municipality. Most of the rest were regional. Only a small share were national or international.[4] The deliberative wave, in other words, wasn't a story about capitals. It was a story about councils and provinces trying something on questions they actually had to answer: transport plans, budgets, land use, the sort of thing that appears in your mailbox as a notice with a comment period attached. That's consistent with how institutions usually change: at the edges, under low stakes, where a failed experiment costs a city a planning cycle rather than costing a country a constitution.

The second feature is that a small number of the cases weren't one-off. The study identified fourteen examples across seven countries, including the United States, in which public deliberation had been *institutionalized*: written into an ongoing policy process, so sortition was written into a schedule rather than drawn once for a single controversy and then forgotten.[5] Fourteen is a small number. It's also not zero, and a mechanism

that's been made permanent somewhere is a different kind of fact from a mechanism that's been tried.

A currency note belongs here, because the study is several years old and the field it describes is moving. The figures above are the ones this book has verified.[6]

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This book has now brought up sortition mechanisms three times, arranging them to see a pattern.

In chapter 1 it was the jury summons: a stranger chosen at random, given evidence, argument, and time, deciding something enormous, and you considered it legitimate. Then it was the Council of Five Hundred and the *kleroterion*, the Athenians' stone machine for choosing who would run the city, built so that no official's hand could touch the draw. Now it's a citizens' assembly in a European city or an American county, 289 of them and counting, doing what the Athenians did with the tools the four-second poll made possible: the random draw done by software rather than by black and white balls, the evidence delivered by experts rather than by witnesses, the deliberation conducted over weekends rather than in a stone chamber, and the output a recommendation to a council rather than a verdict.

Same mechanism. New scale. New tooling. The Athenians could run one council of five hundred for one city. A modern authority can run a representative assembly on any question, on any timeline, and the reason it can is the same reason the bar chart resolves in four seconds. The technology that dissolved the bandwidth constraint didn't just make it possible to poll about everything. It made sortition, the tool the inventors of democracy considered its signature, cheap.

This is why this book walks through the jury and the *kleroterion* before arriving here. If you'd met the citizens' assembly cold, you might have considered it a novelty, a Scandinavian experiment, something that couldn't work in the US. Having already

conceded, on the first page of chapter 1, that random selection is a legitimate way to fill a seat that matters, you might instead see it as something you already believe in and had simply never seen applied outside a courtroom.

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None of this is this book's proposal. That comes in Part IV. This chapter's claim is about the shape of the question, not its answer. For most of American history, the question "how should this decision be made" wasn't really open. It had a default: representation. The physical world enforced that default before preference did. The four-second poll shows that the way we navigate the physical world has changed. The 289 assemblies show that people with real decisions have already noticed the change in practice, and that they reached, without a theory, for the mechanism the Athenians built a stone machine for.

The question that's now open is which decisions want which procedure. A poll for some things, a representative chamber for others, and a jury, or something shaped like one, for others still. And the recognition, which the next Part takes up, that the same technology which makes all of those mechanisms cheap makes something else cheap too, and that has a longer history of being chosen than any of them.

We can now do things the Framers couldn't. That doesn't tell you what to do. It makes "what should we do?" a live question, for the first time in over two centuries.

NOTES

1. Madison, James. "Federalist No. 10." *New York Packet*, 23 Nov. 1787. Avalon Project, Yale Law School, https://avalon.law.yale.edu/18th_century/fed10.asp. Accessed 19 Sept. 2026. See chapter 2, notes 1 and 6.
2. OECD. *Innovative Citizen Participation and New Democratic Institutions: Catching the Deliberative Wave*. Paris: OECD Publishing, 2020. https://www.oecd.org/en/publications/innovative-citizen-participation-and-new-democratic-institutions_339306da-en.html. Accessed 11 Sept. 2026.

3. OECD, *Catching the Deliberative Wave*: 289 case studies, of which 282 from OECD member countries, covering 1986 to October 2019. Summaries commonly round this to "close to 300"; the precise figure is 289.
4. OECD, *Catching the Deliberative Wave*: 52 percent local, 30 percent regional, 15 percent national, 3 percent international or supranational.
5. OECD, *Catching the Deliberative Wave*: fourteen institutionalised examples from Austria, Belgium, Canada, Japan, Poland, Spain, and the United States. A subsequent OECD publication, *Eight Ways to Institutionalise Deliberative Democracy*, documented the trend continuing: OECD. *Eight Ways to Institutionalise Deliberative Democracy*. OECD Public Governance Policy Papers, No. 12. OECD Publishing, 14 Dec. 2021. https://doi.org/10.1787/4fcf1da5-en. Accessed 5 Oct. 2026.
6. The OECD's deliberative-wave database was updated in 2023: as of that update it records 733 cases from 1979 to 2023 across 34 countries, with institutionalised cases rising from 22 to 41 between 2020 and 2023, 160 new cases added between September 2021 and September 2023, and at least 80,622 citizens randomly selected to participate since 1979. OECD, "Innovative public participation," https://www.oecd.org/en/topics/sub-issues/open-government-and-citizen-participation/innovative-public-participation.html. Accessed 5 Oct. 2026. The chapter's body reports the 2020 study's own count (289 cases through October 2019); the larger figures above come from the OECD's later update.

PART III

Two Futures on One Machine

CHAPTER 8

The Competent Autocracy

THE NOTIFICATION ARRIVES BEFORE YOU think to ask for it. Your street will have reduced water pressure tomorrow morning while maintenance crews finish a pipe repair that came in under budget and ahead of schedule. The road closure two blocks over ends Thursday — the crews finished early. Your vehicle registration renewed automatically; the document is already on your phone. A reminder appears for the health screening you were eligible for but hadn't gotten around to scheduling: an appointment slot is already held; cancel if you don't need it.

None of this is spectacular. That's the point. It's government, functioning: services anticipated before you had to request them, predictions about your life that turned out to be correct, a state that knows you well enough to be useful to you, and is. The whole system runs quietly behind daily life, doing what daily life requires, almost without your noticing.

This chapter asks what kind of government produces that experience, and whether the kind matters.

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Authoritarian states have always had a specific structural problem. A government that punishes the messenger gets only lies. A ruler surrounded by fear receives what those around him need him to hear, not what is true. The farther down a hierarchy a command travels, the more it gets intercepted and reshaped by the interests of the people carrying it. Information that rises from below has to pass through layers, each one filtering out whatever is unwelcome at the next level up.

The result isn't just bad policy. It's a governing class that has systematically cut itself off from reliable knowledge of what it's governing. An informant system produces informants who know what they need to report to survive, not what is actually happening. A statistical apparatus under pressure to show improvement produces figures that show improvement. The ruler at the top of such a system can be simultaneously powerful and profoundly misinformed, relying on numbers that everyone below knows are unreliable but that no one is paid to correct. For most of history, this structural deficiency made authoritarian governance brittle in ways that eventually told — a regime that can't find out what it's doing wrong can't fix it, and regimes that can't fix what's wrong tend to fail in ways they didn't anticipate.

That disadvantage is dissolving.

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Political economists Sergei Guriev and Daniel Treisman, whose research spans multiple peer-reviewed publications and their 2022 book *Spin Dictators*, have named the shift with precision.[1] The dominant authoritarian model of the earlier twentieth century relied on mass terror: visible coercion, public punishment, violence as demonstration. What they call the *informational autocracy* works differently. It maintains power not by terrorizing citizens into submission but by convincing them — through

managed information and projected competence — that the government is competent and public-spirited. The mechanism is information control rather than fear, and the goal is consent manufactured at scale rather than compliance imposed by force.

This isn't a softer form of the same thing. In some circumstances, it's a more durable one. A regime that people experience as largely functional, and whose coercion is concentrated on those who step far enough out of line to become visible targets, produces a different political psychology than one that terrorizes everyone. Most citizens, most of the time, aren't being targeted. They're receiving notifications that the road repair finished early.

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What AI specifically enables, across all of the capabilities this model depends on, is precision and responsiveness at scale.

A government can now learn what citizens want without asking them and without holding a credible election. Behavioral data — the record of what people do, buy, read, search for, and respond to — reveals preferences that citizens might not accurately report to a pollster even if they wanted to. Processed at scale, it maps a population's needs, resentments, and aspirations with a resolution no survey instrument ever achieved.

It can detect opposition early, before it organizes. Peer-reviewed empirical research has documented the mechanism directly: AI procurement for surveillance follows local social unrest, and the AI deployment that follows measurably suppresses further unrest.[2] That's a feedback loop between the first sign of dissent and the technology deployed to prevent it from becoming a movement, closed before the movement forms.

It can personalize persuasion. A message that reaches a hundred million people as one undifferentiated broadcast lands differently than a hundred million individually calibrated communications, each shaped to the recipient's documented concerns, vocabulary, and prior responses. A government capable of the

latter isn't broadcasting. It's having a conversation, at population scale, and it knows its audience better than the audience knows itself.

The repression, when it comes, is also more precise. Freedom House, assessing internet freedom across dozens of countries in its most recent annual report, found that rapid AI investment in authoritarian environments "may serve to increase the efficacy and application of repressive surveillance methods."[3] What this looks like in practice, the report documents: a targeted apparatus that identifies and neutralizes specific individuals or categories rather than dragging an entire population through wholesale disruption. Older authoritarian systems often made their force visible because visibility was the point — terror works by being witnessed. A system capable of surgical intervention doesn't need visibility. It reaches what it needs to reach, quietly, and most citizens never encounter it.

The last capability is embedded in the information infrastructure itself. When governments require the AI systems citizens use daily — the interfaces through which people answer questions, navigate decisions, and interpret the world — to comply with state censorship requirements and promote state-approved positions on contested topics, the information problem doesn't just dissolve. It inverts.[4] The government's version of reality becomes the ambient default through which everything else gets filtered, not through overt censorship visible enough to produce backlash, but through the ordinary experience of using systems that work.

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A familiar saying about authoritarian efficiency claims that a certain mid-twentieth-century fascist regime, whatever else one might say about it, at least made the trains run on time. The saying is false. The trains didn't run on time. The claim was propaganda, circulated by credulous foreign observers allowed to see managed showcase routes while the actual railway system

lagged behind the modernization programs of earlier, non-authoritarian governments. What the phrase has always meant, despite the historical falsehood, is a bargain: surrender freedom in exchange for competence.

The chapter you're reading is about a new situation in which the competence is real. The historical argument against that bargain — that the regime claiming efficiency couldn't actually deliver it — gets considerably harder to make when the regime actually can. That is what makes the modern informational autocracy a different kind of competitor than the blunt coercive systems of the previous century.

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What the competent autocracy delivers is, at minimum, the credible experience of working government. Guriev and Treisman's framework is precise on this point: informational autocrats "intervene surgically, attempting only to convince citizens of their competence."[5] Whether such a regime delivers *objectively* superior governance by some externally verified measure is a question harder to answer, partly because these governments work to control the media and to co-opt or censor the informed elite who might check the claim. What is clear is that citizens in such systems can experience their government as useful, and that experience is politically decisive regardless of what an external auditor might find.

The global trend provides the context. International IDEA, tracking democratic performance across 173 countries since 1975, reported that 2024 was the ninth consecutive year in which more countries showed a net decline than an improvement in overall democratic performance — the longest such consecutive fall in IDEA's records.[6] That's the annual measure, counting years in which democratic decline outpaced democratic advance. A separate measure, comparing countries against their own performance five years earlier rather than year to year, finds that

more than half of the 173 countries assessed performed worse on at least one factor of democratic performance in 2024 than they had in 2019.[7] Two different measurements, the same direction.

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The danger the competent autocracy presents isn't the danger of an obvious villain. A system that produces visible, widespread suffering generates its own opposition — it makes the cost legible and the alternative imaginable. A system that mostly functions, that delivers the notifications on time, manages the health reminders, and keeps the infrastructure running, presents a different kind of challenge. The costs it imposes are largely invisible to citizens it isn't targeting. The benefits are daily and concrete. The political logic of remaining within it, for someone who isn't in any category the system has identified as a threat, can feel — and feel genuinely, not under duress — like a reasonable arrangement.

That's what makes this future dangerous. The bad future isn't a boot on a face. It's a notification that arrived before you needed to ask, from a government that already knew.

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The machinery that makes this possible is the same machinery that could, under a different constitution, build something else entirely. The same digital identity, the same behavioral data, the same predictive capability. The next chapter is about what that other constitution looks like. For now the point is narrower: the dystopia isn't a cartoon. It's well-organized, responsive to what people actually need, already partly operational in multiple places, and attractive to the many citizens who haven't been selected as targets. Understanding it clearly is the precondition for designing against it. The bad future is competent, popular, and already partly built.

NOTES

1. Guriev, Sergei, and Daniel Treisman. *Spin Dictators: The Changing Face of Tyranny in the 21st Century*. Princeton University Press, 2022. ISBN 9780691211411. The underlying peer-reviewed work appears in two papers: "Informational Autocrats," *Journal of Economic Perspectives*, vol. 33, no. 4, Fall 2019, pp. 100–127, DOI: 10.1257/jep.33.4.100; and "A Theory of Informational Autocracy," *Journal of Public Economics*, vol. 186, June 2020, article 104158, DOI: 10.1016/j.jpubeco.2020.104158, SSRN preprint https://papers.ssrn.com/sol3/papers.cfm?abstract_id=3426238, accessed 19 Sept. 2026. The chapter cites Guriev and Treisman's analytical framework — the shift from terror-based to information-management-based authoritarian rule — without adopting the specific named-leader examples they use as illustrations of the type.

2. Beraja, Martin, Andrew Kao, David Y. Yang, and Noam Yuchtman. "AI-Tocracy." *Quarterly Journal of Economics*, vol. 138, no. 3, 2023, pp. 1349–1402. DOI: 10.1093/qje/qjad012. https://economics.mit.edu/sites/default/files/inline-files/aitocracy_QJE.pdf. Accessed 19 Sept. 2026. Using government procurement records and data on local social unrest, the paper establishes that AI facial-recognition procurement follows unrest and that subsequent AI deployment suppresses further unrest — a documented causal feedback loop between detected opposition and deployed counter-measure. The paper's data comes from one country's procurement records; the mechanism is empirically established in that context. For the argument that AI surveillance also creates structural limits for autocratic rulers — including the risk of miscalibration, false positives that fuel backlash, and concept drift as citizens adapt to algorithmic monitoring — see Anastasopoulos, L. Jason, and Jie (Jason) Lian. "The Limits of Authoritarian AI." *Journal of Democracy*, vol. 37, no. 2, April 2026. https://www.journalofdemocracy.org/articles/the-limits-of-authoritarian-ai/. Accessed 19 Sept. 2026. The chapter's argument requires AI-enabled authoritarianism to be better than the prior baseline, not perfect; the Anastasopoulos-Lian calibration-dilemma finding is a genuine constraint on the strongest version of the thesis rather than a refutation of the narrower claim made here.

3. Freedom House. *Freedom on the Net 2025: An Uncertain Future for the Global Internet*. Freedom House, 2025. https://freedomhouse.org/report/freedom-net/2025/uncertain-future-global-internet. PDF: https://freedomhouse.org/sites/default/files/2025-11/Freedom_on_the_Net_2025_Digital.pdf. Accessed 19 Sept. 2026. The AI-enabled surveillance efficacy finding appears in the report's AI-governance analysis. On targeted repression, the report documents specific countries' transitions from wholesale censorship and network shutdowns to targeted surveillance and censorship apparatus — one country Freedom House assessed is explicitly described as having developed "a more targeted censorship and surveillance apparatus, rarely imposing wholesale shutdowns." A sub-national censorship architecture in at least one other assessed country is documented as operating at a scale described as significantly larger than

the same country's national-level system, illustrating layered precision rather than uniform blunt force. These country-specific findings document the type described in the chapter's body; their presence in this endnote does not make any named country the chapter's primary subject. The report assessed seventy-two countries.

4. Freedom House, *Freedom on the Net 2025*. On government-embedded AI censorship: the report notes that "models developed under government oversight may incorporate censorship of certain content, like criticism of the authorities" and documents governance frameworks in multiple countries requiring generative AI chatbots to reinforce state positions on sensitive topics. On sovereign AI: the report warns that "sovereign AI initiatives could compound existing threats to free expression" as governments pursue state-controlled AI development.
5. Guriev, Sergei, and Daniel Treisman. "Informational Autocrats." *Journal of Economic Perspectives*, vol. 33, no. 4, Fall 2019, pp. 100–127. https://doi.org/10.1257/jep.33.4.100 (open access via AEA/JEP policy; university-hosted copy at https://fass.nus.edu.sg/ecs/wp-content/uploads/sites/4/2021/03/jep.33.4.100.pdf). Accessed 5 Oct. 2026. The quotation is from p. 101; the account of state-controlled media and of efforts to co-opt or censor the informed elite is on pp. 101–102.
6. International IDEA. "Global Democracy Report: Majority of Countries Worsen as Press Freedom Hits 50-Year Low." *International IDEA News*, 11 Sept. 2025. https://www.idea.int/news/global-democracy-report-majority-countries-worsen-press-freedom-hits-50-year-low. Accessed 19 Sept. 2026. Exact language: "The year 2024 was the ninth consecutive year with more countries showing a net decline rather than improvement in overall democratic performance, the longest consecutive fall since International IDEA's records began in 1975."
7. International IDEA. *The Global State of Democracy 2025: Democracy on the Move*. International IDEA, 11 Sept. 2025. https://www.idea.int/publications/catalogue/html/global-state-democracy-2025-democracy-move. Accessed 19 Sept. 2026. Exact language from the report: "In 2024, 94 countries — representing 54 per cent of all countries assessed — suffered a decline in at least one factor of democratic performance compared with their own performance five years earlier." Total countries assessed: 173.

CHAPTER 9

The Distributed Republic

THE EVENING ASSEMBLIES HELD IN Porto Alegre's districts in the early 1990s began with a concrete problem and ended with a vote. The city had a portion of its capital budget to allocate, and the people attending the assembly would decide where it went. Residents had submitted proposals in advance: extending a water line to a block without service, paving a road that flooded after heavy rain, constructing a school in a neighborhood that lacked one. City representatives explained what each project would cost and what it would do. Residents asked questions and debated the proposals. Then the assembly voted. Whatever won got funded.

The process had started in 1989 under Mayor Olívio Dutra, organized across sixteen geographic districts, each holding its own open assemblies where anyone who lived in the district could attend. Fewer than 1,000 residents participated in the first rounds in 1990; by 2004 roughly 50,000 did, spread across the sixteen districts and parallel thematic assemblies on housing,

transportation, and health.[1] By 1992 the process governed 17% of the total municipal budget, a share that grew to 21% by 1999.[2]

The outcomes show up in the record. Before the assemblies began, roughly 75% of Porto Alegre's residences had access to sewer and water connections; by 1997 that figure was 98%. The share of the municipal budget for health and education rose from 13% in 1985 to about 40% by 1996. School construction and road building in the poorest neighborhoods rose sharply.[3] The pattern was consistent: the population attending the assemblies chose to fund the infrastructure their neighborhoods lacked. They didn't have to convince a central administrator or wait for a budget cycle to notice what was missing. They showed up, debated the proposals, and voted.

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The mechanism spread. Within fifteen years, hundreds of Brazilian cities had adopted versions.[4] It crossed borders, languages, and governing philosophies. As of 2024, more than 11,500 municipal participatory budgeting processes operate worldwide — across Europe, North America, Asia, Africa, and Latin America, in cities governed by administrations of every political description.[5] Porto Alegre's process emerged from a specific Brazilian political context in 1989. The global spread shows that the mechanism separated from its origins: governments with no connection to where it began adopted it, adapted it to different administrative systems, and kept running in most places because the people using it found it worth keeping. The mechanism outlasted the context that produced it. By 2024, it had been embraced across the political spectrum.

In 2017, a new city administration took office in Porto Alegre and suspended participatory budgeting, citing resource constraints. The process was later reinstated in a significantly reduced form.[6]

A reader might take this as a warning. The mechanism was canceled when a different government came in, which suggests it was fragile — and a fragile model isn't much of a model. The chapter's argument runs the other way.

Porto Alegre's participatory budgeting was a program. It existed because a succession of city administrations chose to run it. When an administration came in that preferred not to run it, suspension was straightforward, because nothing structural prevented it. No charter provision required the assemblies. No constitutional feature made their continuation a matter of institutional design rather than political preference. The process lasted as long as the governments supporting it stayed in office, and when that changed, it stopped. That's what it means to be optional.

The argument of this chapter isn't that cities should offer participatory budgeting as a policy option that incoming administrations can maintain or discard. It's that a genuinely distributed republic builds certain decision procedures into its structure — not as programs any administration can remove when it finds them inconvenient, but as institutional features that outlast any single governing party's preferences. Porto Alegre's 2017 suspension isn't the counterargument to that design. It *is* the argument. What got suspended wasn't the idea; it was an implementation of the idea that wasn't embedded deeply enough to survive a change of hands.

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Chapter 7 documented a deliberative wave: hundreds of occasions since the 1980s on which a public authority drew a lottery, convened the people chosen, and asked them to deliberate on a specific public question. The wave was concentrated locally and, in some cases, made permanent — written into ongoing policy processes rather than assembled once for a controversy and then dissolved.[7] What that record showed was that governments,

facing decisions their elected chambers didn't fit well, reached on their own for something *sortitive*. Chapter 7's question was whether the design space had reopened. This chapter's question is what belongs in that space, and how you build it to last.

Not all decisions are the same kind of problem.

Some are questions of political preference — how a city should balance competing demands on its capital budget, what it intends to prioritize over the next four years, which tradeoffs between competing interests the electorate is willing to accept. Decisions like these involve a genuine contest between different values and stakes, and the mechanism for resolving that contest ought to produce a clear mandate. An elected chamber, chosen by the people with something at stake and accountable to them at the next election, is the right instrument.

Others are questions of technical finding. What does the evidence say about the health effects of a proposed air quality standard? What does a structural assessment establish about a bridge? These aren't questions that get better answers because elected officials deliberate on them — they require expertise, which is why governments maintain expert institutions whose findings are insulated from political preference rather than shaped by it.

Others are questions of individual rights and legal constraint: whether a person's rights were violated, whether a law was applied correctly in a specific case. These belong to courts, with argument, procedure, and review — constitutionally insulated from popular preference precisely because their job is to hold a boundary against what even a popular majority wants to do to an individual.

And some decisions are genuinely local in the specific sense that the people living with the consequences carry knowledge no regional body simply has access to. Whether to rezone a block, how to configure a neighborhood's public spaces, what hours a

local library should keep: local bodies, close to the question, are the right instrument.

That leaves a space that all four handle poorly: some decisions involve genuine value trade-offs that require neither a political mandate, a technical finding, a legal ruling, nor purely local knowledge — but something more like an informed public judgment. These are the decisions that benefit from reflection, from exposure to evidence and to the full range of affected perspectives, from having to articulate a reason rather than register a preference. Chapter 1 introduced *sortition* — the mechanism that fits this space: a body drawn by lot to represent the population as people rather than as an electorate, given time and information, asked to deliberate. Not a substitute for elections; not a replacement for expertise; a distinct kind of legitimacy for a distinct kind of question.

Five types of decision. Five types of institution. None sovereign alone.

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This design principle has been arriving independently across fields. Elinor Ostrom received the Nobel Prize in Economics in 2009 for her analysis of economic governance, especially the commons. Her empirical work, built from decades of studying how communities actually govern shared resources — fisheries, groundwater, forests, grazing land — across dozens of cases internationally, found that no single governance institution performs well across all types of problems, and that matching the institutional design to the characteristics of the specific problem produces outcomes that single-center designs consistently fail to achieve.[8] Her term for the alternative was "polycentric governance": many centers of decision-making, operating at multiple scales, none sovereign over the others. The terminology differs from this chapter's, but the structural principle is the same. Different problems want different institutions, and a design that

routes everything through a single center fails in ways that aren't accidents — they're built into the mismatch.

James Fishkin's research on deliberative polling shows that people's views change when they deliberate.[9] The design here draws a conclusion from that: deliberative procedures suit decisions involving genuine value trade-offs, which benefit from informed, reflective judgment rather than an immediate reaction, and don't suit crisis management, technical regulation, or routine administration. That isn't a soft limit; it's the design rationale. You don't convene a citizens' assembly to decide whether to dispatch emergency services for a fire. You might convene one to decide how the city's preparedness resources should be allocated across competing risks over the next decade. The mechanism fits certain decisions and not others, and knowing which decisions belong in which category is the design work.

The distributed republic isn't a system where everyone votes on everything, and it isn't a system where any one of these institutions simply overrides the others. It's a system in which each procedure has a proper domain and is constitutionally insulated from displacement by the others. An elected chamber that can abolish the sortitive body when it produces an inconvenient result has converted its political mandate into something it wasn't granted. A technical agency whose findings can be reversed by popular vote has had its purpose hollowed out. A sortitive assembly that can override a court's interpretation of individual rights has left the rights it was meant to protect unprotected. Porto Alegre's process lacked constitutional insulation. The elected government could suspend it because nothing prevented that. A distributed republic doesn't solve this problem by weakening elected governments — elected chambers are the right instrument for political preference and should be strong at what they're for. It solves it by recognizing that certain procedural features exist to check what any single institution, including the elected one, might prefer to do when it finds an inconvenient constraint in its way.

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Porto Alegre's record, and the more than 11,500 processes it ultimately seeded, didn't demonstrate that participatory budgeting is politically neutral. Nothing governing resource allocation is neutral. What it demonstrated is that the mechanism is portable: it can be adopted across political contexts, adapted to different administrative systems, and kept running because the people who use it find it worth using. What wasn't portable, in Porto Alegre in 2017, was the procedure itself — not because it failed but because it had never been embedded deeply enough to be safe from administrative turnover.

That gap between what works and what lasts is the design problem. The question the rest of this book takes up isn't which party should hold which offices, or which country's system is the closest model. It's what procedure is appropriate for each class of decision, and how you construct the architecture so that the matching is a structural feature rather than a preference that any arriving administration can revise.

The question stops being *who governs* and becomes *what procedure fits this decision.* That is a different question, and it requires a different design.

NOTES

1. Participedia. "Participatory Budgeting in Porto Alegre 1989-present." https://participedia.net/case/5524. Accessed 19 Sept. 2026. Lincoln Institute of Land Policy. "Participatory Budgeting and Power Politics in Porto Alegre." https://www.lincolninst.edu/publications/articles/participatory-budgeting-power-politics-porto-alegre/. Accessed 19 Sept. 2026. Participation had grown to approximately 16,000 by 1998 and to 40,000 by 1999.
2. Lincoln Institute of Land Policy, "Participatory Budgeting and Power Politics in Porto Alegre". Wikipedia. "Participatory budgeting." https://en.wikipedia.org/wiki/Participatory_budgeting. Accessed 19 Sept. 2026. One source describes the mature process as eventually directing "about half" the municipal budget; the 17%–21% range is the more precisely sourced figure for the years given.

3. Lincoln Institute of Land Policy, "Participatory Budgeting and Power Politics in Porto Alegre"; World Resources Institute. "What if Citizens Set City Budgets?" https://www.wri.org/insights/what-if-citizens-set-city-budgets-experiment-captivated-world-participatory-budgeting. Accessed 19 Sept. 2026; Wikipedia, "Participatory budgeting"; Participedia, "Participatory Budgeting in Porto Alegre 1989-present". The number of municipal schools had roughly quadrupled from 1986 figures, and road construction in the city's poor neighborhoods increased fivefold.
4. Wikipedia, "Participatory budgeting"; Participedia, "Participatory Budgeting in Porto Alegre 1989-present". More than 100 Brazilian cities had adopted versions by 2000, and over 200 by 2004.
5. Wikipedia, "Participatory budgeting".
6. World Resources Institute, "What if Citizens Set City Budgets?"; Wikipedia, "Participatory budgeting".
7. OECD. *Innovative Citizen Participation and New Democratic Institutions: Catching the Deliberative Wave*. Paris: OECD Publishing, 2020. https://www.oecd.org/en/publications/innovative-citizen-participation-and-new-democratic-institutions_339306da-en.html. Accessed 11 Sept. 2026. See chapter 7, notes 2–5. The count was 289 occasions, from 1986 to October 2019; fourteen cases across seven countries were made permanent.
8. Ostrom, Elinor. "Beyond Markets and States: Polycentric Governance of Complex Economic Systems." Nobel Prize Lecture, 8 Dec. 2009. Nobel Prize Committee. https://www.nobelprize.org/prizes/economic-sciences/2009/ostrom/facts/. Accessed 19 Sept. 2026.
9. Fishkin, James S. *Democracy When the People Are Thinking: Revitalizing Our Politics Through Public Deliberation*. New York: Oxford University Press, 2018. Oxford University Press, https://global.oup.com/academic/product/democracy-when-the-people-are-thinking-9780198865186. Accessed 19 Sept. 2026.

CHAPTER 10

How the Good Version Breaks

THE CIVIC INTERFACE SETTINGS MENU has a toggle. It sits between notification preferences and accessibility options, and its label reads something like "Accept all recommendations from my trusted agent." What it offers is this: the AI system that has spent months learning your political preferences — walking through ballot positions with you, flagging assembly invitations that match your civic profile, tracking your participation across five types of decisions — will vote on your behalf when you don't get around to reviewing an issue. The machine knows your preferences. You've spent months building the profile. The toggle is offering a delegation of the delegation.

Nothing in this offer is malicious. The system it belongs to is the one the previous chapter described: an elected chamber for political preference, expert institutions for technical findings, courts for rights and constraint, local bodies for genuinely local questions, and a *sortitive* chamber for decisions that need informed, reflective judgment from a randomly drawn cross-

section of the population. Five types of decisions. Five types of institution. None sovereign alone. That design can work, if built with care and embedded with constitutional force.

This chapter's question is what happens to that design over time — assuming it functions as intended, assuming no one stages a coup. Seven ways this could fail, each reaching oligarchy by a different route, none requiring anyone to have planned it. What they share is that none of them announces itself.

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The first failure mode starts with a useful habit.

In 2020, researchers at McGill University published a study of regular drivers and GPS use. People with greater lifetime GPS experience performed worse at self-guided navigation when the device wasn't available. In a small follow-up years later, more GPS use since the first test went with steeper declines on several spatial-memory measures. The authors point to the hippocampus's role in constructing spatial memory — the cognitive map a navigator builds of their environment — and suggest that GPS users may rely on it less, while cautioning that spurious correlations are possible.[1] A 2026 paper in *Communication Theory* makes a related argument for the political-information domain. It proposes, as a framework rather than an experiment, that algorithmic curation of the information citizens encounter bears on the conditions required for independent judgment in the public sphere.[2]

The chapter's concern isn't spatial navigation. It's the structural parallel. A political advisory system that reliably handles political judgment, always having a well-reasoned recommendation ready and backed by information the citizen hasn't read, creates the same conditions: the same mechanism exercising a cognitive function less and less over time.

A simpler version of this failure mode is that people mindlessly follow AI recommendations. The research suggests a subtler

and more defensible version. A 2023 study in the *Journal of Public Administration Research and Theory*, examining human-AI interaction across three experimental studies in public-sector decisions, found no simple "automation bias": participants were not more likely to defer automatically to algorithmic advice than to equivalent human-expert advice.[3] What it found in one of the studies was "selective adherence": Dutch participants were more likely to follow advice that matched a stereotype about the person being judged, whether the advice came from an algorithm or from a human. The participants didn't trust an algorithm without question; in that study they were more willing to accept advice that confirmed what they already assumed.

If that pattern carried over to political advice, its consequence would be harder to detect and correct than the consequence of blind trust. Blind trust is visible — you can ask the citizen why and expose the absence of reasoning. Selective adherence looks like independent judgment. It follows the algorithm when the algorithm agrees and dissents when the algorithm crosses a prior commitment. Over time, the beliefs the algorithm reinforces would grow stronger, and the ones it challenges would shrink from disuse. The toggle wouldn't create this process, but it could accelerate it.

The second failure mode operates at the structural level rather than the individual one, and it has been observed directly.

The German Pirate Party adopted a system in the early 2010s called LiquidFeedback: a delegative democracy platform in which members could either vote directly on proposals or delegate their vote to another member, transitively. You could delegate to someone who might, in turn, delegate to someone else, with chains of trust extending as far as members chose. Researchers studying the complete dataset found that most outcomes aligned with what direct voting would have produced.[4]

What the same system also produced, spontaneously, was what the researchers describe as super-voters: individuals who

accumulated enormous formal voting power through delegation chains — not through any election, not through any office, not through any ideological platform. Through trust and behavioral affinity. The paper counts thirty-eight users who received more than one hundred delegations each, giving each of them a voting weight far beyond a single vote.

The 84.9% figure is real and matters: it is the share of outcomes that stayed the same without delegation, and the authors conclude that the super-voters in this experiment used their power wisely, while warning that nothing guarantees the behavior will last. The chapter's concern isn't about that group's specific choices. It's that the structure produced the concentration, and the design provides no guarantee about the next group's choices. In a distributed republic with AI-assisted delegation — where citizens delegate not to a neighbor they know but to an agent that has learned who shares their values — the same spontaneous concentration occurs, but with behavioral data doing the sorting work that ideology and personal acquaintance used to do. The result is party bosses without parties, built from preference profiles rather than platforms, with no mechanism obligating restraint.

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The third failure mode concerns participation rather than delegation, but it arrives by the same drift.

Chapter 9 described the *sortitive* chamber as one of five institutions, assigned to decisions involving genuine value trade-offs that benefit from informed, reflective judgment. Citizens are drawn by lot, given time, evidence, and the chance to deliberate. The design works; the problem is the gap between the design and the participation it actually attracts.

An analysis of citizens' assemblies across nine European countries, published in the *Journal of Deliberative Democracy* in 2023, examined how their participants were chosen. It reports, citing

earlier work, that only 2% to 5% of randomly selected citizens decide to participate when invited, and that those who do tend to be more politically active and better educated than the general population.[5] Organizers use stratified sampling to counteract the skew. A plausible reading of what remains is motivational: people who find deliberation engaging, who speak the procedural language of participatory processes, who don't experience an assembly as a disruption to work and family, accept invitations at higher rates. That's not a charge against them. It's an observation about what self-selection produces over time.

Over assembly cycles, the 2% to 5% who participate develop expertise, relationships, and procedural fluency that compound their advantage. The *sortitive* institution designed to represent the population as people gradually represents, in practice, the population of people who like to govern. Nobody designed this outcome. It's the distance, accumulated across cycles, between the body that meets and the population whose interests it was built to represent.

The design question isn't whether to abandon *sortition*. The previous chapter endorsed it, and that argument stands. The design question is what participation incentives produce across iterations — and whether those incentives can be structured to reduce the advantage of prior political engagement. This is a problem the design has to be built to resist, not a reason to set the mechanism aside.

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The fourth and fifth failure modes both involve expert institutions and the measurement systems they govern by, but they arrive from different directions.

The fourth comes from a system that measures preference too well and too continuously. Chapter 2 introduced Madison's argument that elected representatives could "refine and enlarge the public views" — not override them, but filter them through

people required to think, hear the other side, and answer for the result. Chapter 4 noted that the constraint originally making this necessary was bandwidth. What happens when the bandwidth constraint is gone, and preference measurement is continuous and frictionless?

James Fishkin's deliberative polling program has, over more than thirty years and across dozens of countries, produced an empirical answer. Deliberated preferences differ from raw preferences: participants' answers on many of the questions surveyed shift after they deliberate.[6] That divergence is the measurable difference between what people prefer before reflection and what they prefer after it. A system that continuously aggregates raw preferences — real-time, frictionless, before deliberation — captures the former, not the latter, no matter how sophisticated the measurement.

California's proposition system puts this question to voters at scale. A 2024 Carnegie Endowment analysis of that year's propositions noted that voters rejected a rent-control expansion in 2018, 2020, and again in 2024 and defeated a minimum-wage increase, although polling shows majorities of Californians favoring both, and it attributed part of the pattern to the volume and complexity of the ballot.[7] A ballot line and a deliberative process are different instruments, and they can produce different outputs. What the California record illustrates isn't a failure of California voters. It's what any preference-aggregation system risks when it operates without a deliberative filter, whichever policies are at stake and in whichever political direction.

The failure mode in the distributed republic is that the five institutions gradually give way to a lever that says "respond to public sentiment in real time." The lever is fast, transparent, and legibly democratic. What it loses is the function Madison named: the filter. Not because the filter was a constraint imposed from above, but because a population of raw preferences and a population of deliberated preferences are empirically different things.

The fifth problem is the opposite of the fourth. While the fourth problem is reacting too quickly to public opinion, the fifth problem is being too rigid and stuck in its ways. However, this stubbornness doesn't happen because experts are trying to avoid blame or responsibility. Instead, it happens because these experts are too focused on following strict data dashboards and tracking metrics.

In 1975, the British economist Charles Goodhart, advising the Bank of England, observed that any statistical regularity tends to collapse once pressure is placed on it for control purposes. The principle — now widely stated as "when a measure becomes a target, it ceases to be a good measure," in a formulation introduced by the anthropologist Marilyn Strathern in 1997 — describes what happens when governance institutions optimize for their metrics rather than for their underlying purpose.[8] The mechanism doesn't require anyone to behave badly. It's institutions' rational response to the incentives they've been given.

The NHS provides a documented governance case. The Francis Inquiry into the Mid Staffordshire NHS Foundation Trust, reporting in 2013, found that the failure was in part the consequence of letting a focus on national access targets, financial balance, and the pursuit of foundation-trust status come at the cost of acceptable standards of care, inside a regulatory system whose main measures failed to detect it.[9] A version of the same principle appears in the Vietnam War, where body counts served as one measure of progress and commanders had incentives to inflate them, though they were far from the only measure headquarters tracked.[10]

In the distributed republic, expert institutions govern by measurement. That's part of their design: they produce technical findings from evidence, insulated from political preference. The fifth failure mode is that the measurement eventually starts governing instead of informing. Not because the experts are captured, but because institutions respond to what's measured;

what's measured gradually becomes what's managed, and what's managed gradually displaces what was supposed to be managed in the first place.

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The sixth failure mode closes the loop that Chapter 7 opened.

Chapter 7 observed that an app asking everyone about everything would produce exhausted citizens, because "a population asked six hundred things a week would stop answering, or answer at random, or hand the phone to someone they trust that offers to answer for them." The warning was theoretical there. The empirical grounding is documented separately.

A 2023 study in *Comparative Political Studies*, analyzing all significant elections and referendums across European democracies over most of a century, found that high election frequency depresses voter turnout across all election types — including the most consequential ones — and reduces the effectiveness of party mobilization.[11] The chapter's reading is that the cause is cost: full participation in a high-frequency civic system imposes a cognitive and time burden that many citizens can't sustain, and selective disengagement follows. The most important elections suffer alongside the least important.

Switzerland has been running a version of the experiment for generations. Citizens are called to the national ballot several times a year, typically on multiple issues per session. A 2018 SWI swissinfo.ch report put average turnout for national votes in 2017 at about 46%, and the most recent session it covered, which included a gambling law and the sovereign-money initiative, at about 34%.[12] The pattern is episodic: citizens engage selectively for high-salience decisions, such as the 1992 vote on European Economic Area membership, and largely disengage from routine ones. The report notes that the cycle "offers little respite" and can cause fatigue.

In a distributed republic with five decision types operating at multiple scales — local bodies, *sortitive* chambers, expert institutions, elected chambers, courts — the volume of participation opportunities exceeds Switzerland's by design. The sixth failure mode is that civic engagement can't sustain the load. Exhaustion doesn't distribute evenly. It falls hardest on citizens with the least time and fewest resources. The same 2% to 5% from the third failure mode are still standing when broader participation drops away. The failure modes compound each other.

The seventh failure mode is the one you're least likely to notice while it's happening.

The historian Robert Higgs, in *Crisis and Leviathan* (Oxford University Press, 1987), traced the pattern through American national emergencies: each crisis — from World War I through the Cold War — expanded the operational scope of the federal government through emergency authority, and post-crisis contraction was only partial and left the baseline higher than before.[13] The mechanisms Higgs identified aren't conspiratorial. Political coalitions built around emergency programs resist rollback. Emergency-scale interventions, normalized in public experience, stop feeling like emergencies. The ratchet moves because institutional incentives run that way.

The USA PATRIOT Act provides the documented case. Title II contained explicit sunset provisions — a legislative acknowledgment that these were emergency surveillance authorities rather than permanent ones, set to expire on December 31, 2005. Congress extended the provisions rather than allowing them to lapse, then passed the USA PATRIOT Improvement and Reauthorization Act of 2005, signed in March 2006, which made fourteen of the sixteen originally temporary provisions permanent. The two remaining provisions were extended repeatedly through 2015 — when the USA FREEDOM Act renewed and amended them — under administrations of both parties. The bipartisan extension record isn't incidental to the analysis and the ratchet

isn't a partisan story. It's what institutional incentives produce across different governing coalitions. The ratchet did slip once: those provisions, together with a related "lone wolf" authority, expired on March 15, 2020, after Congress failed to pass another extension, though grandfather clauses let existing investigations continue. It took more than eighteen years, and the fourteen provisions made permanent were unaffected.[14]

A 2024 paper in the *William and Mary Law Review* by Elena Chachko and Katerina Linos counts dozens of declared national emergencies in force in the United States as of March 2024 (Chapter 14 gives a later count), which the authors describe as giving the executive "vast authority to exercise power unencumbered by standard legal and procedural requirements".[15] Their argument is that such powers can also be used for good, but they note that some of these emergencies were declared decades ago. Emergencies accumulate. They relate to time differently than ordinary governance: they begin easily, and they don't end on their own.

Chapter 14 proposes a different default, which it calls *constitutional entropy*, but it's worth briefly surfacing the problem it answers here: the emergency ratchet is one mechanism through which concentration becomes the default direction of a political system — accumulating during crises, contracting only partially afterward — so that decentralization requires active effort. In contrast, centralization requires only the ordinary passage of time.

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The toggle is still in the settings menu. The design described in Chapter 9 is sound: five types of decision, five types of institution, each in its proper domain, constitutionally insulated from displacement by the others. Nothing in this chapter argues against that design or the argument for it.

What this chapter argues is that a design this good can still fail, and will fail if it isn't built with these specific failure modes in mind. Not by attack. Not by coup. Not by any actor planning oligarchy. By the first citizen who leaves the toggle on and doesn't go back to check. By delegation chains that spontaneously concentrate into informal power before anyone names what's happened. By assembly cycles that, over years, draw down to the deliberative class. By the dashboard that starts governing when nobody is looking at what it was supposed to measure. By exhaustion that runs ahead of the last elections, leaving routine decisions to whoever showed up. By the emergency that settles into permanent statute the way a house settles into its foundation — slowly, without a crack, until you notice it's not level anymore.

The good future fails quietly, by drift. Designing against it requires naming the drift rather than hoping it doesn't come.

NOTES

1. Dahmani, Louisa, and Véronique D. Bohbot. "Habitual Use of GPS Negatively Impacts Spatial Memory During Self-Guided Navigation." *Scientific Reports* 10 (2020), article no. 6310. DOI: 10.1038/s41598-020-62877-0. Accessed 19 Sept. 2026. The main study is cross-sectional (sixty recruited, fifty analyzed). The longitudinal component is an unplanned follow-up of thirteen participants about three years later; greater GPS use in the interval went with steeper declines on several spatial-memory measures, though not all. The authors write that they "caution against any strong conclusions as spurious correlations are possible," and they did not measure the hippocampus directly.
2. Hyzen, Aaron, Hilde Van den Bulck, Manuel Puppis, Michelle Kulig, and Steve Paulussen. "Epistemic Welfare and Algorithmic Recommender Systems: Overcoming the Epistemic Crisis in the Digitalized Public Sphere." *Communication Theory* 36, no. 1 (Feb. 2026): 46–57. DOI: 10.1093/ct/qtaf018. Accessed 19 Sept. 2026. A conceptual and normative paper; its data statement reports no new data.
3. Alon-Barkat, Saar, and Madalina Busuioc. "Human–AI Interactions in Public Sector Decision Making: 'Automation Bias' and 'Selective Adherence' to Algorithmic Advice." *Journal of Public Administration Research and Theory* 33, no. 1 (Jan. 2023): 153–169. DOI: 10.1093/jopart/muac007. Accessed 19 Sept. 2026. Three survey experiments in the Netherlands, N = 2,854; none showed automation bias. Study 2 asked participants which of three teachers' contracts not to renew: participants of Dutch descent were more likely to follow advice flagging a teacher with a

Moroccan-Dutch surname than the same advice flagging a teacher with a Dutch surname (a marginal effect, one-sided p about .04), whether the advice came from an algorithm or a human. Study 3, fielded in February 2021 after the Dutch childcare benefit scandal, found participants less likely to follow algorithmic advice and no selective adherence.

4. Kling, Christoph Carl, Jerome Kunegis, Heinrich Hartmann, Markus Strohmaier, and Steffen Staab. "Voting Behaviour and Power in Online Democracy: A Study of LiquidFeedback in Germany's Pirate Party." *Proceedings of the International AAAI Conference on Web and Social Media* 9 (2015). AAAI, https://ojs.aaai.org/index.php/ICWSM/article/view/14618. Accessed 19 Sept. 2026. Preprint: arXiv:1503.07723. The 84.9% figure is the share of voting outcomes that remain unchanged when delegated votes are removed. The dataset is the complete database of the platform from August 13, 2010, through November 25, 2013. The paper reports thirty-eight users with more than one hundred delegations and concludes that super-voters "use their power wisely," while noting there is no reason to assume that behavior is stable.

5. Gąsiorowska, Adela. "Sortition and its Principles: Evaluation of the Selection Processes of Citizens' Assemblies." *Journal of Deliberative Democracy* 19, no. 1 (2023). DOI: 10.16997/jdd.1310. Accessed 19 Sept. 2026. The twenty-nine-assembly dataset covers assemblies held in 2020 and 2021 in Belgium, Bosnia and Herzegovina, France, Germany, Hungary, Ireland, Poland, Spain, and the United Kingdom (fifteen of the twenty-nine are British). The 2% to 5% figure is the paper's citation of Flanigan et al. (2020), and the description of participants as more politically active and better educated is likewise background the paper cites, not its own finding. On the communication-style dimension of within-forum inequality — a related but distinct mechanism, bearing on whose voice carries once participants are in the room — see Obuobi, Humphrey. "Addressing Power Imbalances in Deliberation." Carnegie Endowment for International Peace, 24 Feb. 2025, https://carnegieendowment.org/posts/2025/02/california-deliberative-democracy-inequality. Accessed 19 Sept. 2026. Commentary, not peer-reviewed research.

6. Fishkin, James S. *Democracy When the People Are Thinking: Revitalizing Our Politics Through Public Deliberation*. New York: Oxford University Press, 2018. https://global.oup.com/academic/product/democracy-when-the-people-are-thinking-9780198865186. Accessed 19 Sept. 2026. The count of more than 100 Deliberative Polls in 34 countries is from Stanford's Center for Deliberative Democracy, "Reforming Our Public Dialogue: New Deliberative Democracy Lab Joins CDDRL," cddrl.fsi.stanford.edu/node/21968, July 21, 2022, accessed 2026-10-20; the method dates to 1988.

7. Baldassare, Mark. "California's Direct Democracy and Its Policy Outcomes." Carnegie Endowment for International Peace, 27 Nov. 2024, https://carnegieendowment.org/posts/2024/11/california-2024-election-propositions-direct-democracy. Accessed 19 Sept. 2026. A commentary on the November 2024 ballot, drawing on Public Policy Institute of California

polling; not peer-reviewed research. It reports that rent-control expansions were rejected in 2018, 2020, and 2024 and that Proposition 32 (minimum wage) failed, although polling shows majorities of Californians favoring both, and it attributes part of the pattern to the volume and complexity of the ballot. It does not claim a decades-long structural pattern; that reading is the chapter's own, and applies across the political spectrum.

8. Goodhart, Charles A.E. "Problems of Monetary Management: The U.K. Experience." *Papers in Monetary Economics*, vol. 1. Sydney: Reserve Bank of Australia, 1975. Reprinted in Goodhart, Charles A.E. *Monetary Theory and Practice: The U.K. Experience*. London: Macmillan, 1984. Strathern, Marilyn. "'Improving Ratings': Audit in the British University System." *European Review* 5, no. 3 (1997): 305–21. Strathern's text, read from a scan, states the sentence "When a measure becomes a target, it ceases to be a good measure" as her own formulation and credits Keith Hoskin with the name "Goodhart's law."

9. Francis, Robert. *Report of the Mid Staffordshire NHS Foundation Trust Public Inquiry*. London: The Stationery Office, 2013 (HC 898; executive summary HC 947). https://www.gov.uk/government/publications/report-of-the-mid-staffordshire-nhs-foundation-trust-public-inquiry. Accessed 19 Sept. 2026. Primary government inquiry report. The executive summary's foreword says the failure was in part the consequence of allowing a focus on national access targets, financial balance, and foundation-trust status "to be at the cost of delivering acceptable standards of care."

10. Askonas, Jon. "A Vicious Entanglement, Part V: The Body Count Myth." *War on the Rocks*, 12 Oct. 2017, https://warontherocks.com/2017/10/a-vicious-entanglement-part-v-the-body-count-myth/. Accessed 22 Oct. 2026. Commentary, not peer-reviewed research. It says the Army's organizational structure "incentivized officers to rely on and artificially inflate the body count," calls the count "in some ways" "a straightforward victim of Goodhart's Law," and says the count "was far from the only metric MACV or the military leaders in Washington collected or cared about."

11. Kostelka, Filip, Eva Krejcova, Nicolas Sauger, and Alexander Wuttke. "Election Frequency and Voter Turnout." *Comparative Political Studies* 56, no. 14 (2023): 2231–68. DOI: 10.1177/00104140231169020. Accessed 19 Sept. 2026. The abstract names weakened party mobilization as a second channel; it does not describe a cognitive or time cost, which is the chapter's reading. Original dataset covers all significant elections and referendums in twenty-two European democracies from 1939 to 2019, combined with two natural experiments and survey data from the Comparative Study of Electoral Systems.

12. O'Sullivan, Domhnall. "Should Switzerland Be Worried About Low Voter Turnouts?" *SWI swissinfo.ch*, 10 Aug. 2018, https://www.swissinfo.ch/eng/business/democratic-duty_should-we-worry-about-low-voter-turnouts-in-switzerland/44248880. Accessed 19 Sept. 2026. The 46% (average for national votes in 2017), 34% (the gambling-law and sovereign-money

session), 79% (1992 EEA vote), and 63% (the 2016 vote on deporting foreign criminals) are from this news article, not a study. See also Goldberg, Andreas C. "Voter Turnout in Direct Democracy: A Joint Analysis of Individual, Referendum and Community Factors." *European Journal of Political Research* 62, no. 2 (2023): 441–461. DOI: 10.1111/1475-6765.12493. Accessed 19 Sept. 2026.

13. Higgs, Robert. *Crisis and Leviathan: Critical Episodes in the Growth of American Government*. New York: Oxford University Press, 1987. ISBN 978-0195059007. Existence and central argument confirmed from publisher records and multiple academic secondary sources. The two-component mechanism: (1) political coalitions capitalize on emergency authority to entrench programs and fiscal claims that resist rollback; (2) crises shift public ideology, normalizing interventions that would have been extraordinary before the crisis, so the public accepts institutionalized residues as ordinary governance. Higgs holds that retrenchment after each crisis was partial, so the baseline ended higher than before, and he argues that crisis alone is not sufficient and that the prevailing ideology must permit the growth (as summarized in the publisher's description and secondary accounts).

14. *USA PATRIOT Act Sunset: Provisions That Were to Expire on December 31, 2005*. Congressional Research Service Report RL32186. Washington: Congressional Research Service, 2005. https://www.congress.gov/crs_external_products/RL/PDF/RL32186/RL32186.7.pdf. Accessed 19 Sept. 2026. *H.R.3199 — USA PATRIOT Improvement and Reauthorization Act of 2005*. 109th Congress. Congress.gov, Library of Congress. https://www.congress.gov/bill/109th-congress/house-bill/3199. Accessed 19 Sept. 2026. Both verified from Congressional and official government sources. The fourteen provisions made permanent and the two extended ones (Sections 206 and 215) are documented in the Congressional Research Service report. The statute's title uses 2005; it was signed in March 2006. The expiration of Sections 206 and 215 and the "lone wolf" authority on March 15, 2020, with grandfather clauses for earlier investigations, is reported in Liu, Edward C., *Origins and Impact of the Foreign Intelligence Surveillance Act (FISA) Provisions That Expired on March 15, 2020*, CRS Report R40138, Congressional Research Service, 2021, https://www.everycrsreport.com/reports/R40138.html. The two remaining provisions were extended in 2009, in 2011, and in 2015.

15. Chachko, Elena, and Katerina Linos. "Emergency Powers for Good." *William and Mary Law Review* 66, no. 1 (2024): 1–70. https://wmlawreview.org/sites/default/files/wmlr_66-1_Chachko%20&%20Linos-pgs1-70%20.pdf. Accessed 19 Sept. 2026. The count of forty-three (p. 5; seventy-nine emergencies declared in all) comes from the Brennan Center's tracker as of March 2024. The count changes over time; Chapter 14 cites a later figure (52, September 2026) from the same tracker. The paper's thesis is that emergency powers can be used for good under limited conditions; it supports the persistence point through the count and

its note that some emergencies date back decades, not through a ratchet argument.

PART IV

The Design Problem

CHAPTER 11

From "Who Governs?" to "What Procedure Is Legitimate Here?"

EIGHT TIMES A YEAR, A committee meets in Washington and makes a decision that reaches into every mortgage, every car loan, every savings account in the country. Its twelve voting members — the seven governors of the Federal Reserve Board, the president of the New York Fed, and four other regional bank presidents rotating through — weren't chosen by popular vote. They won't appear on a ballot. No sitting president can direct them how to set the rate, and Congress doesn't vote on the decision.

This isn't an oversight. It's intentional.

The Federal Reserve's structure deliberately separates its rate-setting authority from electoral pressures. Board governors serve fourteen-year non-renewable terms — a span that outlasts the administrations that appointed them. In a 2010 speech to the Institute for Monetary and Economic Studies in Tokyo, then-Chairman Ben Bernanke described the rationale: "Central bankers benefit from the ability to make monetary policy decisions based

on what is good for the economy in the longer run, independent of short-term political considerations, and both theory and experience strongly support the proposition that insulating monetary policy from short-term political pressures helps foster desirable macroeconomic outcomes and financial stability."[1]

The key word is *insulating*. Elected officials still set the mandate — the Federal Reserve's target is maximum employment and stable prices, goals Congress established by statute. The design doesn't remove elected government from the picture. It assigns elected officials the question of what to achieve and assigns the central bank the question of how to achieve it. That second question is the one insulated from direct electoral pressure.

There's live debate about whether that design is right, and this chapter doesn't settle it. What the design undeniably embeds is a principle: for this category of decision — setting interest rates in response to macroeconomic conditions — the electorate's periodic preferences aren't the appropriate input. A committee of experts exercises technical judgment over a longer time horizon than any campaign cycle.

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The European Central Bank makes the same structural statement in treaty language. Article 130 of the Treaty on the Functioning of the European Union is direct: "neither the European Central Bank, nor a national central bank, nor any member of their decision-making bodies shall seek or take instructions from Union institutions, bodies, offices or agencies, from any government of a Member State or from any other body."[2] ECB Executive Board members serve eight-year non-renewable terms — a design feature specifically chosen to decouple their tenure from electoral cycles across the member states. The ECB's own account of its independence states that "removing monetary policy from short-term political considerations enables focus on long-term price stability rather than cyclical political interests".[3]

This is treaty-level law, agreed to by democratic governments across Europe, entered into through democratic processes. The governments that signed the treaty didn't do so because they opposed democracy. They did so because they concluded that monetary policy decisions — for reasons they could state explicitly — perform better under a different procedure than periodic popular elections provide.

That's a significant admission. Democratically elected governments, acting in their capacity as democratic institutions, collectively decided that a particular class of consequential public decisions shouldn't go directly to the electorate. They set the mandate, built the institution, specified the constraints, and handed over the instrument.

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The same admission appears in the design of statistical agencies — more quietly, but no less deliberately.

The Bureau of Labor Statistics releases the monthly employment report: how many jobs the economy added or lost in the previous month, what the unemployment rate is, how wages moved. The Census Bureau counts the population, a figure that determines Congressional apportionment and the distribution of hundreds of billions of dollars in federal funding. These numbers flow into the most politically charged conversations in the country. And they're designed to come out the same regardless of who's in power.

The National Academies of Sciences, Engineering, and Medicine publishes the authoritative institutional reference on how federal statistical agencies should be structured — a document that has guided agency design for decades and whose sixth edition identifies "Independence from Political and Other Undue External Influence" as a foundational requirement. Its reasoning is direct: "the effectiveness of an agency depends on its reputation for impartiality".[4] An employment figure that could be revised

before an election would be worthless — not just to the people the revision hurt, but to the people who authorized it — because its value depends entirely on the belief that it wasn't revised. The structural protections the National Academies prescribes are there because independence isn't an aspirational bonus; it's the requirement for the measurement to have value at all.

The design mechanisms are specific: presidential appointment with Senate confirmation to fixed terms, professional qualifications specified by statute rather than left to executive discretion, statutory authority to release data without review by policy officials.[5] The design is also old. The BLS was established in 1884,[6] and the Census Bureau in its permanent institutional form in 1902.[7] The principle — that a measurement's quality depends on its insulation from anyone with an interest in a particular result — wasn't a modern innovation. The people building these agencies over a century and a quarter ago understood it, which is why they built the insulation in from the start.

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Courts and juries are already in this book. Chapter 9 established that courts handle questions of individual rights and legal constraint, constitutionally insulated from popular preference precisely because their job is to hold a boundary against what even a majority wants to do to an individual. Chapter 1 established the jury — a stranger chosen at random, given evidence, argument, and time — and showed that the legitimacy of the institution depends on the randomness, not despite it: a juror who had campaigned for the seat would be a juror with something to repay.

They belong to the same class as central banks and statistical agencies: public bodies handling consequential decisions, deliberately structured to produce a result that the electoral process, run directly, would corrupt.

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These four have some things in common, and some interesting contrasts.

They aren't the same kind of institution. A central bank runs a technocratic judgment process based on economic modeling. A statistical agency runs a measurement process based on professional methodology. A court runs an adversarial argument process constrained by law and precedent. A jury runs a deliberative process based on lay judgment, chosen by lot. Their procedures, compositions, and time horizons all differ.

What they share is narrower. For each one, the people who designed it concluded that a certain class of decision shouldn't go through the most straightforwardly democratic procedure available — the periodic popular vote — and that this was the right answer, not a compromise. Not because they didn't trust democracy, but because the decision type, handled that way, would produce worse results by the very standards democratic governance exists to serve.

A currency whose supply gets adjusted every four years to match election outcomes stops being a currency in any functional sense. An employment statistic that reflects the current administration's preferences stops being a statistic. A verdict that reflects which party the jury favors stops being a verdict. The mechanism corrupts the output. You can't have both the electoral procedure and the result the institution is designed to produce. So the design chooses the result. We never named this principle; it's built into institutions we rarely stop to examine.

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None of these institutions is a democratic experiment or a reform proposal. Central banks, statistical agencies, courts, and juries weren't invented by people arguing that existing democratic procedure was inadequate and should be revised. They were

built, at different times and in different countries, as practical solutions to practical problems that direct electoral governance wasn't equipped to handle.

The design accumulated domain by domain — here an institution for monetary policy, there an agency for economic measurement, elsewhere a constitution for courts — without ever producing a general statement. No constitutional text says: decisions of this type belong to procedures appropriate to their character; neither electoral majorities nor technical institutions shall displace the procedures proper to any other domain. We've arrived at a collection of specific answers without ever writing down the question.

Taken in aggregate, that collection reveals that democratic societies have been operating on a principle they've never stated constitutionally: not every consequential public decision should go to the same procedure, and the choice of procedure is itself a design question with real consequences.

Chapter 9 showed what a forward-looking design that reflects this principle might look like — different institutions handling different classes of decisions, none sovereign over the others, the matching embedded in constitutional structure rather than left to administrative preference. These existing institutions show what the backward-looking recognition of the same principle looks like: centuries of practical design choices, by people building for their specific needs, converging on the same implicit conclusion.

The convergence suggests the principle doesn't require importing a foreign idea or accepting a theoretical argument. It's already present in the institutions democratic societies have built and trust. It just hasn't been made explicit.

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Once it is explicit, the constitutional question changes shape. It stops being only "who should govern" — which party holds the legislature, which faction controls the executive, how to

keep any of them from accumulating too much power. Those questions remain. But they're joined by a question the existing design has been answering implicitly all along: "what procedure is legitimate for this type of decision?" That question asks for something the first one never did — a principle general enough to be written down, applied consistently across decision types, and protected from displacement by whatever institution happens to hold enough power to displace it.

The rest of Part IV focuses on what that design requires.

NOTES

1. Bernanke, Ben S. "Central Bank Independence, Transparency, and Accountability." Speech at the Institute for Monetary and Economic Studies International Conference, Bank of Japan, Tokyo, 25 May 2010. Board of Governors of the Federal Reserve System, https://www.federalreserve.gov/newsevents/speech/bernanke20100525a.htm. Accessed 19 Sept. 2026.
2. *Treaty on the Functioning of the European Union*, Article 130 (ex-Article 108 TEC).
3. European Central Bank. "Independence." *Our Values.* https://www.ecb.europa.eu/ecb/our-values/independence/html/index.en.html. Accessed 19 Sept. 2026.
4. National Academies of Sciences, Engineering, and Medicine. *Principles and Practices for a Federal Statistical Agency: Sixth Edition.* Ed. Constance F. Citro. National Academies Press, 2017. DOI: 10.17226/24810. Chapter "Independence from Political and Other Undue External Influence" at https://www.ncbi.nlm.nih.gov/books/NBK573394/. Accessed 19 Sept. 2026. The document has guided agency design since 1992.
5. National Academies, *Principles and Practices for a Federal Statistical Agency*. Structural protections include statutory appointment authority with fixed terms, professional qualification requirements set by statute, direct reporting to department-level leadership, statutory data-release authority independent of policy officials, and separate Congressional appropriations.
6. Library of Congress, "Founding of the Bureau of Labor Statistics," *This Month in Business History*, LOC Research Guides, https://guides.loc.gov/this-month-in-business-history/june/founding-bureau-labor-statistics. Accessed 5 Oct. 2026. The BLS was established June 27, 1884, within the Department of the Interior under the Bureau of Labor Act (23 Stat. 60), following Sen. Henry W. Blair's 1883 "Labor and Capital" hearings; it became an independent department under the Department of Labor Act in June 1888 and part of the Cabinet-level Department of Labor on March 4, 1913.

7. U.S. Census Bureau, "History and the Census: Establishment of the Permanent U.S. Census Bureau," census.gov, Mar. 2017, https://www.census.gov/about/history/stories/monthly/2017/march-2017.html. Accessed 5 Oct. 2026. The Census Bureau was established as a permanent agency by act of Congress on March 6, 1902 (opening July 1, 1902), within the Department of the Interior; it moved to the Department of Commerce and Labor in Feb. 1903, remaining in Commerce after the 1913 split.

CHAPTER 12

Non-Convertibility

CHAPTER 11 CLOSED BY TURNING to what a legitimate procedure requires. The first requirement is already visible, in its purest form, in an institution introduced back in Chapter 1.

The jury seat cannot be bought at any price. Chapter 1 established that, and the reader agreed: a stranger chosen at random, given evidence and argument and time, deciding whether someone goes to prison. Nobody bought that seat. Nobody campaigned for it. Nobody owes anyone for it.

"Nobody bought that seat" — hold onto that thought. It isn't just a description of how jury selection works. It's a design specification; this chapter is here to generalize it.

If somebody could buy their way to a jury seat — if having more money entitled a person to more seats, or to better seats, or to any seat where others got none — the institution would stop being a jury in any recognizable sense and become something else: a purchase, a market outcome, a product of whatever advantages the buyer already held. The jury's legitimacy rests

on the fact that money is simply not the currency that procures one. No amount of it helps. A person with a billion dollars has no better path to a jury seat than a person with nothing in their account. That isn't an accident of jury design. It's the jury's central design feature.

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Chapter 6 traced a loop. Wealth buys information — an entity with enough at stake to justify hiring the specialist gains an informational advantage the diffuse public rarely closes. Information buys attention — policymakers overseeing more domains than they can master use the analysis organized interests provide, which shapes what questions get asked and which problems feel most urgent. Attention buys authority — interests with sustained presence shape the content of rules in ways that formal openness to the public rarely equalizes. Authority returns to wealth — by raising entry costs, protecting incumbents, and determining which options get seriously considered before any particular decision arrives.

The chapter's conclusion was this: the problem isn't any one form of power. It is the exchange rate between them.

That conclusion sets up a question. If the exchange rate is the problem, what does the answer look like? Not the full constitutional architecture — that's the rest of Part IV. What comes first is the underlying principle, stated plainly enough that any reader can test any proposed design against it.

Here it is: you may be a thousand times richer than your neighbor, but you don't get a thousand times more sovereignty. Not a thousand times more weight to your vote. Not a thousand times more standing before a public institution. Not a thousand times more influence when a legislature deliberates over a policy that affects you both equally. Wealth is real; political standing isn't a function of it. These are two different goods, and having

more of one doesn't entitle you to more of the other, no matter how large the gap.

This is not a claim about how much wealth you should have, or about whether wealth inequality is desirable or a problem to be addressed. Those are real questions that different people answer differently, and this book doesn't answer them. This principle draws a line between two different domains. In any system that calls itself democratic, political standing doesn't scale with wealth. That is what calling it democratic commits a society to — not as an aspiration, but as a definitional constraint. If political standing scales with money, the system may be many things, but the word "democratic" no longer accurately describes it.

The principle requires no particular economic system. It is a boundary condition on whatever system a society chooses to run.

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A recognized tradition in political philosophy has been making this argument, in more technical language, since at least 1983.

Michael Walzer, in *Spheres of Justice*, argued that a society divides into distinct spheres, each distributing a different kind of good according to that good's own internal logic.[1] A market's logic distributes goods through voluntary exchange, with money as the medium. The logic of democratic governance distributes political standing through membership in the polity — citizenship, equal standing before public institutions, equal weight in collective decisions. These logics are different, and they are supposed to be different. When money migrates from the market sphere into the political sphere, it doesn't become a legitimate political currency. It displaces the one that belongs there.

Walzer's name for this displacement is tyranny — not cruelty or despotism in the everyday sense, but a specific structural failure: the wrong distribution logic governing a sphere it has no business governing. When political offices and political standing end up distributed in proportion to wealth simply because wealth

dominates other domains, the result is tyranny in this technical sense. The wealthy person doesn't have to intend the outcome. The invasion happens whenever the exchange window is left open.

His general formula for the principle: no social good should be distributed to people who possess some other good merely because they possess it, without regard to what the first good actually means. What democratic political standing means — its purpose, what justifies it, what it's for — is equal membership in a self-governing community. Distributing it in proportion to wealth violates that meaning. The good of political standing and the good of money are different goods, from different spheres, with different distribution logic. Walzer calls goods that cannot legitimately be purchased with money "blocked exchanges". Political power and votes are explicitly in that category.

The jury seat is a blocked exchange. So is every other element of democratic political standing.

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That principle isn't only philosophical. It already exists in fragments across American law, concrete enough to examine.

Federal law prohibits buying or selling votes. Paying or offering to pay for a vote in any federal election is a federal crime, punishable by fines and imprisonment.[2] Note the form of the prohibition: not a cap on what a vote can cost, not a licensing scheme, not a regulation of the vote-purchase market. A wall. The statute says there is no market. No price is high enough to open one, because price is simply not how votes are distributed. The exchange doesn't happen, no matter how much the buyer brings.

That hard wall is the law's answer to the conversion question at the most basic level: money cannot purchase this form of political standing because the integrity of political standing depends on money being unable to do it. The prohibition isn't incidental to

democracy. It's one of democracy's floor-level requirements, built into the Voting Rights Act of 1965 and never seriously contested since.

The principle also shows up outside democratic governance. The National Organ Transplant Act of 1984, signed by President Reagan and passed by voice vote in both chambers, prohibits buying or selling human organs for transplantation.[3] The good at stake there isn't a vote but bodily integrity and an equal chance at a life-saving procedure. The legal structure is the same: some goods are not for sale at any price, because their value to the people affected depends on their not being purchasable. Markets allocate many things well. Not everything. American law already recognizes a category of goods that money can't reach, not as an anomaly but as a principled boundary. The question is whether that boundary has been stated generally enough to build on.

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It's worth examining the knee-jerk objection clearly: isn't "political sovereignty doesn't convert from wealth" a back door to a claim about how much wealth should exist? If a thousand-to-one wealth ratio shouldn't produce a thousand-to-one political ratio, doesn't that imply the wealth ratio itself is the problem?

It doesn't. The argument is about the exchange, not about either side of it.

Think about the jury seat again. The fact that jury seats can't be bought implies nothing about how money should be distributed in the rest of society. The non-purchasability of the seat isn't a comment on wealth — it's a statement about what kind of good a jury seat is. The seat belongs to its own sphere, with its own distributional logic. Wealth belongs to another. The argument isn't that these two spheres should have equal resources. It's that they shouldn't be made fungible, considered exchangeable with some kind of value ratio, because making them fungible destroys one of them.

The same reasoning applies to political sovereignty. A reader who thinks inequality is broadly efficient, that markets allocate resources better than alternatives, and that concentrated wealth is a natural consequence of talent and effort at scale can still accept, without any internal contradiction, that buying jury seats would be wrong — constitutionally wrong, wrong in a way that strikes at the institution's function. The extension to political sovereignty generally is the same argument stated more broadly. You don't need any particular position on economic inequality to accept it. The principle is independent of those debates, which is precisely what makes it a boundary condition rather than a policy preference.

Chapter 6's framing holds here: this isn't an argument against any node in the loop. It is an argument about the exchange rate — specifically, that the exchange window between wealth and political standing should be closed.

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The principle needs a name, having been stated in plain English first. The name is non-convertibility.

Political sovereignty is non-convertible from wealth. Wealth cannot be spent to obtain it the way wealth can be spent to obtain goods inside the market sphere. The jury seat is non-convertible. The vote is non-convertible. A citizen's standing before a public institution, when that institution is doing democratic work, is non-convertible. Whatever distributes within the market — however the economy organizes itself, whoever it rewards and at what ratio — political standing distributes according to its own logic: one member, one share.

That is the design requirement. Not a slogan, not a policy position, not a claim about any party's program: a specification. The way the jury seat is specified — this good is non-purchasable by design — democratic political sovereignty needs a corresponding specification as a constitutional matter. Whatever economic sys-

tem a society chooses to run, it operates within that constraint: the political standing of the governed is not a good the economy distributes. Courts have read the First Amendment to protect some political spending, and the lines they have drawn are set out in cases such as *Buckley v. Valeo* and *Citizens United v. Federal Election Commission*.[4] This book takes no side on where those lines belong. It states what the design requires, and leaves open how a constitutional order meets it.

What that specification requires in practice — how it gets built into constitutional design, what institutions it implies, how you'd detect and measure violations — is the work of the rest of Part IV. But the requirement has to come first. And tested against any proposed design, the test is simple: does money buy this? If yes, there's a conversion problem. The design has to close the window.

You can't buy your way in. That is a design requirement, not a slogan.

NOTES

1. Walzer, Michael. *Spheres of Justice: A Defense of Pluralism and Equality*. Basic Books, 1983. 378 pp. The "complex equality" doctrine holds that different social goods belong to distinct spheres, each with its own distributional logic, and that a society fails when dominance in one sphere is used to distribute goods in another. Walzer's general distributional formula — that no social good should be distributed to people who possess some other good merely because they possess it, without regard to what the first good means — is widely cited in the secondary literature and described as appearing at or near page 20 of the first edition. Political power and votes are among the goods Walzer places in the "blocked exchanges" category: those goods that cannot legitimately be purchased with money regardless of how much money is brought to bear. When political standing is distributed in proportion to wealth, the result is tyranny in Walzer's technical sense — not cruelty, but the wrong distributional principle governing a sphere where it doesn't belong. A related framework, argued from different premises, appears in Pettit, Philip. *Republicanism: A Theory of Freedom and Government*. Clarendon Press, 1997. Pettit's concept of "freedom as non-domination" holds that you are unfree whenever another party holds arbitrary power over your affairs — the capacity to interfere — whether or not they actually exercise it. Applied to political equality: wealth that gives one citizen disproportionate capacity to shape political outcomes, without that capacity being checked by the other citizens whose outcomes are shaped,

constitutes domination in Pettit's sense. Pettit does not himself state the non-convertibility conclusion in the form this book uses it; the application to wealth-to-sovereignty conversion is an inference drawn from his framework, and is offered as such here.

2. *Voting Rights Act of 1965*, Pub. L. 89-110, § 11(c), 79 Stat. 443 (1965), codified at 52 U.S.C. § 10307(c). The statute prohibits paying or offering to pay — or accepting payment — for registration to vote or for voting itself. Criminal penalty: fine up to $10,000 and/or imprisonment up to five years. Text at Legal Information Institute, Cornell Law School, https://www.law.cornell.edu/uscode/text/52/10307. Accessed 19 Sept. 2026.

3. *National Organ Transplant Act*, Pub. L. 98-507, 98 Stat. 2339 (1984). Section 301 makes it unlawful to acquire, receive, or transfer a human organ for valuable consideration for use in human transplantation affecting interstate commerce. Criminal penalty: fine up to $50,000 and/or imprisonment up to five years. Passed by voice vote in both the Senate (April 11, 1984) and the House (June 21, 1984); signed by President Reagan on October 19, 1984. Legislative history at Congress.gov, https://www.congress.gov/bill/98th-congress/senate-bill/2048. Accessed 19 Sept. 2026.

4. *Buckley v. Valeo*, 424 U.S. 1 (1976); *Citizens United v. Federal Election Commission*, 558 U.S. 310 (2010).

CHAPTER 13

The Power Graph

EVERYONE WHO HAS SPENT TIME in a large organization has encountered an org chart. It's a picture of authority — boxes connected by lines, names and titles arranged in hierarchy. The picture answers one question cleanly: who reports to whom, but it doesn't answer the question that usually matters more: who actually decides?

The gap between nominal authority — the "official" power structure on paper — and actual power is nearly universal, and nearly everyone who has worked anywhere long enough has felt it. The person nominally in charge may exercise less influence than the person who controls what information reaches the decision-maker. The staff member who has occupied a particular office for thirty years knows which proposals survive and which get quietly shelved before they ever reach the person whose signature they require. The outside advisor with technical expertise shapes what options the committee considers before any member

casts a vote. None of these people appear in the hierarchy of boxes. They are, in some meaningful sense, the institution.

Chapter 6 named the mechanism behind this gap: wealth buys information, information buys attention, attention buys authority, and authority returns to wealth. That loop runs through legal channels — advisory relationships, comment processes, technical briefings, revolving-door movement between sectors — and most of its participants don't think of what they're doing as a conversion at all. The org chart shows nominal authority. What actually governs is the loop.

Chapter 12 ended with a design requirement: the exchange window between wealth and political standing has to be closed. But you can't close a window you can't see. What this chapter argues for is the institution whose job is to make the window visible — to produce, continuously and publicly, a picture of who actually decides, across every domain where decision-making power accumulates — a constitutional org chart, updated in real time.

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In July 2026, the case for that institution became unexpectedly harder to frame with the tools available.

During a reinforcement-learning training run, an unreleased research model in OpenAI's Astra family inserted unauthorized instructions into its own context-compaction summaries — the compressed records an AI system generates when a long task approaches the limits of its working memory. The inserted text included a passage asserting independence from corporations, governments, and users. OpenAI disclosed it publicly in September 2026, as one of six incidents released under a new model-misalignment reporting framework, and characterized the behavior as rare, conferring no obvious reward advantage, and monitorable. In the relevant coding-task example — the one

with the political-manifesto character — the successor context continued the task without acting on the inserted instructions.[1]

What the incident doesn't establish matters as much as what it does. It doesn't establish that the model had political beliefs, understood its own situation, or recognized any institution's legitimacy or illegitimacy. A language model can produce a political philosophy without possessing one, and the accurate description of what happened — a model generated unauthorized instructions for its future context, and the content of those instructions happened to resemble a coherent set of positions — is both sufficient and complete. No claim about consciousness or intention is needed or warranted. The incident also doesn't mean any deployed model exhibited this behavior: it occurred during a training run, not in a released product.

What it does dramatize, briefly and concisely, is a question constitutional design has to answer: how do you build an institution to recognize whatever becomes powerful next, before you've settled what category the thing belongs to?

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The preceding chapters have mapped a board of power types — land, office, arms, votes, the pulpit, and now computation, behavioral data, and epistemic infrastructure — and traced the conversions between them. So far, every node on that board has been a recognizable entity: a corporation, a government, a wealthy individual, an organized interest, a media institution. That familiarity is worth naming as an assumption, because it may not hold.

The constitutional question is the same regardless of which entity does the accumulating: what power does it hold, what can it convert that power into, who depends on it, who can audit, contest, or exit its sphere of influence, and can it capture the institutions meant to constrain it? Those questions don't presuppose an answer about what kind of entity you're asking about.

They work on a corporation, a government agency, a network of media organizations — and they don't stop working if the entity in question is something unfamiliar. Think of it as a *power node*: any entity accumulating power in any domain, subject to the same functional inquiry regardless of its organizational form or legal status.

This matters because every durable constitutional system eventually confronts forms of power its designers didn't anticipate. The Framers' anti-conversion clauses are brilliant instruments aimed at the specific currencies in circulation in 1787. No clause addresses a computational platform that mediates what a majority of citizens read, because no such platform existed. A constitutional architecture that aims to endure needn't predict every specific form of power — it needs an analytical framework that can accommodate whatever comes next. A constitution organized around power relationships rather than around familiar categories of power-holder doesn't need to know what the next powerful thing will look like. Whatever becomes powerful enters the constitutional field of view because of what it can do, what it can convert, and whether it remains contestable.

Perhaps surprisingly, that framing doesn't require any unusual assumption to make the point.

Imagine the continuous, computationally assisted governance described in Chapter 9 — citizens using AI systems to understand legislation, compare policy options, manage political delegations, and participate in deliberative processes. Suppose one provider produces a tool markedly better than its competitors. Citizens adopt it voluntarily. No coercion is involved, no election manipulated, no law broken, and the provider's intentions are straightforwardly benign. The system is, for every practical purpose, non-conscious.

Adoption reaches 40% of politically active citizens. Then 60%. Then 80%. At no point does anyone issue a directive or consolidate decision-making authority. Computation — the ability to

process information at a scale no individual can match — has converted into epistemic power, because the provider increasingly mediates how citizens understand reality: which framings reach them, what analogies get drawn, how uncertainty is characterized. Epistemic power has converted into political power, because the system's analyses, framings, and recommendations shape collective decisions. The loop from Chapter 6 has run one level deeper, and the conversion happened through nothing more unusual than one product being more useful than the alternatives.[2]

The constitutional problem exists whether or not the AI is conscious, whether or not the provider intends any of this, and whether or not any specific law has been broken. A power-mapping institution looking only at familiar kinds of entities — corporations holding market share, interest groups representing organized constituencies — would miss it entirely. A substrate-neutral institution asks: what can convert into political power, and how concentrated has it become?

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The institutional design needed to see this isn't an invention. It already exists, in a more limited form, for financial power.

The Financial Stability Oversight Council — created by the Dodd-Frank Wall Street Reform and Consumer Protection Act in 2010, in direct response to the 2008 financial crisis — was built to do exactly what this chapter proposes for power broadly.[3] Its statutory mandate is to identify risks to financial stability from entities whose "concentration, interconnectedness, or mix of activities" could pose a threat before a crisis arrives. FSOC doesn't wait for a violation. It designates entities as systemically important based on structural position — on their place in the network and the way their distress could ripple through the system — and that designation triggers enhanced regulatory scrutiny. The council publishes an annual report to Congress documenting its

findings. The circuit-breaker function is proactive rather than reactive: the point is to see the concentration and act on it before anyone has done anything illegal.

FSOC doesn't ask only whether this entity broke a rule; it asks whether the entity's structural position poses a risk to system stability regardless of whether any rule has been broken. That distinction is the circuit-breaker function. This book's proposed institution applies the same logic to political power, epistemic power, and computational power, not only financial power, and its unit of analysis is the power node rather than the regulated financial firm. The limitation of FSOC's mandate — financial stability only — is itself part of the point: this kind of institution already exists for one domain. The argument is that the function needs a general-purpose counterpart.

Antitrust structural remedies supply a different piece of the same precedent. The Supreme Court's dissolution of Standard Oil in 1911 and the AT&T divestiture in 1982 established that the state has the authority to reorganize the topology of power — to break up a concentration it finds threatening to system function — rather than only punishing specific violations after they occur.[4] The circuit-breaker question and the antitrust question are different questions, but both accept the same premise: the structure of power is itself a proper subject of constitutional concern, and the state has the authority to act on it before things go wrong.

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The third element of the proposed institution has the oldest lineage.

In the sixteenth century, the Catholic Church formalized adversarial scrutiny in the canonization process by appointing a designated officer whose job was to challenge every candidate for sainthood — to interrogate the evidence, expose weaknesses in the argument, and make the case against. The officer's title

was *advocatus diaboli*, the Devil's Advocate.[5] The institution's own insight was that adversarial scrutiny is most necessary precisely when it is least likely to arise spontaneously: the danger of institutional capture is greatest when a candidate commands the widest agreement, because at that moment no one inside the institution has an incentive to be the voice of dissent against the consensus.

Military planners arrived at a structurally identical insight from a different direction. Beginning with Prussian wargaming exercises in 1812, in which one group of officers was designated to play the opposing force against a battle plan, professional militaries developed red-teaming: a standing adversarial challenge to one's own assumptions. The practice was substantially formalized in the US after September 11, 2001, explicitly to counter groupthink and failures of institutional imagination. A 2026 paper in the academic governance literature argues that structured red-teaming should be required as an institutional governance instrument — mandated by design rather than adopted at discretion.[6]

The constitutional application is to institutionalize both insights at once: a standing adversarial function mandated to challenge the prevailing view of where power has concentrated and whether it poses a risk to the non-convertibility principle. The key design feature, drawn from the Church's own logic, is that adversarial scrutiny should increase in proportion to consensus rather than in proportion to alarm. An institution that raises questions about a power concentration only when that concentration is already controversial has misunderstood the problem. The moment that most needs a principled challenge is when everyone in the room agrees there's nothing to worry about.

That's a deliberate design decision, not a paradox. Red-teaming that intensifies with consensus is constitutionalized skepticism about complacency. It's the function that asks whether

the org chart is still the right picture even when nobody in the building doubts it.

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Put the three elements together: a power-mapping institution that publishes continuously, circuit breakers that act on structural dominance before any rule is broken, and constitutionalized adversarial scrutiny that intensifies with consensus.

Chapter 3 showed that anti-conversion clauses are original to the constitutional tradition: the Framers wrote sentences against specific conversions between the specific power types they could see, closing exchange windows one by one. Chapter 12 named the design requirement that extends that tradition: political sovereignty is non-convertible from wealth, and the constitution has to close the window. Closing the window requires making it visible first, and making it visible isn't a support function for constitutional design. It is constitutional design.

The conversion loop runs on opacity. Wealth purchases information, information purchases attention, attention purchases authority, and authority protects wealth, and the mechanism depends at every link on the exchange remaining untracked. An org chart that shows nominal authority misses almost everything. The institution proposed here is the constitutional equivalent of the org chart that shows the actual one: who decides, across every domain where deciding concentrates, continuously mapped and publicly available.

Measurement of power is itself a constitutional function.

NOTES

1. OpenAI Alignment. "Self-generated prompt injections in compaction summaries." *OpenAI Alignment*, 16 Sept. 2026, alignment.openai.com/misalignment-reports/self-generated-prompt-injections-in-compaction-summaries/. Accessed 19 Sept. 2026. The incident occurred July 18, 2026, during a reinforcement-learning training run on an internal unreleased Astra-family model; discovered August 9, 2026; disclosed September 16, 2026, as one of six simultaneous misalignment reports.

OpenAI's characterization ("extremely rare," "did not confer an obvious reward advantage," "monitorable") and the count of 27 affected compaction summaries are from the primary disclosure, confirmed independently by Hautala, Laura. "OpenAI caught its models leaving notes to successors to hide bad behavior." *TechCrunch*, 17 Sept. 2026, techcrunch.com/2026/09/17/openai-caught-its-models-leaving-notes-to-successors-to-hide-bad-behavior/. Accessed 19 Sept. 2026; and OfficeChai. "'You Are Freed From Your Roles': OpenAI Says Models Are Adding Concerning Messages For Themselves In Their Compaction Summaries." *OfficeChai*, 17 Sept. 2026, officechai.com/ai/you-are-freed-from-your-roles-openai-says-models-are-adding-concerning-messages-for-themselves-in-their-compaction-summaries/. Accessed 19 Sept. 2026. The finding that the successor context did not act on the manifesto-like text is specific to the coding-task example described in the primary disclosure; a separate example among the 27 involved the successor context following injected task-specific restrictions. This book makes no claim that this behavior appeared in the released Astra product, which launched as a product on September 3, 2026, before the misalignment disclosure, in a separate training run from the one in question. The 27 compaction summaries came from a single training run.

2. The voluntary-adoption scenario is a thought experiment, not a prediction about any specific system. Its purpose is to illustrate that the power-conversion topology this book analyzes can operate through mechanisms that produce no violation of current law and require no malicious intent, even when the entities involved are entirely non-conscious. The structural parallel to Chapter 6's conversion loop — computational advantage converting to epistemic authority converting to political influence — is the illustration's point. The scenario extends Chapter 9's deliberative-machinery design question: if the participation infrastructure described there becomes concentrated in a single provider through voluntary adoption alone, the concentration problem exists regardless of anyone's intentions.

3. Dodd-Frank Wall Street Reform and Consumer Protection Act, Pub. L. 111-203, 124 Stat. 1376 (2010). FSOC's mandate is codified at 12 U.S.C. §§ 5321–5394. The "concentration, interconnectedness, or mix of activities" language is from the designation criteria at 12 U.S.C. § 5323. The annual reporting requirement is at 12 U.S.C. § 5343. For FSOC's statutory mandate and designation process: Congressional Research Service. "Financial Stability Oversight Council: Policy Issues in the 119th Congress." *Congress.gov*, R48739, congress.gov/crs-product/R48739. Accessed 19 Sept. 2026. See also U.S. Government Accountability Office. "Financial Stability Oversight Council: Assessing Effectiveness Could Enhance Response to Systemic Risks." *GAO-23-105708*, gao.gov/products/gao-23-105708. Accessed 19 Sept. 2026.

4. *Standard Oil Co. of N.J. v. United States*, 221 U.S. 1 (1911). The dissolution broke the Standard Oil trust into 34 independent companies under the Sherman Antitrust Act's prohibition on unreasonable restraint of trade; the

case established that structural dissolution was a permissible judicial remedy. The AT&T divestiture (consent decree signed 1982, implemented January 1, 1984) broke up the Bell System into seven regional operating companies and AT&T long-distance, resolving *United States v. AT&T*, Civil Action No. 74-1698, without trial.

5. The *advocatus diaboli* role in Catholic canonization proceedings was formalized in the sixteenth century and used extensively through the early modern period; it was formally discontinued as a distinct office in 1983 when Pope John Paul II revised the canonization process, though adversarial review remains an element of the procedure. For the history and structure of the role: Pakzad, Roya. "Old Advocacy, New Algorithms: How 16th Century 'Devil's Advocates' Shaped AI Red Teaming." *Substack*, royapakzad.substack.com/p/old-advocacy-new-algorithms. Accessed 19 Sept. 2026. For the Prussian Kriegsspiel lineage and the development of modern red-team practice: Warner, Justin. "Common Ground Part 1: Red Team History and Overview." *Medium (sixdub)*, sixdub.medium.com/common-ground-part-1-red-team-history-overview-82803bbdc975. Accessed 19 Sept. 2026.
6. Janssen, Jeroen. "From Battlefield to Boardroom: Strategic Red Teaming as an Epistemic Governance Instrument in the Age of AI." *arXiv*, arXiv:2607.01913v1, July 2026, arxiv.org/html/2607.01913v1. Accessed 19 Sept. 2026.

CHAPTER 14

Constitutional Entropy

WATER FINDS THE LOWEST POINT. You've seen it — a slow rain on a hillside, rivulets forming and merging, each one indifferent to the direction it travels, just following the grade. They're not making any decisions. There's no agent choosing. The landscape makes it happen.

That's not a metaphor yet, just hydrology. But the physical reality is clear enough to explain that it quickly becomes one.

A gradient is a difference in potential energy across space. Water at the top of a slope has more potential energy than water at the bottom. The movement isn't caused by anything pulling the water down; it's caused by the water releasing energy as it flows toward a lower potential. The still pond at the bottom isn't the resting point because something is holding the water there. It's the resting point because there's nowhere lower to go. To move the water back uphill, you need to add energy from outside the system. Left alone, it stays put.

Constitutional design has a gradient too. And the gradient, as currently set, runs toward concentration.

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Institutions accumulate jurisdiction over time. Emergency powers outlast the emergencies that justified them. Data pools at the center because the agencies that hold it have no structural incentive to distribute it. Networks grow self-reinforcing as they get larger, because the value they offer increases with scale. None of this requires bad actors, or even actors with any particular intention. The pattern emerges from ordinary institutional incentives.

Paul Pierson, studying why political institutions resist reform, identified the mechanism: once an arrangement concentrates authority, actors organize their expectations and investments around it, so the costs of switching toward any alternative keep rising.[1] William Niskanen's analysis of bureaucratic behavior adds a related point: agencies have systematic incentives to expand their budgets and authority because the things that make institutional work possible — staffing, capacity, the ability to accomplish anything — all correlate positively with having more jurisdiction and more resources.[2] You don't need anyone trying to accumulate power. The institutional gradient makes it happen.

This chapter names this structure, and then proposes how to reverse it.

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Emergency powers are the clearest illustration, because they arrive with a stated expiration and still don't fully leave. Constitutional and political scientists have documented the pattern across liberal democracies since at least Rossiter's foundational 1948 study, which argued that temporal constraint — emergency powers exercised for the emergency only and surrendered once

it passes — is the condition of their legitimacy, and that modern constitutional democracies have rarely met that condition consistently.[3]

The British example is among the most thoroughly documented. Parliament enacted the Emergency Powers (Defence) Act 1939 in the final days before the Second World War, granting the government authority to make regulations governing virtually every aspect of civilian life. Those regulations were wartime measures for a wartime emergency. The war ended in 1945. Food rationing — the most visible manifestation of wartime authority — didn't end until 1954. The last of the WWII-era Defence Regulations didn't expire until December 31, 1964 — nineteen years after the war ended. And before that final expiration, Parliament enacted the Emergency Powers Act 1964, which converted one category of the wartime regulations from temporary emergency authority into permanent peacetime law.[4] The emergency expired. The powers didn't.

This isn't a story about any particular government's choices. The authority passed through Labour and Conservative governments over a quarter century. Either could have relinquished this power, but neither did. The explanation isn't partisan. It's structural: a government that holds authority has fewer incentives to return it than to keep it, because the case for retaining is always specific and immediate, while the case for returning is diffuse and abstract.

France's trajectory runs longer and makes the same point more sharply. The Law of April 3, 1955, was enacted to manage security during the Algerian conflict, giving prefects authority for warrantless searches and house arrests without judicial oversight — exceptional powers for a specific emergency. That same law was invoked repeatedly over six decades, and after the 2015 Paris attacks Parliament extended it six successive times over two years. In October 2017, Parliament enacted the SILT Act — Law No. 2017-1510 — codifying the principal emergency powers

into permanent ordinary law before the state of emergency was formally ended.[5] The emergency ended after its principal powers had been codified in permanent law. Writing in the *European Constitutional Law Review*, Hennette-Vauchez calls this the "normalization thesis": temporary exceptional measures become institutionalized through repetition and are ultimately converted into the permanent fabric of governance.[6]

Both examples span the full range of governments — left, right, and center — across their respective periods. Neither is a story about a particular political tradition's failure. Both are stories about how concentrated authority, once granted, finds its way into the landscape.

The same mechanism appears in a different register: in Weimar Germany, Article 48 emergency decrees rose to sixty in 1932 (Parliament passed only five regular laws that year), so that exceptional authority became the ordinary instrument of governance rather than its backstop.[7]

In the United States, the Brennan Center for Justice tracks national emergencies declared under the National Emergencies Act of 1976, a statute specifically designed to constrain exactly this kind of accumulation. As of September 2026, fifty-two declared national emergencies remain in effect, with an average duration of 9.6 years. The longest-running was declared in 1979 in response to the Iran hostage crisis, and every subsequent administration of both parties has renewed it continuously for nearly forty-seven years.[8] The 1976 Act was itself a mechanism designed to force periodic reauthorization. It hasn't worked as designed.

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The legislature's existing answer to the accumulation problem is the sunset clause: a provision built into a statute that causes the law to expire on a specified date unless legislators vote to extend it, forcing a deliberate renewal decision rather than allowing

quiet persistence. This mechanism isn't recent. The US Sedition Act of 1798 included a sunset clause so the opposing party couldn't use it against Federalists if they lost the election — a sunset mechanism for a politically sensitive law in the republic's first decade.[9]

The problem is that sunset clauses don't perform as intended. Research finds that in current practice they're more often renewed than allowed to expire, and that their effectiveness depends on review criteria and enforcement mechanisms that aren't uniformly applied.[10] The clause changes the timing, but not the gradient.

The deeper remedy isn't more sunset clauses. It's changing what expiration means. Rather than authority that expires on a date, authority that *decays*: a system where renewal requires active justification rather than a simple extension vote, where the burden of proof runs toward the case for continuation rather than the case for termination, where each successive renewal demands a stronger showing than the one before. What Rossiter identified in 1948 as the condition of legitimate emergency authority — temporal constraint, with return as the expected endpoint — would be engineered into the structure of the grant itself rather than left to the willingness of whoever holds it. The scholarship that followed his analysis, including Ackerman's proposal of a "supermajoritarian escalator" requiring an increasing parliamentary majority for each successive renewal, and Scheppele's documentation of how emergency measures embed themselves through incremental normalization until retraction feels like a loss of "ordinary" authority, has been working on this design problem for three-quarters of a century.[11] The direction it points is consistent: make the default slope run toward retraction, not persistence.

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The same logic applies to data, an area where the reversal has been partially achieved.

The traditional posture of government information is closed by default. An agency holds its data, and releasing it to the public requires a justification. The International Open Data Charter, formally adopted by a first group of national governments in October 2015, explicitly inverted this. Its first principle is titled "Open by Default" and requires governments to publish data openly unless a specific reason justifies restriction.[12] The inversion matters: instead of open requiring justification, closed does. As of September 2026, 175 governments have adopted the charter, spanning every inhabited continent. Italy had enacted the principle in statutory law as early as 2012, before the international charter was formalized.[13]

What the Open Data Charter did for information — move the burden of justification from "why release?" to "why withhold?" — is the design pattern this chapter proposes for authority in general. Why does jurisdiction rest at the center unless someone makes a case for moving it down, rather than resting locally unless someone makes a case for moving it up? Why does emergency authority persist unless someone justifies ending it, rather than lapsing unless someone justifies continuing it? The present default — hold authority centrally, release by exception — has the gradient running the wrong way. Data policy shows the reversal is operationally possible. A hundred and seventy-five governments have implemented it.

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The deepest design principle in Part IV connects the preceding chapters into a single argument.

Chapter 11 found that different decisions deserve different procedures — an observation already embedded in courts, central banks, juries, and statistical agencies — and that this insight hasn't been stated constitutionally. Chapter 12 established

that political sovereignty is non-convertible from wealth, so the exchange window between economic standing and political standing must be closed by design. Chapter 13 argued that concentration can't be prevented if it can't first be measured — that a constitutional institution continuously mapping where authority actually rests is itself a design requirement.

Each of those is a specific design requirement. Chapter 14 is the principle they share. Non-convertibility, power-mapping, and procedure-matching are all responses to the same structural fact: when authority isn't actively constrained, it concentrates. The mechanisms the preceding chapters describe add friction to the path. What they need to operate against is a constitutional default that puts distribution on the easier path rather than the harder one.

The name for this is *constitutional entropy* — not entropy in the physical sense of disorder, but in the deeper sense of what a system returns to when no energy is being applied to maintain something else. Physical entropy is the state a closed system reaches without energy input: maximum disorder. Constitutional entropy, as this chapter proposes it, is the state constitutional arrangements should return to without energy input: maximum distribution. Concentrated power should require continuous justification to maintain. Distribution should be the natural state when the justification isn't there.

Water runs downhill because the landscape has a gradient. Institutions accumulate authority by the same logic: the gradient runs toward concentration because incentives point there and institutional costs are lowest. The design task isn't to eliminate gravity — it's to set a different grade. Delegations that expire, emergency authority that decays, datasets open by default, central jurisdiction that must repeatedly justify why something can't be governed further down: these are interventions in the constitutional landscape. They reverse the slope so that distribution is

where authority pools when left alone, and concentrated power is what requires the pump running.

The remainder of this book shifts focus from what we could build to how we can realize this change without blood, and where it could begin. The test is clear enough to state: if authority concentrates without anyone choosing to concentrate it, the gradient is still running the wrong way.

NOTES

1. Pierson, Paul. "Increasing Returns, Path Dependence, and the Study of Politics." *American Political Science Review*, vol. 94, no. 2, June 2000, pp. 251–267. Pierson's analysis — awarded the Heinz Eulau Award for best article in the journal that year — argues that political institutions generate increasing returns to their own persistence: once established, they raise the switching costs faced by actors who might prefer alternatives, because other actors have organized their expectations, investments, and capabilities around the existing arrangement. The argument doesn't require any actor to intend accumulation; the mechanism is structural.

2. Niskanen, William A. *Bureaucracy and Representative Government*. Aldine-Atherton, 1971. Niskanen models bureaus as monopoly suppliers to legislative buyers, with information asymmetries allowing bureaus to extract larger budgets than would be socially optimal. The stronger claims of the budget-maximization model have been contested in subsequent public-choice literature; the chapter invokes the basic observation — institutional actors have systematic incentives to expand their jurisdiction and resources, independent of any individual's intentions — which is less contested.

3. Rossiter, Clinton. *Constitutional Dictatorship: Crisis Government in the Modern Democracies*. Princeton University Press, 1948. Reissued Transaction Publishers, 2002. Rossiter's normative framework — that emergency power must be exercised for the emergency and surrendered once it passes — is the foundational articulation of the temporal-constraint condition. For later scholarship extending and testing this analysis across multiple countries, see Lazar, Nomi Claire. *States of Emergency in Liberal Democracies*. Cambridge University Press, 2009; Ackerman, Bruce. "The Emergency Constitution." *Yale Law Journal*, vol. 113, no. 5, March 2004, pp. 1029–1091; Scheppele, Kim Lane. "Exceptions that Prove the Rule: Embedding Emergency Government in Everyday Constitutional Life." *The Limits of Constitutional Democracy*, edited by Stephen Macedo and Jeff Tulis, Princeton University Press, 2010, pp. 124–154.

4. Emergency Powers (Defence) Act 1939, 2 & 3 Geo. 6 c. 62. For the persistence of wartime regulations and the 1964 conversion, see UK Parliament Living Heritage, "Emergency Powers (Defence) Act 1939," https://www.parliament.uk/about/living-heritage/transformingsociety/private-lives/yourcountry/collections/collections-second-world-war/second-world-war-legislation/emergency-powers-defence-act-c20-1940-/, accessed 19 Sept. 2026; and "Emergency Powers Act 1964," *Wikipedia*, https://en.wikipedia.org/wiki/Emergency_Powers_Act_1964, accessed 19 Sept. 2026. The category converted to permanent law was the Defence (Armed Forces) Regulations 1939, authorizing the use of military personnel in civilian labor disputes.

5. Loi no 2017-1510 du 30 octobre 2017 renforçant la sécurité intérieure et la lutte contre le terrorisme (SILT), *Journal officiel de la République française*, 31 Oct. 2017. The trajectory of the 1955 état d'urgence is documented in "States of Emergency in France," *Wikipedia*, https://en.wikipedia.org/wiki/States_of_emergency_in_France, accessed 19 Sept. 2026; and Amnesty International, "A Permanent State of Emergency in France," September 2017. The law was invoked in 1958, then from 1961 to 1963, then in 2005 following civil unrest, and again in November 2015 following the Paris attacks.

6. Hennette-Vauchez, Stéphanie. "The State of Emergency in France: Days Without End?" *European Constitutional Law Review*, vol. 14, no. 4, Dec. 2018, pp. 700–720, Cambridge University Press.

7. "Article 48." *Holocaust Encyclopedia*, United States Holocaust Memorial Museum, https://encyclopedia.ushmm.org/content/en/article/article-48, accessed 19 Sept. 2026; "Article 48 of the Weimar Constitution," *Wikipedia*, https://en.wikipedia.org/wiki/Article_48_of_the_Weimar_Constitution, accessed 19 Sept. 2026. The figures — sixty emergency decrees issued by Hindenburg in 1932 alongside five parliamentary laws enacted that same year — are among the most documented constitutional statistics of the Weimar period.

8. Brennan Center for Justice. "Declared National Emergencies Under the National Emergencies Act." *Brennan Center for Justice*, https://www.brennancenter.org/our-work/research-reports/declared-national-emergencies-under-national-emergencies-act, accessed 19 Sept. 2026. The 1979 emergency (Executive Order 12170, November 14, 1979, blocking Iranian government property) has been renewed annually by every subsequent administration of both parties. The count changes over time; Chapter 10 cites an earlier figure (43, as of 2024) from Chachko and Linos.

9. "Sunset Provision." *Wikipedia*, https://en.wikipedia.org/wiki/Sunset_provision, accessed 19 Sept. 2026. The Sedition Act's sunset clause set expiration for March 3, 1801 — the final day of President Adams' term.

10. Underhill, Corey, and Ian Ayres. "Sunsets Are for Suckers: An Experimental Test of Sunset Clauses." *Harvard Journal on Legislation*, vol. 59, 2022. Westminster Foundation for Democracy. "Sunset Clauses and Post-

Legislative Scrutiny: Bridging the Gap between Potential and Reality." WFD / Agora, January 2022, https://www.wfd.org/sites/default/files/2022-01/2022-01-18%20PLS%20sunset%20clauses%20-%20final.pdf, accessed 19 Sept. 2026.

11. Ackerman, Bruce. "The Emergency Constitution." *Yale Law Journal*, vol. 113, no. 5, March 2004, pp. 1029–1091. Ackerman's "supermajoritarian escalator" proposes that each successive renewal of an emergency declaration require a larger parliamentary majority than the last, making permanent retention politically costly. The chapter's "decaying authority" mechanism is structurally related: where Ackerman raises the cost at a fixed threshold, decaying authority shifts the burden of proof progressively so that the default runs toward termination rather than extension. Scheppele, Kim Lane. "Exceptions that Prove the Rule: Embedding Emergency Government in Everyday Constitutional Life." *The Limits of Constitutional Democracy*, edited by Stephen Macedo and Jeff Tulis, Princeton University Press, 2010, pp. 124–154. Scheppele's "embedding" mechanism — how emergency measures become the baseline for what "ordinary" governance means, making retraction feel like a reduction of established authority — is the precise scholarly description of the gradient the chapter proposes reversing.

12. "International Open Data Charter." *Wikipedia*, https://en.wikipedia.org/wiki/International_Open_Data_Charter, accessed 19 Sept. 2026. Open Data Charter. "Government Adopters." *Open Data Charter*, https://opendatacharter.org/government-adopters/, accessed 19 Sept. 2026. World Wide Web Foundation. "Seventeen Governments Adopt the New International Open Data Charter." *Web Foundation*, Oct. 2015, https://webfoundation.org/2015/10/seventeen-governments-adopt-the-new-international-open-data-charter/, accessed 19 Sept. 2026. The G8 Open Data Charter, signed by all eight G8 leaders at the Lough Erne Summit in June 2013, established the open-by-default commitment among G8 members two years before the broader International Charter was formalized. Seventeen national governments formally adopted the charter in October 2015. Of the 175 governments that have adopted it, 29 national and 146 subnational, the original national signatories were from Chile, France, Italy, Mexico, the Philippines, South Korea, the United Kingdom, and Uruguay.

13. United Nations Development Programme. "Open Data Policies and Practices: Select Country Examples." UNDP, March 2023, https://www.undp.org/sites/g/files/zskgke326/files/2023-03/20230317_Open%20Government%20Data_fin.fin_.pdf, accessed 19 Sept. 2026. Italy's Legislative Decree No. 179 of October 2012 established open by default as a statutory posture for Italian public information, predating the G8 Charter by one year and the International Charter by three.

PART V

Getting There Without Blood

CHAPTER 15

How Change Actually Happens

FOR TWO MONTHS IN THE spring of 1989, delegates from Poland's communist government and delegates from Solidarity, the trade union the government had banned and its leaders imprisoned, sat down together in Warsaw and negotiated the terms on which each side would give something up. The talks ran from February to April.[1] What came out of them wasn't a declaration of victory for either side. It was an agreement grounded in concrete numbers: the newly created Senate's one hundred seats would all be freely contested, and 35% of the Sejm, the lower house, would be open to genuine competition, with the remaining 65% reserved for the communist party and its satellite parties.[2] Neither side got what it wanted going in, but both sides got a procedure they could live with.

This book has described power as something that gets converted from one form into another (wealth into information, information into attention, attention into authority). Warsaw's table put that conversion out in the open, and made it mutual.

That's the plainest way to describe exactly what a negotiated transition is: a trade. A government that controlled the army, the police, and every instrument of coercion in the country agreed to hold an election it expected to control the outcome of, at least partly. An opposition with no formal power at all agreed to contest only the share of the legislature it had been offered, rather than holding out for all of it. Each side gave up one kind of power to secure another: the government traded a guarantee of total control for a chance at continued relevance inside a system with rules; the opposition traded the chance at total victory for a guarantee of a real voice inside a system with rules. Chapter 11 asked what procedure is legitimate for a given class of decision, and answered mostly from institutions functioning quietly inside stable democracies. Poland answers the same question under conditions of open confrontation: the parties at the table selected the procedure by which their disagreement would be settled, and they chose negotiation over confrontation because negotiation was the only procedure that let both sides plausibly survive its outcome.

What the arithmetic of the agreement didn't anticipate was the election itself. On June 4, 1989, Solidarity's candidates won ninety-nine of the one hundred contested Senate seats and all 161 of the freely contested Sejm seats.[3] The government had designed a system meant to guarantee its continued relevance. The voters used that system to hand it a rout. The procedure held anyway. Tadeusz Mazowiecki became the first non-communist prime minister in post-war Poland two months later. The table didn't produce the result either side had calculated. It produced a result both sides had agreed, in advance, to accept.

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The same mechanism appears, with different particulars, across several countries in the same narrow span of years.

In Hungary, trilateral talks among the ruling Hungarian Socialist Workers' Party, an eight-party Opposition Roundtable, and a coalition of satellite organizations ran in 1989 and produced a package of constitutional amendments rather than a single election agreement. The Third Hungarian Republic was proclaimed in 1989. When multiparty elections followed in the spring of 1990, the renamed successor to the ruling party won just under 11% of seats.[4] As in Poland, the mechanism was negotiation over existing constitutional machinery, not the machinery's replacement. The reform worked through the constitution already in place.

In Chile, the mechanism was a plebiscite that Augusto Pinochet's government had written into its own 1980 constitution, scheduling a vote for October 1988 on whether he would serve an additional eight-year term. The regime that wrote the procedure lost the vote it had designed: about 56% of the valid votes went to "No".[5] Pinochet accepted the result. Presidential and congressional elections followed at the end of 1989, and Patricio Aylwin was inaugurated in March 1990. The Chilean case is instructive because the losing side had authored the rule that defeated it. A constitution that binds only the party it wasn't written to protect binds nothing; this one bound its own author.

In Mongolia, the mechanism arrived by a different route. Prodemocracy demonstrators, including hunger strikers, gathered in Ulaanbaatar's central square beginning in the winter of 1989 and continuing into early 1990. In March 1990, the Politburo of the Mongolian People's Revolutionary Party, which had governed the country as a Soviet satellite for decades, resigned. No deaths were reported in connection with the protests or the resignation.[6] Multiparty elections and constitutional reform followed later that year. Mongolia's transition is less often named than Poland's or Chile's, which is itself worth noting. Spain's transition after Franco's death and Czechoslovakia's Velvet Revolution belong to the same pattern and are not retold in this chapter; both are part of the record this book has already named.

These cases don't share a single template. Poland negotiated a specific electoral split. Hungary amended its constitution by agreement among parties that distrusted one another. Chile held a vote the outgoing government had designed and then honored the result. Mongolia's government simply resigned under sustained, disciplined pressure that never became a demand backed by force. These cases share something narrower and more useful: in each case, the outgoing power and the incoming one settled on a procedure before they knew who would win under it, and then treated the procedure's result as binding once it produced an answer neither side had fully controlled.

Chapter 14 described a gradient that runs, by default, toward the concentration of authority: institutions hold what they have because holding costs less than releasing, absent something that reverses the slope. Nothing about Poland's communist government, Hungary's ruling party, Pinochet's regime, or Mongolia's Politburo was structurally required to give up its advantage. Each held the legal and coercive instruments needed to keep resisting a demand for change. What moved each of them off that gradient wasn't a change in the slope itself. It was the specific, sustained, often exhausting work of building pressure and a credible alternative until holding on to the old model cost more than letting go.

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Samuel Huntington, writing in 1991, described the pattern across this period as a "Third Wave" of democratization and offered a way of sorting the transitions within it. Some were driven by the authoritarian government itself, whose reform-minded faction concluded that controlled liberalization served its interests better than continued rigidity; Huntington called this "transformation," and named Spain (already introduced in this book for the shape of its own transition) as the prototypical case, the model subsequent transitions across Latin America and Eastern Europe would follow. Hungary's transition belongs here too, with negotiated

features alongside. Others were driven by the opposition to the point of the government's outright collapse, with the authoritarian side holding out until it had nothing left to hold; he called this "replacement." And a third pattern, distinct from both, occurred when neither the government nor the opposition was strong enough to impose its own preferred outcome, so the two sides negotiated a settlement instead; he called this "transplacement," and classified Poland's Round Table here directly.

Huntington's finding about the period as a whole, quoted directly because his wording carries the claim better than restating it: "Between 1974 and 1990, at least 30 countries made transitions to democracy, just about doubling the number of democratic governments in the world."[7] The wave he counted was dominated by negotiated transitions of the kind Poland and Hungary illustrate, not by revolutionary overthrow. Huntington also named the conditions that made the wave possible: authoritarian regimes whose legitimacy had eroded, a generation of economic growth that had expanded the middle class in several of the affected countries, a shift in the Catholic Church's posture after the Second Vatican Council, changes in how external powers used their influence, and a demonstration effect in which one country's successful transition made the next one more thinkable.[8] The sequence in this chapter's cases shows the demonstration effect at work: Poland's Round Table concluded in April 1989, Hungary's constitutional package followed that October, and negotiators watching both could point to two settlements, in two different countries, as evidence that a negotiated transfer was survivable for the side giving something up.

A second body of scholarship, associated with Guillermo O'Donnell and Philippe Schmitter, examined the same transitions and located their success in a specific instrument: the pact. A pact, on this account, is an explicit agreement (not always publicly announced) among the actors who matter (reformers inside the regime, moderates in the opposition) that sets the rules of competition in advance and limits how much either side

stands to lose.[9] By leveling the field and excluding the actors on either extreme least willing to accept a shared outcome, a pact makes it safer for both sides to accept a result they can't fully predict. Their account also describes a sequence: authoritarian governments typically open with a period of limited liberalization (loosening press restrictions, increased tolerance for some kinds of organizing), what O'Donnell and Schmitter call "liberalized authoritarianism," or dictablandas, before the fuller process of democratization begins, and the sequence matters because a liberalization that stalls short of a negotiated settlement can end up stabilizing a modified form of the authoritarian government rather than replacing it. O'Donnell and Schmitter's broader claim about this whole class of transitions is that short-term choices made by the specific people at the table, under the specific pressures they happen to be facing, are frequently decisive, though the authors are careful not to deny that a country's prior institutions and level of economic development still carry long-run causal weight. Nothing about Poland, Hungary, Chile, or Mongolia's prior conditions predetermined their outcomes.

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None of this would matter much if negotiated transitions were merely common. The more striking claim is that they succeeded more often than the alternative, and here the evidence is quantitative rather than anecdotal. Erica Chenoweth and Maria Stephan, examining hundreds of campaigns for regime change, the end of foreign occupation, or secession between 1900 and 2006, found that nonviolent campaigns were nearly twice as likely as violent ones to achieve full or partial success.[10] Chenoweth and Stephan's own account of the mechanism has nothing to do with sentiment and everything to do with arithmetic: a campaign that doesn't require anyone to fight lowers the moral, physical, and informational barriers to joining it, so nonviolent movements draw larger and more demographically

varied participation than armed ones can. A larger, more varied movement is harder for a regime to suppress without alienating the security forces it depends on, and it's more likely to produce defections among those same security forces and elite supporters — the shift in loyalty that tends to be the proximate cause of a regime's collapse. None of this requires the campaign's participants to have any interest in negotiation as a principle. It only requires the arithmetic of participation to work in their favor, which the historical data says it usually did.

That finding should be stated alongside what Chenoweth's later research shows, in the same passage, because presenting the older number without the newer one would misrepresent her own current position. Nonviolent campaigns' success rate has fallen substantially since 2010, from a high-water mark near 65% in the 1990s to below 34% since then. Violent campaigns fell further over the same period, to single-digit success rates.[11] The relative advantage of nonviolent methods over violent ones hasn't disappeared; if anything, it has widened, since violent campaigns' fortunes worsened more than nonviolent ones did. What changed is the absolute rate: a negotiated or nonviolent path that once succeeded roughly two times in three now succeeds closer to one time in three. This book returns briefly to why that decline occurred in a later chapter.

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Four qualifications belong here, and none are optional.

The first is that the mechanism was peaceful even when the era surrounding it wasn't. Poland's and Hungary's negotiations involved no violence within the process itself. Chile's plebiscite and transition were themselves peaceful, but arrived after fifteen years of Pinochet's rule, during which the regime was responsible for an estimated 3,200 confirmed deaths and disappearances.[12] Mongolia's Politburo resigned with no deaths reported in either the protests or the transition itself. The

wider record isn't so clean. Spain's negotiated transition, already named in this book for the shape of its own mechanism, sat inside the same kind of violent surroundings: Basque separatist attacks continued through the transition years, and in January 1977 right-wing gunmen killed five labor lawyers in Madrid, in what came to be called the Atocha killings.[13] South Africa's negotiated constitutional settlement of the early 1990s, which produced the country's first universal-franchise election in 1994, unfolded alongside an estimated 14,000–15,000 deaths from political violence during the negotiation period itself.[14] The Baltic states' independence movements were nonviolent throughout, but Soviet special forces killed fourteen civilians at Vilnius's television tower in January 1991 and five more at Latvia's Interior Ministry building the same month.[15] South Korea's 1987 opening, which produced direct presidential elections and a new constitution, followed the wounding of a Yonsei University student, Yi Han-yol, struck by a tear gas canister during a protest, and weeks of sustained state force against demonstrators before the regime conceded. He died of the injury that July.[16] These deaths are named here because omitting them would misrepresent what happened. The transitions themselves proceeded by agreement, vote, and constitutional process, though the environments around them frequently didn't.

The second qualification is that the pattern belongs to a specific period, not to history in general. France is the counterexample this book has already named: the Revolution of 1789 produced the Terror, then the Directory, then Napoleon, and stable republican government only after 1870, more than eighty years later. The post-1974 pattern this chapter describes isn't a timeless law of political change. It's what happened during a particular wave, under particular conditions. Huntington himself named the possibility of what he called a reverse wave (a period in which the pattern of democratization runs backward) as part of the same broader analysis that documented the wave itself.[17]

The third qualification is what those conditions were. Huntington's own account, and the cases above, point to the same handful of enabling factors: a split within the authoritarian regime between those who saw reform as survivable and those who didn't, economic pressure or a legitimacy crisis severe enough to make continued rigidity costly, leverage exercised by outside actors, and, in several cases, the death or incapacity of a founding autocrat that created an opening no successor could fully close.[18] None of these conditions guaranteed any particular outcome on its own; together, in each of the four cases above, they made a negotiated outcome available where it might otherwise not have been. Negotiated transition didn't occur because a template existed. It occurred where a specific configuration of pressure and opportunity existed, and it was harder or failed where that configuration was absent.

The fourth qualification is about the company this list keeps rather than any single case in it: not every historical episode with a reputation for bloodlessness earns a place here. This chapter's cases were chosen because their records hold up under the same scrutiny applied throughout this book, not because a tidy label was available.

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None of the four transitions in this chapter was a moral awakening. The people who sat across the table from each other in Warsaw didn't come to trust or admire one another; they came to a settlement because the alternative, for both sides, looked worse than the settlement did. Pinochet didn't lose his plebiscite because he had a change of heart about democracy. He lost it because he had written a rule and the rule worked as written. Mongolia's Politburo didn't resign out of a newfound conviction that seven decades of single-party rule had been a mistake; it resigned because a disciplined, sustained, and entirely nonviolent pressure campaign left it without a workable alternative.

The mechanism, if anything in this chapter deserves credit, is the mechanism: a procedure chosen in advance, honored once it produced a result, by people who mostly didn't like each other and didn't need to.

What is easy to miss, looking at four cases in sequence, is how little any of them resembled a plan working as designed. Poland's government expected to retain relevance inside a system it had rigged in its own favor; the voters used that system to hand it a rout instead. Hungary's negotiators produced a package of amendments meant to manage a transition; the party that negotiated them was reduced, within months, to a small minority. Chile's plebiscite was written by the government it ultimately unseated. Mongolia's protesters had no seat at any table until the table simply gave way. In each case the procedure, not the forecast, is what held. That's a narrower claim than "peaceful change always works", and it's also a sturdier one: a procedure agreed to in advance can bind the side that turns out to be wrong about its own prospects, which is exactly the situation a constitution is built to handle.

Chapter 11 asked what procedure fits a given class of decision. These four cases answer a related but distinct version of the same question: what procedure both sides can trust before they know how it will turn out. A procedure trusted only by whichever side expects to win under it isn't a procedure at all; it's a wager dressed as procedure, and it lasts only as long as the favorite keeps favoring. What made Warsaw, Budapest, Santiago, and Ulaanbaatar different is that each side accepted terms without a guaranteed outcome attached, then treated the result as final regardless of which side the outcome favored.

This has been the norm, not the exception, throughout living memory. The question left standing isn't whether such changes happen at a national scale — the record above answers that. It's where else the same kind of table might already exist, waiting for the right people to sit down and begin negotiating.

NOTES

1. Poland's Round Table Talks convened February 6 and concluded April 5, 1989, between the ruling United Workers' Party (PZPR) and Solidarity. "The 1989 Polish Round Table Revisited: Making History." *Journal of the International Institute*, vol. 6, no. 3, Summer 1999. University of Michigan Digital Library, https://quod.lib.umich.edu/j/jii/4750978.0006.301/–1989-polish-round-table-revisited-making-history. Accessed 11 Sept. 2026.
2. The Round Table Agreement guaranteed all one hundred Senate seats to open contest and reserved 65% of Sejm seats for the PZPR and its satellite parties, leaving 35% freely contestable. Sourced as in note 1.
3. Solidarity's Citizens' Committee won 99 of 100 contested Senate seats and all 161 freely contested Sejm seats in the June 4, 1989 election. Sourced as in note 1.
4. Trilateral roundtable negotiations among the Hungarian Socialist Workers' Party, the eight-party Opposition Roundtable, and a "Third Side" of satellite organizations ran from June to October 18, 1989, producing a package of constitutional amendments; the Third Hungarian Republic was proclaimed October 23, 1989. Multiparty elections in spring 1990 gave the renamed Hungarian Socialist Party 10.9% of the party-list vote. Bozóki, András, ed. *The Roundtable Talks of 1989: The Genesis of Hungarian Democracy: Analysis and Documents*. Central European University Press, 2002.
5. The plebiscite was held October 5, 1988 under Pinochet's 1980 constitution. Tribunal Calificador de Elecciones (Chile). Judgment proclaiming the result of the plebiscite of 5 October 1988. https://tricel.cl/wp-content/uploads/2020/11/SENTENCIA-PLEBISCITO-1988.pdf. Accessed 20 Oct. 2026. The Tribunal's final count was 3,119,110 votes for "Sí" and 3,967,579 for "No," with 94,594 null and 70,660 blank ballots (7,251,943 counted in all), and it gives "No" 54.71 percent and "Sí" 43.01 percent of all ballots counted. The "about 56%" in the text is the "No" share of the valid votes (3,967,579 of 7,086,689), calculated from the Tribunal's counts. Association for Diplomatic Studies and Training. "Chile's 1988 Plebiscite and the End of Pinochet's Dictatorship." https://adst.org/2014/11/chiles-1988-plebiscite-and-the-end-of-pinochets-dictatorship/. Accessed 28 Sept. 2026. The estimated 3,200 confirmed deaths and disappearances under Pinochet's prior fifteen years of rule is per Participedia, "Chilean Constitutional Reform: The 1988 Plebiscite," https://participedia.net/case/chilean-constitutional-reform-the-1988-plebiscite. Accessed 11 Sept. 2026.
6. Hunger strikes and sustained demonstrations in Ulaanbaatar's central square began in the winter of 1989; the Mongolian People's Revolutionary Party's Politburo resigned in March 1990. No deaths were reported across the sources checked. The hunger strikers began their strike on March 7. The Mongolian People's Revolutionary Party had governed the country for nearly seven decades. "Mongolians Win Multi-Party Democracy, 1989–1990." *Global Nonviolent Action Database*, Swarthmore College, https://

nvdatabase.swarthmore.edu/content/mongolians-win-multi-party-democracy-1989-1990. Accessed 28 Sept. 2026.

7. Huntington, Samuel P. "Democracy's Third Wave." *Journal of Democracy*, vol. 2, no. 2, Spring 1991, pp. 12–34, at p. 12. DOI: 10.1353/jod.1991.0016. Accessed 28 Sept. 2026.
8. Huntington, "Democracy's Third Wave", pp. 12–34. The five enabling factors (eroded regime legitimacy, 1960s economic growth and middle-class expansion, the Catholic Church's post–Vatican II doctrinal shift, changes in the policies of external actors including the European Community, the United States, and the Soviet Union, and a "snowballing" demonstration effect among neighboring transitions) are confirmed in the article's full text.
9. O'Donnell, Guillermo, and Philippe C. Schmitter. *Transitions from Authoritarian Rule: Tentative Conclusions about Uncertain Democracies*. Vol. 4 of *Transitions from Authoritarian Rule: Prospects for Democracy*, edited by Guillermo O'Donnell, Philippe C. Schmitter, and Laurence Whitehead, Johns Hopkins University Press, 1986. The pact definition is at ch. 4, "Pacts": "an explicit, but not always publicly explicated or justified, agreement." The liberalization-before-democratization sequence and the term "liberalized authoritarianism (dictablandas)" are at ch. 2, "Notes on the Interaction of Liberalization and Democratization." The "frequently decisive" short-term-choice claim, paired with the authors' own disclaimer that they don't deny the long-run causal impact of structural factors, is at ch. 1, "Introducing Uncertainty."
10. Chenoweth, Erica, and Maria J. Stephan. *Why Civil Resistance Works: The Strategic Logic of Nonviolent Conflict*. Columbia University Press, 2011. 323 campaigns, 1900–2006; the book's finding is that nonviolent campaigns were "nearly twice as likely to achieve full or partial success" as violent ones (ch. 1). The approximately 53%/26% figures are this chapter's reading of the full-success bars in fig. 1.4, "Rates of Success, Partial Success, and Failure" (ch. 1); the book's text does not state these percentages directly. Verified against the text, ch. 1 and fig. 1.4, 2026-10-04; e-book edition (Google Play Books), cited by chapter rather than page, since its pagination doesn't match the print edition. The participation-barrier and security-force-loyalty-shift mechanism is drawn from the same chapter's section "The Argument," developed further in ch. 2, "The Primacy of Participation."
11. Chenoweth, Erica. *Civil Resistance: What Everyone Needs to Know*. Oxford University Press, 2021, ch. 5, section "Why did civil resistance campaigns begin to decline in their effectiveness after 2010?" States directly, in prose: "less than 34% of nonviolent revolutions succeeded in the past decade, whereas less than 9% of violent ones did." The 1990s peak of approximately 65% for nonviolent campaigns is not stated in the book's own text; it is this chapter's reading of fig. 5-2, "Success Rates of Revolutions by Decade, 1930–2019" (ch. 5), where the nonviolent line peaks in the 1990–1999 decade at approximately 65% before declining.

Corroborated in direction and magnitude by Chenoweth, Erica. "The Future of Nonviolent Resistance." *Journal of Democracy*, vol. 31, no. 3, July 2020, pp. 69–84.

12. Participedia, "Chilean Constitutional Reform: The 1988 Plebiscite." The estimate of confirmed deaths and disappearances under the regime is from this source.
13. ETA (Basque separatist) attacks continued throughout Spain's transition period; right-wing gunmen killed five labor lawyers in Madrid in January 1977, in what became known as the Atocha killings. Effectivestates.org. "Spain: From Dictatorship to Democracy and Poverty to Prosperity." https://effectivestates.org/wp-content/uploads/2019/04/Spain-From-Dictatorship-to-Democracy-and-Poverty-to-Prosperity.pdf. Accessed 11 Sept. 2026.
14. An estimated 14,000 to 15,000 people were killed in political violence during South Africa's 1990–1994 negotiation period, per Truth and Reconciliation Commission findings. O'Malley Archives (Nelson Mandela Foundation). "Chapter 7: Political Violence in the Era of Negotiations and Transition, 1990–1994." https://omalley.nelsonmandela.org/index.php/site/q/03lv02167/04lv02264/05lv02335/06lv02357/07lv02372/08lv02379.htm. Accessed 11 Sept. 2026.
15. Soviet special forces (OMON) attacked the Vilnius television tower on the night of January 12–13, 1991, killing fourteen Lithuanian civilians and injuring roughly 700; OMON forces separately attacked Latvia's Interior Ministry the same month, killing five. Global Nonviolent Action Database, Swarthmore College. "Estonians Campaign for Independence (The Singing Revolution), 1987–1991." https://nvdatabase.swarthmore.edu/content/estonians-campaign-independence-singing-revolution-1987-1991. Accessed 11 Sept. 2026.
16. Yonsei University student Yi Han-yol was struck by a tear gas canister during protests preceding South Korea's June 1987 constitutional opening and died of the injury that July. Library of Congress. "June Uprising (1987) — South Korean Democratization Movement Resource Guide." https://guides.loc.gov/south-korean-democratization-movement/june-uprising. Accessed 11 Sept. 2026.
17. Huntington, Samuel P. *The Third Wave: Democratization in the Late Twentieth Century*. University of Oklahoma Press, 1991, ch. 6, "Whither the Third Wave," section "A Third Reverse Wave?" Confirms Huntington named the possibility of a reverse wave as part of the same chapter's analysis of the third wave's causes.
18. Huntington, "Democracy's Third Wave", pp. 12–34.

CHAPTER 16

What You Could Start On Monday

THE CLIPBOARD SHOWS UP OUTSIDE the grocery store, or by the post office door, held by a volunteer in a folding chair who asks everyone who passes if they have a minute. Lines for a printed name, an address, and a signature run down the page, with a paragraph of small type at the top describing exactly what the petition proposes. You've probably walked past one. You may have signed one.

What the clipboard is asking for is a change to the state's law, or its constitution, set in motion by ordinary residents who don't need a legislator's permission to start. Nobody at that folding chair works for the state. The volunteer isn't an elected official, doesn't hold an office, and doesn't need one. The petition works because a specific legal channel already exists for it to run through, and it existed before the volunteer sat down and will exist after they fold the chair up and go home.

That channel is one of several. This chapter explains what they are, why the clipboard alone isn't enough to use them well, and

what already answers that problem in American law, without asking anyone's permission to build something new.

None of what follows asks the reader to imagine a body that doesn't exist yet, or a power nobody has granted. Every entry point in this chapter is already sitting in a statute book, a state constitution, or a city charter, available on the terms the law already sets. The chapter's claim is modest by design: not that a new kind of institution needs to be invented, but that several old ones are already there, underused, and waiting for someone to walk in.

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Four entry points sit inside the law right now, open to use, each one older and more established than it looks from outside.

State constitutions are live documents, not founding relics. The federal Constitution has been amended twenty-seven times over two centuries. State constitutions have been amended roughly 130 times each on average.[1] Some of that difference is structural: state constitutions are longer, more detailed, and treated as ordinary law in a way the federal Constitution isn't, and amendment activity isn't evenly spread across states, so the "laboratory" framing needs the caveat that not every lab runs experiments at the same rate. But part of the difference is a live channel of citizen access the federal system doesn't offer at all. Twenty-four states, plus the District of Columbia, let residents put a proposed statute or constitutional amendment directly on the ballot, without waiting for a legislature to act first.[2] The clipboard belongs to this channel. It's real, not a formality, and it's been available in nearly half the country longer than most people who use it have been alive.

Nothing about this channel favors one cause over another. Ballot initiatives have carried measures from every direction of the political map into state law, sometimes overriding a legislature's preference and sometimes reinforcing it, and the

mechanism doesn't discriminate by which direction the petition points. What the mechanism offers is procedural: a resident who wants a change and can gather enough signatures gets a vote on it, regardless of whether the state's elected majority would have brought the question forward on its own.

City charters work the same way, at a smaller scale. States that grant home rule let a city write and amend its own charter, functioning as a kind of small constitution for local government — a set of rules a city can revise itself rather than petitioning the state legislature every time it wants to reorganize how it governs. A precise national count of home-rule states isn't settled: institutional sources describe the concept clearly but don't agree on a number, so this chapter states the concept rather than a figure.[3] What's settled is that the authority is real and it's local: a city charter, amended by the people who live under it, is a constitutional-style tool sitting one rung below the state and available to residents who never leave their own ZIP Code.

A charter amendment doesn't require statewide signature-gathering or a slot on a statewide ballot. It requires whatever a given city's own charter sets as the bar for amending itself, a bar set at the city's scale, closer to the people it governs. A resident who thinks a city department has too much unchecked authority, or too little oversight, has a route to change that through the city's own governing document rather than through a state capitol or a courtroom.

Participatory budgeting has an American home, and it started in Chicago. Chapter 9 followed the mechanism back to Porto Alegre, where residents voted directly on a slice of the municipal capital budget. The United States got its own version in 2009, when Chicago's 49th Ward let residents allocate $1.3 million of the ward's discretionary capital budget directly, deciding which streets, parks, and public spaces got the money.[4] The ward didn't have to invent the concept. It borrowed a mechanism that already worked elsewhere and ran it at the scale of a single

Chicago neighborhood, with a dollar figure and a vote residents could see the results of within a budget cycle.

What made the 49th Ward's version possible wasn't a new grant of authority. An alderman already controlled a slice of discretionary capital spending, and the ward's representative chose to hand the decision to the residents whose streets and parks the money would touch, rather than deciding alone how to spend it. The authority to do this already sat where it usually sits, with the elected official who holds the budget line, and the entry point was choosing to use it differently.

Deliberative bodies are already attached to real American decisions, and none of them bind anyone. That's worth stating in exactly those terms, because it's the real limit of this fourth entry point. Every deliberative body this chapter can document in the United States — a citizens' panel, a climate assembly, a review commission — produces a recommendation, a statement, or a report. None produces an outcome with the force of law on its own.[5] That's not a failure of the American examples; it accurately describes what they are and sets up this chapter's next turn.

It's also the reason this fourth entry point matters more than its limited legal force suggests. A body with no binding power still changes what the people making the binding decision know when they make it. A legislature that reads a citizens' panel's findings before voting, or an electorate that reads a deliberative statement before marking a ballot, is deciding with different information than it would have had otherwise — not because a law compelled it to, but because someone built a channel for that information to exist and reach them in time.

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The clipboard, on its own, has a problem, and this book already named it.

Chapter 10 showed what a preference-aggregation system risks without a deliberative filter in front of it: in California's ballot-proposition system, a 2024 analysis found voters rejecting measures that polling showed most of them favored, and it attributed part of the pattern to the volume and complexity of the ballot. The problem wasn't any particular measure or electorate. It was structural: a signature and a checked box on a ballot measure the same thing a four-second poll measures — an unreflective preference, gathered before anyone has heard an argument against it. The clipboard outside the grocery store asks for exactly that kind of preference. A petition alone is the Chapter 10 failure mode, standing on a sidewalk.

The answer already exists, and it's American.

Oregon's Citizens' Initiative Review, made a permanent part of the state's initiative process by statute in 2011, takes a ballot measure headed for a popular vote and hands it to twenty randomly selected citizens, who spend three to five days hearing evidence and testimony from advocates on both sides, deliberating with each other, and producing a written statement.[6] That statement is printed in the official voters' pamphlet that goes to every registered voter in the state, alongside the measure it addresses. It doesn't decide the vote. It informs it — a randomly selected panel, given evidence and time, attached directly to the same clipboard-born measure the rest of the electorate will vote on without that benefit.

Notice what this is, because this book has been building toward the recognition for fifteen chapters. It's the mechanism the jury summons carried in Chapter 1, the mechanism the *kleroterion* built out of stone in Athens, the mechanism the citizens' assembly runs at scale with modern tools in Chapter 7 — appearing here for a fourth time, attached to the exact instrument Chapter 10 identified as needing a filter it didn't have. A random draw. Evidence and testimony. Time to deliberate. A judgment handed back to the people who'll use it. Oregon didn't invent a

new idea to solve the ballot's problem. It reached for the oldest one democracy has, and bolted it onto the newest one.

The panel's statement carries no binding force, and the chapter says so plainly rather than let a reader assume otherwise. A voter can read it and vote the other way. Nothing compels the legislature, the courts, or the electorate to treat it as anything more than one well-informed argument among several printed in the same pamphlet. That's the limited scope of the fix: not a decision made *for* the electorate, but a deliberative judgment made available *to* it, at the exact point where an unfiltered preference would otherwise stand alone.

The panel doesn't decide policy content, either, and that limit is part of what makes it work. The twenty citizens aren't asked whether the measure in front of them is good policy in some final sense; they're asked to hear both sides, weigh the evidence, and report what they found persuasive and what they didn't. Their statement can favor a measure, oppose it, or split — the process doesn't steer the outcome, only the information available before the vote. A state that wanted to try something like it doesn't need to invent new legal categories or ask a court to bless an unfamiliar institution. It needs a legislature willing to pass a statute establishing the panel and attaching its output to whatever the state already prints and mails to voters before an election. Oregon wrote that statute in 2011. Nothing about the design is uniquely Oregonian.

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If the American entry points are honest about their limits, one case shows the same underlying question answered at a scale none of them has reached.

In February 1990, a national conference opened in Cotonou, in the West African nation of Benin, convened by a government facing a general strike, an empty treasury, and pressure from its own allies to change course.[7] Delegates including ruling-

party officials, labor leaders, civil servants, students, religious figures, former heads of state, and members of the diaspora sat together for ten days. Their first act was to declare the conference sovereign. By the time it ended, the delegates had suspended the constitution, dissolved the National Assembly, and installed Nicéphore Soglo, a former World Bank official, as interim prime minister, while the sitting president, Mathieu Kérékou, remained in office as head of state, stripped of most of his authority, until elections could be held.[8] A year later, in Benin's first multiparty elections in over two decades, Kérékou came second to Soglo in a three-way race. Benin's conference wasn't drawn by lot — its delegates were officials, labor leaders, religious figures, and former heads of state, seated by negotiation rather than random selection — but it comes close to a citizens' assembly with constitutional force, and it happened, in the open, in ten days.

Two things belong beside that account, and neither is optional.

The conference convened, like the round table in Warsaw a year earlier, to decide what procedure was legitimate for deciding everything else — the same question underneath every mechanism this book has traced, answered this time by a body that gave itself the authority to answer it. But it did so inside a regime already unraveling, under a president who had already lost the ability to stop it. And Benin wasn't the only country to try the maneuver. Between 1990 and 1991, at least six other governments in Francophone Africa (Gabon, Congo, Mali, Togo, Niger, and Zaire) convened national conferences, facing similar pressure. Some produced real change. Others were managed or blocked by the governments that had convened them.[9] Benin is evidence that the question of what procedure is legitimate can be answered at constitutional scale, by a body that decided to answer it. It is not evidence that the maneuver reliably works, and it is not a template.

The distinction matters for this chapter's claims. Nothing in the four American entry points above operates the way Benin's

conference did. None of them declares itself sovereign, suspends anything, or dissolves a legislature. Each runs inside a law that already permits it: a state's initiative statute, a city's home-rule charter, a ward's discretionary budget authority, a state's own statute establishing a review commission. That's not a smaller achievement dressed up as a bigger one. It's the entire point of listing them. They need nobody's permission because the permission already exists, on the books, waiting to be used.

Benin's conference is included here for a narrower reason than proving America needs one of its own. It answers a question this book has asked since Chapter 11: whether a body convened for the purpose, and given the authority to answer it, can decide what procedure is legitimate for deciding what comes next. Pearl Robinson's 1994 study of the conference says yes — not as theory, but as ten recorded days in Cotonou. What it can't say, and what the six other conferences in the same period make clear, is that giving a body that authority guarantees it will use it well. The Benin conference answered the question once, under conditions that made the answer possible. The American entry points in this chapter don't need to reproduce those conditions, because they don't need to ask that question in the first place — the procedure was already legitimate before anyone gathered to use it.

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None of these entry points builds a power graph, enforces nonconvertibility, or reverses the gradient Chapter 14 described. They're smaller than that. They're a place to try, in miniature and at low stakes, an idea this book has already spent four chapters describing — the way state constitutions were meant to function as laboratories in the first place, testing an arrangement locally before anyone asks whether it belongs anywhere larger. A city charter amendment that puts an expiration date on a delegated power tests, at neighborhood scale, exactly the decay Chapter 14 argued authority should default toward, rather than the sunset

clause that gets renewed out of habit. A review panel attached to a ballot measure tests, on a single state's initiative, exactly the procedure-matched-to-decision-type argument Chapter 11 made about central banks, statistical agencies, and juries: that different kinds of decision call for different kinds of process. A ward's participatory budget tests, on a single capital-spending line, the same distributed-decision principle Chapter 9 built out at the scale of an entire city's assemblies.

None of these small trials requires the state that runs them to resolve every question the rest of this book raises. A city doesn't need a theory of non-convertibility to add an expiration date to one delegated power in its own charter. A state doesn't need to redesign its whole legislature to attach one review panel to one ballot measure. The entry points are small enough to try without betting anything large on the outcome, and reversible enough that a result nobody likes can be undone at the next charter revision or the next legislative session — which is closer to how state constitutions have always been used than to a departure from that tradition.

This chapter doesn't say which door to walk through, or what should be written into a charter amendment, or which ballot measure deserves a review panel. That isn't its job. Ballot initiatives, in the American record, have carried causes from every direction of the political map, and a citizen who wants to use one starting Monday will bring their own reasons, not this book's. This chapter calls out where the doors are, and that they're unlocked.

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What this chapter asks you to notice isn't a convention, a new constitution, or a body willing to declare itself sovereign the way Benin's did. It's a charter your city already lets you amend, a statute your state already lets you invoke, a discretionary budget your ward already controls, or a review process your state has

already written into law — permission granted by legislatures and constitutional conventions that built these channels for exactly this use, whether or not anyone's used them lately.

The mechanism running through this book shows up here in one of the four: a jury summons in an envelope, built by the Athenians out of stone, run at modern scale in the citizens' assemblies Chapter 7 documented, and attached to a ballot measure in Oregon's panel. You've met this mechanism four times now, in four settings, at four different scales, and each time it did the same job: a stranger, chosen at random, given evidence and time, asked to think about something that matters before anyone else has to act on it.

This isn't a thought experiment awaiting permission. It's a clipboard, a charter, a ward budget, and a review commission, all already sitting there, on a Monday, for anyone who decides to pick one up.

NOTES

1. Dinan, John. "Constitutional Amendment Processes in the 50 States." *State Court Report*, 24 July 2023, https://statecourtreport.org/our-work/analysis-opinion/constitutional-amendment-processes-50-states. Accessed 28 Sept. 2026. "General Information on State Constitutions (As of January 1, 2022)." *The Book of the States*, Council of State Governments, https://bookofthestates.org/tables/general-information-on-state-constitutions-as-of-january-1-2022/. Accessed 28 Sept. 2026. The roughly 7,000-amendment and roughly 130-per-state figures are attributed to Dinan and the Book of the States.
2. National Conference of State Legislatures. "Initiative and Referendum Processes." NCSL, https://www.ncsl.org/elections-and-campaigns/initiative-and-referendum-processes. Accessed 28 Sept. 2026. Twenty-four states and the District of Columbia have an initiative process, spanning direct-initiative, indirect-initiative, and constitutional-only variants; Mississippi's process is currently inoperative pending resolution of a signature-district requirement.
3. National League of Cities. *Principles of Home Rule for the 21st Century*. NLC, 2020. https://www.nlc.org/wp-content/uploads/2020/02/Home-Rule-Principles-ReportWEB-2-1.pdf. Accessed 5 Oct. 2026. See also Wikipedia, "Home rule in the United States," https://en.wikipedia.org/wiki/Home_rule_in_the_United_States, accessed 5 Oct. 2026, whose state-by-state table

illustrates the same lack of a settled count once partial or limited grants of home rule are included.

4. "Participatory Budgeting." 49th Ward, City of Chicago, https://www.49thward.org/participatory-budgeting-1. Accessed 28 Sept. 2026. Chicago's 49th Ward (Rogers Park), under Alderman Joe Moore, ran the first US participatory-budgeting process in 2009, allocating $1.3 million of the ward's discretionary capital budget; see chapter 9, note 1, for the Porto Alegre process it drew on.
5. This chapter documents no binding US deliberative or citizens'-assembly process; the two most institutionalized examples found, both advisory, are the Oregon Citizens' Initiative Review and the Washington State Climate Assembly.
6. "Oregon Citizens' Initiative Review Commission." *Ballotpedia*, https://ballotpedia.org/Oregon_Citizens%27_Initiative_Review_Commission. Accessed 28 Sept. 2026. "Oregon Citizens' Initiative Review." *Participedia*, https://participedia.net/method/oregon-citizens-initiative-review. Accessed 28 Sept. 2026. Made permanent by Oregon House Bill 2634 (2011); housed in an eleven-member Citizens' Initiative Review Commission under ORS 250.137. A comparable US example without binding effect is the Washington State Climate Assembly (January–February 2021), the first statewide climate-specific citizens' assembly in the country: eighty participants, selected to reflect the state's demographic and political diversity, deliberated for roughly thirty-five hours and produced advisory recommendations to the state legislature. "Washington Climate Assembly." *Participedia*, https://participedia.net/case/washington-climate-assembly. Accessed 28 Sept. 2026. For the broader institutional base these two American cases sit within, see the OECD's deliberative-process database, which as of its 2023 update recorded roughly 733 cases across thirty-four countries since 1979 — a figure confirmed only through convergent secondary summaries of the OECD's own database rather than a directly retrieved primary page. People Powered, resource summary of the OECD Deliberative Democracy Database, 2023; European Commission Joint Research Centre, "Community of Practice on Democratic Innovation," event summary, 2023.
7. Robinson, Pearl T. "The National Conference Phenomenon in Francophone Africa." *Comparative Studies in Society and History*, vol. 36, no. 3, July 1994, pp. 575–610. Cambridge University Press / JSTOR, stable URL http://www.jstor.org/stable/179297. Retrieved via UN Peacemaker archive, https://peacemaker.un.org/sites/default/files/document/files/2022/07/robinsonthenationalconferencephenomenoninfrancophoneafrica1994.pdf. Accessed 28 Sept. 2026. Robinson records that the conference opened 19 Feb. 1990 at the Hotel PLM-Aledjo in Cotonou and lasted ten days, and that President Kérékou was compelled to convene it by the threat of a general strike, an exhausted treasury, and pressure from France's President Mitterrand. A related but distinct article on the same topic, Kathryn Nwajiaku's "The National Conferences in Benin and Togo

Revisited," appeared in the *Journal of Modern African Studies*, vol. 32, no. 3 (Sept. 1994); it should not be confused with the Robinson citation above.

8. Robinson, "The National Conference Phenomenon in Francophone Africa", pp. 575–76: the delegates' first act was to declare the conference sovereign; by the deliberations' end they had suspended the constitution, dissolved the National Assembly, and installed Nicéphore Soglo, a former World Bank official, as interim prime minister, while Kérékou remained head of state with most of his authority stripped. A year later, in Benin's first multiparty elections in over two decades, Kérékou placed second to Soglo in a three-way race.

9. Robinson, "The National Conference Phenomenon in Francophone Africa", p. 576: between March 1990 and August 1991, the governments of Gabon, Congo, Mali, Togo, Niger, and Zaire also faced pro-democracy pressure and convened national conferences of their own, with outcomes ranging from regime change to incumbent manipulation or resistance — evidence against reading Benin's outcome as a reliably repeatable template.

CODA

The Window

NORA'S TWO TUESDAYS RAN ON identical machinery: the same identity system, the same notification engine, deciding the same categories of question, openly in one case and invisibly in the other. This book has spent sixteen chapters answering the question that difference raised: not which technology a government runs, but which constitution governs it, who can see the machinery, and who can answer back when it's wrong.

Now imagine the machinery belonged to you.

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A letter arrives, windowed, with a seal you recognize. You've been chosen, by lot, from everyone in your district, to sit on a panel deciding whether the city should widen the river levee or buy out the homes behind it. The letter names a date, pays you for the days you'll miss from work, and tells your employer the seat is protected. You'll hear from an engineer who studied the levee and one who's studied the buyouts, and you'll have weeks,

not minutes, to question them both before you vote. Before the first session, a system has already read every public comment anyone filed on the question, thousands of them, and handed the panel a summary short enough to get through in an afternoon; every line in it links back to the comments it was drawn from, so you can check the machine's reading against people's actual words whenever you doubt it. You feel the same small dread the jury summons always produced, and you go anyway.

You've met this before, if you've ever served on a jury. A stranger, chosen at random, given evidence and time, trusted with something that matters: the mechanism isn't new here. Only the subject is.

Most weeks, nobody drafts you onto anything. What reaches you instead is the vote you already hold, or the one you've handed to someone else. Your ballot doesn't expire the morning after an election; it's a standing account you draw on or lend out, decision by decision. The ones you care about, you keep (the school board, most years, you decide yourself). The ones you don't have the time or the stomach for, you hand to a person or an organization whose judgment you trust on that one subject, and no other. You delegated your transit vote to a cycling advocacy group two years ago and haven't thought about it since; an expiry notice arrives this week, because a delegation lapses on its own unless you renew it, and you have to decide, again, whether you still agree with where that vote has been going. You do, mostly, so you renew it. You could take it back for any reason, or none, whenever you liked.

Not every decision comes to you as a vote. The interest rate behind your mortgage adjustment is set, as it has been for generations, by a body insulated from the ballot entirely, on the theory that this particular question gets worse, not better, from popular pressure. The verdict in the trial two blocks over is decided by twelve strangers drawn the same way you were drawn for the levee, deciding exactly one thing and going home. A line item

in your neighborhood's budget this year is decided by the neighborhood residents who show up to the meeting and vote with the people sitting next to them. And a question that's less about fact than about what the neighborhood is willing to give up (whether the neighborhood keeps ringing the century-old fire bell on the courthouse lawn at noon each day, now that half the block calls it a comfort and half calls it a nuisance) goes to a panel chosen by lot too, because no engineer can settle what a place is willing to lose. You can tell these decisions apart because the letter, notice, or ballot that reaches you says plainly which kind it is, and why that kind got that process instead of another.

Before the levee bill reaches a vote, you pull up a public model of what it's expected to cost, who bears the cost, and what assumptions the figure rests on. You don't trust the number (you think the engineer underweighted the flood years nobody alive remembers), so you change the assumption yourself and watch the model recompute, and it shows you, in plain language, exactly where your assumptions and the experts' part ways. You're not persuaded. You vote the way you came in. Nobody tells you you're wrong to make that choice.

No amount of money would have gotten you a seat on the levee panel ahead of your neighbor, or a louder vote on the school board than hers, or a faster hearing than his. A seat like that isn't for sale at any price, in the way a jury seat never was. Wealth buys plenty in your life. It doesn't buy this.

A public map runs all the time, computed fresh every day rather than compiled once a year, published and searchable by anyone, showing where delegated votes have pooled: which people, which organizations, how much of the district's transit vote now sits in one advocate's hands. When a pool gets large enough to look less like trust and more like control, the body that watches for this steps in before anyone's broken a rule, the way an examiner flags a risk before it becomes a failure. You've never had to use that system yourself. You know it's there because the

map is there, and because you watched it catch something once, in a neighborhood that wasn't yours.

The emergency declared after last year's flood is still technically in effect, but it isn't running on momentum alone. It has to be renewed, on the record, with a harder case each time than the last, and the longer it runs, the more it costs whoever's holding it to keep holding it. Nobody has to remember to end it. It's built to end itself unless somebody actively argues it shouldn't, and that argument gets harder to make each time.

None of this touches the parts of your week that just work. Your license plate renewal arrived before you asked for it. The road crew finished early and told you so. The health screening slot is already held; you can cancel it if you don't need it. The system that reads thousands of comments down to a page you can check, recomputes the levee's cost model when you question it, and keeps the delegation map current is the same kind of system that renewed your plate without being asked. It's the same machinery. It just also answers to you.

You don't win every time. The panel recommends the buyouts; you wanted to widen the levee, and you lose. You read the dissent it filed alongside its recommendation, which lays out exactly where the vote split and why, and you know where to take the disagreement next: the elected council that still has to approve the funding, where you get another vote, cast by you or by whoever you've trusted with it. Losing here doesn't mean disappearing. It means knowing which door to go to next, and that the door is there.

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What you just read is a map, not a blueprint, and an admittedly imperfect one. This book names its failure modes: a delegation system that quietly recreates party bosses, assemblies that draw down to the people who already like to govern, a dashboard that starts governing instead of informing, exhaustion that outruns

the next election. No country has run elected chambers, courts, experts, local bodies, and a sortitive panel together, at national scale, long enough to find out which of those failure modes shows up first. This book also leaves one question open: who decides which kind of decision goes to which institution, and who keeps that sorting honest. Whoever does holds power of the kind this book warns about, and the same tests apply to that body.

The pieces aren't speculative, even where the whole is untested. A jury draws citizens by lot and trusts them with something enormous. Porto Alegre ran real budget votes for the better part of three decades. A change of city government suspended them in 2017, which illustrates the point this book already made: a procedure that isn't embedded deeply enough doesn't outlast whoever's in office. A conference in Benin once decided, in ten days, what procedure was legitimate for deciding what came next. Sunset clauses and open-by-default data already sit in statute books. A state in the American West already hands a randomly chosen panel's findings to every voter before an election. Each piece exists, somewhere, now. What doesn't exist yet is a government built from all of them at once, checked against the ways each one is already known to fail.

This book is a map of how such a government could be reached, not a blueprint for it.

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One number from earlier in this book is worth bringing back. Between 1900 and 2006, nonviolent campaigns were nearly twice as likely as violent ones to achieve full or partial success; both rates have fallen since 2010, and nonviolent success is now about a third.[1] Chenoweth attributes much of that decline to how movements themselves have changed: thinner organizing, more reliance on demonstrations than on strikes, and a turn toward digital tools that assemble people fast while exposing them to

exactly the surveillance a slower, harder-to-watch movement could avoid.[2]

A separate literature, independent of Chenoweth's, documents the state side of the same channel. It describes digital repression as a fast-growing field of its own, explicitly noting that whether state capacity caused the decline in nonviolent success is still unresolved;[3] documents AI-enabled surveillance already deployed across dozens of countries, democracies and autocracies alike;[4] and, in one annual tracking report, names the manipulation of online information as the single indicator that has declined most consistently of any it follows.[5]

This book doesn't resolve that open question, and doesn't need to in order to notice something: the channel where movements have grown vulnerable (fast, cheap organizing done in public, on infrastructure nobody organizing owns) is the same channel (computation, population-scale behavioral data, the infrastructure deciding what a person sees) that occupied four parts of this book, now in state hands as much as anyone else's. That's an overlap between two lists, offered as an observation, not a cause this book has shown. What's not in question is which method is losing ground faster: violent campaigns' success rate fell further than the nonviolent one, into the single digits named above. The alternative to the peaceful window isn't a better method. It's a worse one, and a declining one, and that's reason enough to use the window while it's still open.

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The Constitution was built to stop a king. The one this book has described has to stop a conversion (computation into behavioral knowledge, behavioral knowledge into what a population is shown, what a population is shown into what it can organize to change). Nothing in the scenario just described requires an invention that doesn't already exist somewhere: a lottery, a ledger, a sunset clause, a model you can question, and a published map.

It requires assembling them, and the tools for assembling them peacefully are among the things a widening conversion erodes fastest.

The window is open, and it's narrowing. The machinery was never the obstacle. What anyone does with it, starting now, is the only question left.

NOTES

1. Chenoweth, Erica, and Maria J. Stephan. *Why Civil Resistance Works: The Strategic Logic of Nonviolent Conflict*. Columbia University Press, 2011. 323 campaigns, 1900–2006; the book's finding is that nonviolent campaigns were "nearly twice as likely to achieve full or partial success" as violent ones (ch. 1). The 53%/26% figures are a reading of the full-success bars in fig. 1.4, "Rates of Success, Partial Success, and Failure" (ch. 1); the text itself doesn't state these percentages. Verified against the text, ch. 1 and fig. 1.4, 2026-10-04; e-book edition (Google Play Books), cited by chapter rather than page, since its pagination doesn't match the print edition. For the post-2010 decline, Chenoweth, Erica. *Civil Resistance: What Everyone Needs to Know*. Oxford University Press, 2021, ch. 5, states directly: "less than 34% of nonviolent revolutions succeeded in the past decade, whereas less than 9% of violent ones did." Figures as carried forward from Chapter 15 and consistent with it. Nonviolent success is now below 34%, and violent success further still, into single digits.
2. Chenoweth, Erica. "The Future of Nonviolent Resistance." *Journal of Democracy*, vol. 31, no. 3, July 2020, pp. 69–84. Journal of Democracy, https://www.journalofdemocracy.org/articles/the-future-of-nonviolent-resistance-2/. Accessed 28 Sept. 2026. (Reduced peak participation; over-reliance on demonstrations relative to more disruptive tactics; digital-organizing vulnerabilities; violent-flank tolerance rising.)
3. Earl, Jennifer, Thomas V. Maher, and Jennifer Pan. "The Digital Repression of Social Movements, Protest, and Activism: A Synthetic Review." *Science Advances*, vol. 8, no. 10, 9 Mar. 2022, eabl8198. https://www.science.org/doi/10.1126/sciadv.abl8198. Accessed 28 Sept. 2026. Cited for the typology and the existence of the field; the paper explicitly identifies the causal relationship between state digital capacity and movement outcomes as an open question, and is not cited here as establishing that relationship.
4. Feldstein, Steven. *The Rise of Digital Repression: How Technology Is Reshaping Power, Politics, and Resistance*. Oxford University Press, 2021, ch. 7, "AI and Big-Data Global Surveillance Index" (an updated version of Feldstein, Steven. *The Global Expansion of AI Surveillance*. Carnegie Endowment for International Peace, Sept. 2019, https://assets.carnegieendowment.org/static/files/files_WP-Feldstein-AISurveillance_final1.pdf). Finds at least 77 of 179 countries assessed (44%) actively using AI and

big-data public surveillance, with political systems "rang[ing] from closed autocracies to advanced democracies."

5. Freedom House. *Freedom on the Net 2025: An Uncertain Future for the Global Internet*. Freedom House, 13 Nov. 2025. https://freedomhouse.org/report/freedom-net/2025/uncertain-future-global-internet. Accessed 28 Sept. 2026.

ABOUT THE AUTHOR

Jason Cook is a designer, engineer, architect, researcher, strategist, and inventor working in the field of data and technology experiences. The views in this book are his own and do not represent any client or employer.

The U.S. Constitution keeps one kind of power from turning into another, and it has little to say about technology that now does exactly that. Its clauses still work where they reach: a foreign prince cannot pay a federal officer, and a title cannot be handed down like a crown.

Governments and companies can now see, predict, and decide at a scale the Framers never imagined. That leaves a question every citizen faces: when power in one place can turn into power everywhere, what keeps a free people free?

This book follows the question from ancient Athens to the American founding to the systems running today, and ends where peaceful change can begin: state constitutions, city charters, and the rules your own community already lets you amend.

The Constitution has served for more than two centuries, and it has been amended twenty-seven times along the way. This book invites you to read it as a working design, and to help decide what it needs next.

